

LOCAL INFRA STRUCTURE DEVELOPMENT&ENGINEERINGWING (LID&EW)

STANDARD BID DOCUMENT FOR E-TENDERING

(For Works Costing Below Rs.5Crores)

(Approved VideGO(P)No.3/2017/PWDdated 09-08-2017)

(Including Modifications vide GO (MS)No.60/2020/ PWD dtd.04-08-2020)

Nameofwork:LAC ADS 2021-22.2022-23 Sri.P K Firoz MLA – Meppilattu vayal Nellikkaparambu road construction Narikkuni pt PMC- LIMITED TENDER

Name of Division:Kozhikode

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PART1INSTRUCTIONSTOTHEBIDDERS

1. GENERAL

ScopeoftheBid:-

TheExecutiveEngineer,LID&EWDivision,KozhikodeDistrictpanchayathinvitesbidsfromcontractorsregisteredwithKeralaPublic WorksDepartmentorCentralPWDorOtherCentralorStateGovernmentDepartmentsorStateorCentralPublicSectorUndertakingsetcfortheWork detailed in the Notice Inviting Tender (NIT).

Throughoutthesebiddingdocuments:

a) Theterms'inwriting'meanscommunicatedinwrittenformanddeliveredagainstreceipt;

b) exceptwherethecontextrequiresotherwise,wordsindicatingthesingularalsoincludethepluralandwordsindicatingthepluralalsoincludethesingular; and any reference to masculine gender shall whenever required include feminine genderand vice versa.

c) "day"meanscalendarday.

d) Theterms"bid"and"tender"andtheirderivatives"Bidder/tenderer,bid/tender,bidding/tenderingetc.,"aresynonymous.

e) Theterm"Employer"shallmeanGovernmentofKerala.Employerwillcarryoutitsfunctionsandobligationsthroughofficerswhohavebeendelegated powers for the same.

f) The "Tender Inviting Authority", "Accepting Authority" and the "Agreement Authority" means the officer who has invited and received bids for the Work and has executed agreement for execution on behalf of the Employer. The Tender Inviting Authority, Accepting Authority and the Agreement Authority shall be one and the same person unless otherwise specified.

g) "ContractPrice"meanspriceapprovedbytheEmployerafterbiddingandstatedintheLetterofAcceptanceandthereafterasadjustedin accordance with the provisions of the Contract.

Thebidinvitedshallbeofitemratecontract.The mode of this tender is e-tender.

Sourceoffunds

1.2.1 TheexpenditureonthisWorkwillbemetfromthePlan/NonplanallocationofStateGovernment/CentralGovernment funds/Funds allocated by National funding Agencies as mentioned in the Contract Data.

EligibleBidders

1.3.1 ABiddershallbeeligibleforparticipatinginlimitedtenderforPMCworkforquotingthebidincentagechargesaspergovermentorderNo.67/20-21/Findtd.28.04.2021andotherreleventandrelatedorders; andshallbeanyofgovermentapprovedagenciesasperKerala PWD/Kerala finance norms,Central PWD, Other Central or State Government Departments, State or Central Public Sector Undertakings etc in the required category as specified in the NIT..

1.3.2. Onlythosebiddershavingavalidandactiveregistration,onthedateofbidsubmission,shallsubmitbidsonlineonthee-GPwebsite.

1.3.3 Ineligiblebidderorbidderswhodonotpossesvalid&activeregistration,onthedateofbidsubmission,arestrictlyadvisedto refrainthemselves from participating in this tender.

1.3.4 AllBiddersarerequiredtoregisterinthee-procurementportal.TheBidderintendingtoparticipateinthebidisrequiredtoregister inthee-tendersportalusinghis/herLoginIDandattachhis/hervalid DigitalSignatureCertificate(DSC)tohis/heruniqueLoginID. He/Shehasto submittherelevantinformationasaskedforaboutthefirm/contractor.Thebidders,whosubmittheirbidsforthistenderafterdigitallysigningusingtheirDigitalSignatureCertificate(DSC),acceptthattheyhaveclearlyunderstoodandagreedthetermsandconditionsincludingalltheForms/ Annexure of this tender.

Afirm/biddershallsubmitonlyonebidinthesamebiddingprocess.ABidder(eitherasafirmorasanindividualorasapartnerofafirm)whosubmitsorparticipates in more than one bid will cause all the proposals in which the Bidder has participated to be disqualified.

1.3.5 JointventuresorConsortiumsoftwoormoreregisteredcontactorsarenotpermittedThe Bidder shall have valid GST Registration.(Modified Instruction)

1.3.6

1.3.7

CostofBidding

1.4.1 IfhefailstodothisorinthecaseofP.W.contractsmaintainaspecifiedrateofprogress(tobespecifiedineachcaseinthe tender schedule) the earnestmoney and security depositshall be forfeited toGovernmentand fresh tendersshall becalled for or the matter otherwise The bidder shall bear all costs associated with the preparation & submission of bids and site visits, and the Employer will in no case be responsible or liable for those costs, regardless of the conduct or outcomeof the bidding process.

1.4.2 The tender document(s), may be downloaded free of cost from the e-Government Procurement (e-GP) website (www.etenders.kerala.gov.in).Howeverabidsubmissionfee,asmentionedintheNIT,isrequiredtobesubmittedalongwiththeonlinebid.

SiteVisit

Thebidderisadvisedtovisitandexaminethe SiteofWorksanditssurroundingsandobtainforitselfonitsownresponsibilityallinformationthat may be necessary for preparing the bid and entering into a contract for construction of the Works. He shall examinethesiteconditionandsatisfy himself oftheavailability of materials atnearby places, difficulties whichmay ariseduring execution before submitting the bids. The costs of visiting the Site shall be at the bidder's own expense.

Thebidderandany ofhis personneloragents willbegrantedpermissionby theEmployertoenteruponitspremises andlands for thepurposeofsuchvisit,butonlyupontheexpressconditionthatthebidder,hispersonneloragentswillreleaseandindemnifytheEmployeranditsperson nelandagentsfromandagainstallliabilityinrespectthereof,andwillberesponsiblefordeathorpersonalinjury,loss of or damage to property, and any other loss, damage, costs, and expenses incurred asaresultofthe inspection.

Gettinginformationfromwebportal

1.6.1 Allprospectivebiddersareexpectedtoseeallinformationregardingsubmissionofbidfortheworkpublishedintheetender websiteduringtheperiodfromthedateofpublicationofNITfortheWorkanduptothelastdateandtimeforsubmissionofbid.Non observanceofinformationpublishedinthewebsiteshallnotbeentertainedasareasonforanyclaimordisputeregardingatenderatany stage.

1.6.2 Allbidsshallbesubmittedonlineonthee-GPwebsiteonlyintherelevantenvelope(s)/cover(s),asperthetypeoftender.Nomanualsubmissionofbids shall be entertained for the tenders published through e-GP system under any circumstances.

1.6.3 Thee-GPsystemshallnotallowsubmissionofbidsonlineafterthestipulateddate&time.Thebidderisadvisedtosubmitthebidswellbeforethestipulateddate&timet oavoidanykindofnetworkissues,trafficcongestion,etc.Inthisregard,thedepartmentshallnotbe responsible for any kind of such issues faced by bider.

2. BIDDINGDOCUMENTS

ContentofBiddingDocuments

2.1.1 Thebiddingdocumentsshallconsistsofthefollowingunlessotherwisespecified

a) NoticeInvitingTender(NIT)
b) InstructionstoBidders
c) GeneralandspecialConditionsofContract
d) TechnicalSpecifications
e) FormofBid,AppendixtoBid,Preliminaryagreementformat
f) BillofQuantities

2.1.2 TheBidderisrequiredtologintothee-procurementportalanddownloadthelisteddocumentsfromthewebsiteasmentionedin NIT. He shallsaveitinhissystemandundertakethenecessarypreparatoryworkoff-lineanduploadthecompletedbidathisconvenience beforetheclosingdate and time of submission.

Thebidderisexpectedtoexaminecarefullyallinstructions,ConditionsofContract,ContractData,Forms,Terms,TechnicalSpecifications,BillofQuan tities,AnnexureandDrawingsintheBidDocument.Failuretocomplywiththerequirementsofbiddocumentshallbeattheeidder's own risk.

2.1.3

ClarificationofBiddingDocuments

2.2.1 AprospectivebidderrequiringanyclarificationofthebiddingdocumentsshallcontacttheofficeoftheTenderInvitingAuthorityonanyworkin g day between 10 am and 5 pm.

2.2.2 Incasetheclarificationsoughtnecessitatesmodificationofthebiddocuments,beingunavoidable,theTenderInvitingAuthoritymayeffectthereq uired modification and publish them in the website through corrigendum in pursuance toclause 2.3 of this bid document.

Amendmenttobiddingdocuments

2.3.1 Beforethedeadlineforsubmissionofbids,theTenderInvitingAuthoritymaymodifythebiddingdocumentbyissuingaddenda.

2.3.2 Anyaddendumthusissuedshallbeapartofthebiddingdocumentswhichwillbepublishedinthee-tenderwebsite.TheTenderInvitingAuthoritywillnot be responsible for the prospective bidders not viewing the website in time.

2.3.3 If the addendum thus published does involves major changes in the scope of work, the Tender Inviting Authority may at his own discretion,extendthedeadlineforsubmissionofbidsforasuitableperiodtoenableprospectivebidderstotakereasonabletime for bid preparation taking into account the addendum published.

3. PREPARATIONOFBIDS

LanguageoftheBid

Alldocumentsrelatingtothebidshallbeintheenglishlanguage.**DocumentsComprisingtheBid** Theonlinebidsubmittedbythebiddershallcomprisethefollowing

a) Detailsrequiredfore-payment(Detailsofbankaccounthavingcorebankingfacilityande-mailaddressofthecontractor)intheprescribedformat.
b) Onlinepaymentofbidsubmissionfeeasdetailedinthee-tenderwebsite.
c) BidSecuritypaymentdetails.
d) CopyofRegistrationCertificatedulyattested.
e) Dulysignedpreliminaryagreement.
f) PricedBillofQuantities.

TherelevantCPWD/MoRTH specificationsandBIS/IS codesand therelevantsectionsoftheNationalBuildingCode,PWD Manual, PWD Quality Control Manual and the PWD Quality Control Laboratory Manual shall be considered as part of this bid documents though individual copies are not attached along with the bid documents.

Bidders shall not make any addition, deletion or correction in any of the bid documents. If tampering of documents is noticed during tender evaluation, the bid will be rejected and the bidder will be blacklisted.

BidPrices

3.3.1 TheBiddershallbidforthewholeworkasdescribedintheBillofQuantities.

3.3.2 Foritemratetenders,thebiddershallfillinratesinfiguresandshouldnotleaveanycellblank.Thelineitemtotalinwordsandthetotalamountshallbecalculated by the system and shall be visible to the Bidder.

3.3.3 The rates quoted by the Bidder shall include cost of all materials and conveyance, labour charges, hire charges of plant and machinery,overheadsandallincidentalchargesforexecutionofthecontract.Theratequotedshallalsoincludeallstatutorytaxes as on the date of submission of the tender and such taxes shall be paid by the contractor.

3.3.4 Thequotedratesshallalso includeexpensestowards allQualityControltests(firsttier)prescribedinthePWDQualityControl Manual to be done at Government approved institutions.

3.3.5 TheratequotedbythebiddershallincludealltaxesdutiesandConstructionWorkersWelfareFundContributionetcexceptGST(GoodsandServicesTax)andtheGovernmentwillnotentertainanyclaimwhatsoeverinrespectofthesame.However,inrespectofGST, wherever legally applicable the sameshallbe paid by the contractor to the concernedAuthorities asper the prevailingrules.Thepaymentforanybillsasperthiscontractshallbemadeforthetotalvalueoftheworksatthecontractrateplustheapplicable GSTrate atthetimeofbilling.Anyvariationintaxrateof GST(increaseordecrease)afterthelastdateoftendersubmissionshall beadjustedatthetimeofsettlementof bills.TDSand otherdeductionsshallbemade onpayments excluding GST.(Modified.)

3.3.6 All taxes,royalty,octroi and otherleviespayablebythecontractorunderthecontract,or foranyothercauseasofthe date 28 days prior to the deadline for submission ofbidsshall beincludedinthe rates,pricesandtotal of bidprice.Thebidpricesshall also cater for any change in tax pattern during the tenure of work.

3.3.7 Nomaterialwillbeissuedbythedepartmentforexecutingworksunderthiscontractunlessspecified.Incaseswhere departmental supply materials were used in the work/works, where the tenderitemspecificationdoes notspecifydepartmental supplyspecifically, then recoveriesshall bemadefromthe amountdue to theContractorforthosedepartmentalsupply itemsat the rates based on the departmental data rate at the time of issuing technical sanction. Department Road roller will be issued, if available at the time of execution. If road roller is issued for a work, hire charges at the rates fixed by the department along with contractor's profit will be recovered from the bill submitted by the contractor. (Modified)

3.3.8 The rates andpricesquotedby the biddershall remain firmduringthe entire periodofcontract. In the caseofWorks forwhich time ofcompletionoriginallyfixed exceeds18months,ratesandpricesquoted bythebidderare subjectto priceadjustmentduring the performance of the contract in accordance with the provisions of Clause 4.2 of the General Conditions of Contract.

CurrenciesofBidandPayment

3.4.1 ThecurrencyofbidandpaymentshallbequotedbythebidderentirelyinIndianRupees.AllpaymentsshallbemadeinIndianRupeesonly.

BidValidity

3.5.1 Bids shall remain valid for the period of 60(sixty) days from the date of opening of the bid as specified in the NIT. A bid valid for a shorter period shall be rejected by the Employer as non responsive.

3.5.2 In exceptional circumstances, prior to expiry of the original bid validity period, the Tendering Authority may request the bidders to extendtheperiodofvalidityforaspecifiedadditionalperiod.Therequestandtheresponsestheretoshallbemadeinwritingorby e mail. A bidder may refuse the request without forfeiting its bid security. A bidder agreeing to the request will not be required or permitted to modify itsbid,but will be required to extend the validityofitsbid security for the period oftheextensionandin compliance with Clause 3.6 in all respects.

BidSecurity

3.6.1 The Bidder shall furnish, as part of his Bid,a Bid Securityforan amountas detailedin theNotice Inviting Tender (NIT). Fore tenders,BiddersshallremittheBidSecurityusingtheonlinepaymentoptionsofe-Procurementsystemonly.Biddersareadvised to visit the "Downloads" section of e-Procurement website www.etenders.kerala.gov.in forStateBankof Travancore or byusing NEFTfacility.BiddersoptingforNEFTfacilityofonlinepaymentareadvisedtoexercisethisoptionatleast48hoursbeforethe last date of bid submission to ensure that payment towards Bid Security is creditedand a confirmation is reflected in the e- Procurement system. The online NEFT remittance form provided by e-Procurement system for making a NEFT transaction is not a payment confirmation. PWD/NIC/SBT/KSITM shall not be responsible for any kind of delay in payment status confirmation.

3.6.2 AnyBidnotaccompaniedbyanacceptableBidSecurityshallberejectedbytheEmployerasnon-responsive.

3.6.3 TheBidSecurityoftheunsuccessfulBiddershallbecomerefundableaspromptlyaspossibleafteropeningofPriceBidandfinalizationofthetender.

3.6.4 TheBidSecurityofthesuccessfulBidderwillbedischargedwhentheBidderhasfurnishedtherequiredPerformanceGuaranteeandsignedtheAgreement.

3.6.5 WaivingofBidSecurityisallowedinrespectoforganizations,whichareexemptedbyGovernmenttothateffect.Inthiscase,thebidder shallproducecopyofGovernmentordershowingexceptioninremittanceofbidsecuritywhileparticipatinginthetenderprocess.TheBidSecuritymaybeforfeited:

a) iftheBidderwithdrawstheBidafterBidopeningduringtheperiodofBidvalidityincludingextendedperiodofvalidity;or
b) ifanymodificationiseffectedtothetenderdocumentsor
c) inthecaseofasuccessfulBidder,iftheBidderfailswithinthespecifiedtimelimitto:signtheAgreement;or

3.6.6 FurnishtherequiredPerformanceGuaranteeorIfthebidderfailstoconvincetheEmployeraboutthereasonabilityofhisbidpricesinthecaseofan unbalanced bid.

d) Insuchcasestheworkshallberearrangedattheriskandcostoftheselectedbidder.

3.6.7 TheBidSecuritydepositedwiththeEmployerwillnotcarryanyinterest.

Bidsubmissionfee

For e tenders, the mode ofremittance ofBidsubmission fee (Tender Fee)shall be the same as detailed for remitting Bid Security. Foretenders,BiddersshallremittheTenderfeeusingtheonlinepaymentoptionsofe-Procurementsystemonly.Biddersare advised to visit the "Downloads" section ofe-Procurement websitewww.etenders.kerala.gov.in for State Bankof Travancore or by usingNEFTfacility.BiddersoptingforNEFTfacilityofonlinepaymentareadvisedtoexercisethisoptionatleast48hoursbeforethe last date of bid submission to ensure that payment towards Bid Submission Fee is credited and a confirmation is reflected in the e- Procurement system.The onlineNEFT remittanceformprovided by e-Procurementsystemformakinga NEFTtransaction isnotapayment confirmation. PWD/NIC/SBT/KSITM shall not be responsible for any kind of delay in payment status confirmation.

AnybidnotaccompaniedbytheTenderFeeasnotifiedshallberejectedbytheEmployerasnonresponsive.TenderFee remitted will not be refunded.

Alterationsandadditions

3.8.1 Thebidshallcontainnoalterationsoradditions,exceptthosetocomplywithinstructionsissuedbyEmployer,orasnecessarytocorrecterrorsmadeby the bidder, in which case such corrections shall be initialled by the person or persons signing the bid.

3.8.2 ThebiddershallnotattachanyconditionsofhisowntotheBid.TheBidpricemustbebasedonthetenderdocuments.Thebidderisnotrequiredtopresent alternativeconstructionoptionsandheshallusewithoutexceptiontheBillsofQuantitiesasprovided, with the amendments as notifiedintendernotices, ifany,forthecalculation ofhis tenderprice.Any bidderwho fails tocomply withthis clausewill be disqualified.

4. SUBMISSIONOFBIDS

4.1 All documents of the Bid as required shall be typed or written in indelible ink and shall be signed by the bidder or person duly authorised to sign on behalf of the Bidder.

4.2 In the event of the tenderbeingsubmitted by a partnership firm, it mustbe signedby the leadpartnerholding avalid power-ofattorneyauthorizinghimtodoso,suchpowerofattorneytobeproducedwiththetender,anditmustdisclosethatthefirmis duly registered under the Indian Partnership Act, 1952.

4.3 The Bidder shall submit their bid online only through the e-GP web site of Kerala(www.etenders.kerela.gov.in) as per the procedure laid down for e-submission as detailed in the web site. For e tenders, the bidders shall download the tender documents including the Bill of Quantity (BoQ) file from the e tendering portal http://www. etenders.kerala.gov.in. The Bidder shall fill up the documents and submit the same online using their Digital Signature Certificate. On successful submissionofbids,asystem generatedreceiptcanbedownloadedbythebidderforfuturereference.CopiesofallcertificatesanddocumentsshallbeuploadedwhilesubmittingthetenderonlineThefollowingscannedcopiesofdocumentsaretobesubmittedonlineasrequiredbythee-tendersportal.

4.3.1 CopyofremittancetowardsbidsubmissionfeeandBidSecurity.

4.3.2 SelfattestedCopyofthebidder'svalidregistrationcertificateinKeralaPWD,CPWDorotherapprovedagenciesasperclause1.3.1.

4.3.3 Dulyfilledandsignedcopyofbidsubmissionletterasperitemno-1Part-VIofthisbiddocument.

4.3.4 Dulyfilledandsignedcopyofpreliminaryagreementasperitemno-2Part-VIofthisbiddocument.

4.3.5 DulyfilledandsignedcopyofIntegritypactcertificateasperitemno-3Part-VIofthisbiddocument.Dulyfilled and signed copy of Affidavit as per item no-4 Part-VI of this bid document.

4.3.6 Dulyfilledandsignedcopyofrequisitionfore-paymentformasperitemno-6Part-VIofthisbiddocument.

4.3.7 Anyotherrelevantinformationwithtestimonials.

4.3.8 Thebiddershalldigitallysignallstatements,documents,certificatesuploadedbyhim,owningsoleandcompleteresponsibility fortheircorrectness/authenticity as per the provisions of the IT ACT 2000.

4.3.9 Inadditiontotheabove,thebiddershalluploadacompletesetofbiddocumentwithNITandsectionsfrom1toVIIusinghisdigital signatureas a token of acceptance of all bidconditionsandtheabsenceofcompletesetofbiddocument inthe submittedbidshallbetreatedasnon-responsiveandwillberejectedbytheEmployer.

Pricebid

ThisshallcontainonlythedulyfilledBoQ-fileinMS-Excelformatandshallbeuploadedusingthedigitalsignatureofthebidderinthee-tendersportal.

SelfattestedCopyofthebidder'svalidGSTregistrationcertificateissuedbyGovernmentofIndiaasperclause1.3.7.(Modified)The

ITBclauses 4.4 and 4.5 in the approved SBD stands deleted.

Thereisnoneedtosubmitanyhardcopiesrelatedtothisbidtotheofficeoftenderinvitingauthority.Theconditionthatthe preliminaryagreementneedstobepreparedinstamppaperworthRs.200isalsoremoved.Instead,thepreliminaryagreement

4.4and needstobepreparedinaplainpaperandascannedcopyofthepreliminaryagreementdulyfilledandsignedbythebidderneeds

4.5 only to be uploaded in the e-tenders portal while submitting the bid. The condition that the affidavit needs to be prepared in stamp paper and to be notarised is also removed. Instead, the affidavit needs to be prepared in a plain paper and a scanned copy of the affidavit duly filled and signed by the bidder needs only to be uploaded in the etenders portal while submitting the bid. (Modified)

ThePricebidshallonlybesubmittedthroughonline.TheTenderInvitingAuthorityshallopenthepricebidinthepresenceofbiddersortheirauthorisedrepresentati

4.6 vespreferablyonthelastdayofbidsubmissionaftertheprescribedtimeforbidsubmission.

TheTenderInvitingAuthorityshallnotberesponsibleforanyfailure,malfunctionorbreakdownoftheelectronicsystem while

4.7 downloading or uploading the documents by the Bidder during the e- procurement process.

DeadlineforSubmissionoftheBids

4.8 BidshallbereceivedonlyONLINEonorbeforethedateandtimeasnotifiedinNIT.

4.8.1 TheTenderInvitingAuthority,inexceptionalcircumstancesandatitsowndiscretion,mayextendthelastdatefor submissionofbids,inwhichcaseallrightsandobligationsoftheEmployerandthebidderspreviouslysubjecttotheoriginaldatewillthenbesubjecttothe

4.8.2 new date of submission.

TheBidderwillnotbeabletosubmithisbidafterexpiryofthedateandtimeofsubmissionofbid(servertime).

4.8.3 **Modification,ResubmissionandWithdrawalofBids**

4.9 Resubmissionormodificationofbidbythebiddersforanynumberoftimesbeforethedateandtimeofsubmissionisallowed.

4.9.1 Resubmissionofbidshallrequireuploadingofalldocumentsincludingpricebidafresh.

Ifthebidderfailstosubmithismodifiedbidswithinthepre-definedtimeofreceipt,thesystemshallconsideronlythelastbidsubmitted.

4.9.2 TheBiddercanwithdrawhis/herbidbeforethedateandtimeofreceiptofthebid.Thesystemshallnotallowanywithdrawalafterthe dateand time of submission.

4.9.3 **5. BidOpeningandEvaluation**

BidOpening

Bidsshallbeopenedonthespecifieddate&time,bythetenderinvitingauthorityorhisauthorisedrepresentativeinthepresenceof

5.1 biddersortheirdesignatedrepresentativeswhochoosetoattend.

5.1.1 Openingofbidsshallbecarriedoutinthesameorderasitisoccurringininvitationofbidsorasinorderofreceiptofbids in the portal. The bidders & guest users canviewthe summary of opening of bids from any system. Biddersare not required tobe present during the bid opening at the opening location if they so desire.

5.1.2 In the event of the specified date of bid opening being declared a holiday for the Employer, the bids will be opened at the same time on the next working day.

5.1.3 **Confidentiality**

5.2 Information relatingtotheexamination,clarification,evaluation,andcomparisonofBidsandrecommendationsfor the awardofacontractshall notbedisclosedtoBiddersor anyotherpersonsnotofficiallyconcernedwithsuchprocessuntilthe award has been announced in favour of the successful bidder.

5.2.1 Anyeffortbya Biddertoinfluencethe Employerduring processing ofbids,evaluation, bidcomparison orawarddecisionsshallbe treated as Corrupt & Fraudulent Practices, mentioned under Clause9 of ITB andmay result in the rejection ofthe Bidders'bid.

ClarificationofBids

5.2.2 To assist in the examination, evaluation, andcomparison of bids, the Tender Inviting Authority mayaskthebidderfor requiredclarificationontheinformationsubmittedwiththebid.Therequestforclarificationandtheresponseshallbeinwritingor by e-mail, but no

5.3 change in the price or substance of the Bid shall be sought, offered, or permitted.

Subjecttoclause5.3.1,noBiddershallcontacttheTenderInvitingAuthorityonanymatterrelatingtothesubmittedbidfromthetimeofthebidopeni

5.3.1 ngtothetimethecontractisawarded.IftheBidderwishestobringadditionalinformationtothenoticeoftheTenderInvitingAuthority,heshalldosoin writing.

ExaminationofBids,andDeterminationofResponsiveness

5.3.2 Duringthebidopening,theTenderInvitingAuthoritywilldetermineforeachBid

a. whetheritmeetstherequiredregistrationclassasspecifiedintheNIT;

5.4 b. isaccompaniedbytherequiredbidsecurity,bidsubmissionfeeandtherequireddocumentsandcertificates.

5.4.1

5.4.2 Asubstantiallyresponsivebidisonewhichconformstoalltheterms,conditions,andrequirementsofthebiddingdocuments, withoutmaterial deviation or reservation. A material deviation or reservation is one

a. whichaffectsinanysubstantialwaythescope,quality,orperformanceoftheWorks;

b. whichlimitsinanysubstantialway,inconsistentwiththebiddingdocuments,theEmployer'srightsortheBidder'sobligations underthe Contract; or

c. whoserectificationwouldaffectunfairlythecompetitivepositionofotherBidderspresentingsubstantiallyresponsiveBids.

5.4.3 IfaBidisnotsubstantiallyresponsive,itmayberejectedbytheTenderInvitingAuthority,andmaynotsubsequentlybemade responsive by correction or withdrawal of the nonconforming material deviation or reservation.

5.34.4 Nonsubmissionoflegibleorrequireddocumentsorevidencesmayrenderthebidnon-responsive.

5.4.5 Biddercanwitnesstheprincipalactivitiesandviewthedocuments/summaryreportsforthatparticularworkbyloggingontothe portalwith his DSC from anywhere.

5.4.6 Singletendershallnotbeopenedinthefirsttendercall.NegotiationonBids

5.5 For tender evaluation purpose, the bidder who has quoted the lowest total amount shall be considered as L1. If required, the TenderInvitingAuthoritymayresorttonegotiationwiththeL1Bidderonly,toexplorethe possibilityofbringingdownthehigh quoted rateitems if

5.5.1 anyto an acceptablelevel. For thispurpose,the high quoted ratesarethose forwhichthequoted ratesaremore than the current schedule of rates.(Modified)

Pricepreference

5.6 Price preference is applicable for this works only for approved Labour Contract Societies depending upon the clauseof registration,willbeeligiblefor apricepreferenceupto@10%over thequotedamountof thelowestbidderinthematterof deciding the successful lowest evaluated bidder.(Modified)

6. AwardofContract

6.1 SubjecttoClause5,theAgreementAuthoritywillawardtheContracttotheBidderwhosebidhasbeendeterminedtobe substantiallyresponsive and who has offered the lowest evaluated bid price.

6.2 In the eventuality of failure on the part of the lowest successful bidder to produce the original documents, or submit the performancesecurity,orenterinto agreementwiththeAgreementAuthoritywithinthespecifiedtimelimit,subjectedtoclause 3.6.6ofthissection,theBiddershallbedebarredinfuturefromparticipatinginallGovernmentBidsforthreeyearsandwillberecommendedforblacklistin g by the competent authority. In such cases, the work shall be re-tendered.

6.3 If thegrand total quoted amountbya bidderisless than75% (seventy-fivepercent)of the total estimated costput to tender, thensuchbidswillbeprocessedbasedonthedirectionscontainedinGovernmentorderGO(P)No-124/2016/Findated29-8-2016 or any subsequent modifications thereof. If two or more bidders quote the same lowest amount, the Tender Inviting Authority shallfinalize the tender through a transparent draw of lots. The Tender Inviting Authority along with his subordinate officers and the contractorswhohavequotedthelowestandequalamountsintheirbids(orcontractor'sauthorisedrepresentatives) shallbe present during the draw of lots.

6.4 TheratesforthevariousitemsquotedbytheBiddershallberoundedtotwodecimalplaces.Thedecimalplacesinexcessoftwowillbe discardedduring evaluation.

Employer'sRighttoAcceptanyBidandtoRejectanyorallBids

6.5 Notwithstanding Clause 6.1 to 6.4, the TenderInviting Authority reservesthe right toacceptorreject any Bid and to cancel the Bidding processand reject all Bidsatanytime prior to the award ofContract,withouttherebyincurringanyliabilityto the affectedBidderorBiddersoranyobligationtoinformtheaffectedBidderorBiddersofthegroundsfortheTenderInvitingAuthority 's action.

6.5.1 **NotificationofAwardandSigningofAgreement**

6.6 TheBidder,whoseBidhasbeenaccepted,shallbenotifiedofawardbytheAgreementAuthoritypriortoexpirationoftheBidvalidityperiodby facsimileor e-mail confirmed byletter sent through post.This letter (hereinafterand in theConditionsof Contractcalledthe"LetterofAcceptance")willstatethesumthattheEmployerwillpaytheBidderinconsiderationoftheexecution,completionandremedyin g defects, if any of the Works by the Contractor as prescribed by the Contract.

6.6.1 ThenotificationofawardwillconstitutetheformationoftheContract,subjectonlytothefurnishingofaPerformanceGuaranteeinaccordan ce with the provisions of Clause 7, within 14(fourteen) days of issue of letter of acceptance.

6.6.2 IfthesuccessfulbidderfailstofurnishtherequiredPerformanceGuaranteeasdetailedinclause7ofthissectionandenterintocontract,withi ntheabovestipulatedtime,furthertendaystimewillbeallowedattherequestofthebidder,forwhichthe successfulbidderhastoremitafineequalto1%oftheContractPriceasperhisquoteamountsubjecttoaminimumofRs.1000 and maximumof Rs.25,000.ThisfineshallberemittedinaStateTreasuryintherespectiveheadofaccountandtheoriginaltreasuryChelanshallbesubmittedatthe

6.6.3 office of the Agreement Authority before executing agreement.

6.6.4 UponthefurnishingbythesuccessfulBidderofthePerformanceGuarantee,theAgreementAuthoritywillpromptlynotifytheotherBidders that their Bids have been unsuccessful and refund the Bid Security.

6.6.5 Solicitor'sfee,ifany,tobepaidtotheLawOfficersofGovernmentforscrutinisingordrawingupofagreements-willbepaidandthesamerecovered from the successful bidder.

7. PerformanceGuaranteeandPerformanceSecurityDeposit

7.1 Thebidderwhosetenderisacceptedshallberequiredtofurnishthefollowing

7.1.1 PerformanceGuaranteetobesubmittedbeforeexecutingagreementandPerformance

7.1.2 Security Deposit to be recovered from running bills.

7.2 PerformanceGuaranteetobesubmittedattheawardofcontractshouldbe3%ofContractamountandshouldbesubmitted within14(fourteen) days of receipt of LOA (Letter of Acceptance) by the successful Bidder in the following form

7.2.1 AtleastFiftypercent(50%)ofPerformanceGuaranteeshallbeintheformofTreasuryFixedDepositinthenameofAgreement Authorityfor a period not less than 28 (twenty-eight) days after the completion of defect liability period and

7.2.2 balancePerformanceGuaranteeintheformofbankguarantee.BankGuaranteeistobesubmittedintheformatprescribedbytheEmployerinthebiddocument.BankGuaranteeshallbeunconditionalanditshallbefromanyNationalisedBank/ScheduledBanktobesubmittedbefore executing agreement and shall be valid till 28(twenty-eight) days after the completion of defect liability of the Work, in approved format. The Bank Guarantee on instalment basis with lesser period of validity shall not be accepted.

7.3 AfterthesubmissionofPerformanceGuaranteeanditsacceptancetheBidSecuritywillberefundedtothesuccessfulbidder.

7.4 PerformanceSecurityDepositshallbedeductedat2.5%fromrunningbills.TotalofperformanceGuaranteeis3%ofcontractamount (agreed PAC) while total of Performance Security Deposit is 2.5% of the value of work done.

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7.5 TheaboveGuaranteeamountsshallbepayabletotheEmployerwithoutanyconditionwhatsoever.

7.6 Foritemratecontracts,foreachitemintheBoQ,iftheratequotedbythebidderfallsbelow10%oftheestimaterateforthatitem,thentheadditionalperformanceguaranteeistoberequiredtobedepositedforthatitem.(Iftheratequotedbythebidderforanitemofworkis"x%" below estimatecost where x lies above 10%, the additional performance guarantee for that item ofwork isequal to (x-10)%of the estimateamountforthatitemofwork).Thetotalofadditionalperformanceguaranteeforthewholeworkisthetotalofindividualadditionalperformance guaranteeforeachitemofworkcalculatedasabove.50%ofadditionalperformanceguaranteeshallbeintheformofTreasuryfixeddepositandrestintheformofGuaranteeissuedfromanyNationalised/ScheduledBank/KeralaFinancialCorporationorany otherformsprescribedin

7.7 KeralaPWDmanual.AdditionalperformanceGuaranteeshallbe collected beforethe executionofagreementandshall be valid for a period notless than 28(twenty-eight)daysafterthe completionofworks.TheBankGuaranteeoninstallmentbasiswithlesserperiodvalidityshallnotbeaccepted.Thiswillbereleasedonlyaftersatisfactory completion of the work without any interest while passing the final contract bill.(Modified)

7.7.1 The successful bidder guarantees the successful and satisfactory completion of the infrastructure and other related works under the contract, as per the specifications and documents.

7.7.2 Thesuccessfulbidderfurtherguarantees that theinfrastructureandequipments providedandinstalled by himshallbe freefromall defects in material and workmanship and shall, upon written notice from theAgreementAuthority or theEngineer, fullyremedy free of expenses to the Employer, such defects as developedunder thenormal use ofthesaid infrastructurewithin the period of defect liability specified under clause 46 of the Conditions of Contract.

7.8 The Performance Guarantee is intended to secure the performance of the entire Contract. However, it is not construed as limiting the damages stipulated in the other clauses in the bidding documents.

7.9 The Agreement Authority shall be at liberty to deduct/appropriate from the Contract Performance Guarantee/Performance SecurityDepositsuch sumsasare dueand payablebythe contractor to the Employer asmaybedeterminedin termsof the contract,andtheamountappropriatedfromthePerformanceGuarantee/PerformanceSecurityDepositshallhavetoberestored by Contractor subsequently.

7.10 The Performance Bank Guarantee submitted in the form of Bank Guarantee will be returned to the Contractor without anyinterestafter28daysafterthe satisfactorycompletionofdefectliabilityperiod.HalfofPerformanceGuarantee inthe formof treasury fixed deposit can be released upon submission of an indemnity bond of equal amount by the Contractor indemnifying the Employer anyloss on account of thisafter the virtual completion ofthe Work. ThebalancehalfofPerformanceGuarantee inthe form of treasury fixed deposit will be released after the satisfactory completion of Defects Liability Period.

7.11 PerformanceSecurity Depositshall bearno interestand canbe released againstbankguaranteeon itsaccumulationof aminimumamountofRs.5lakhssubjecttotheconditionthattheamountofBGexceptthelastoneshallnotbelessthanRs.5 lakhs.This amount will be released after passing the final bill as in the case of refund of deposit.

7.12 Failure of the successful Bidder to comply with the requirements of sub-clause 7.2 shall constitute sufficient grounds for cancellation of the award and forfeiture of the Bid Security.

8. FirsttierQualityControlTests

8.1 Primaryresponsibilityofmaintainingqualityofallitemsofworkasperspecificationsandstandardsprescribedinthe PWDQualityControlManualvestswiththeContractor.TheContractorshallcarryoutallFirsttierQualityControltestsprescribedbythePWDQualityControl Manualathisownexpenseandsubmititalongwiththebillssubmittedforpayment.Iftheestimatedcostexceeds Rs.2Crores,theContractorshallestablish field laboratory at the site at his own expense.

9. CorruptorFraudulentPractices

9.1 ItisrequiredthatthebiddersobservethehigheststandardofethicsduringtheprocurementandexecutionofsuchcontractsInpursuance of this policy, it is defined, for the purposes of this provision, the terms set forth below as follows:

9.1.1 "Corruptpractice"meanstheoffering,giving,receivingorsolicitingofanythingofvaluetoinfluencetheactionofapublic official in the procurement process or in contract execution; and

9.1.2 "Fraudulentpractice"meansamisrepresentationoffactsinordertoinfluenceaprocurementprocessortheexecutionofa contract to thedetriment ofthe Employer and includescollusive practice among Bidders(prior to orafter bidsubmission) designedtoestablishbidpricesatartificialnon-competitivelevelsandtodeprivetheGovernmentofthebenefitsoffreeandopencompetition.

9.1.3 "collusivepractice"isanarrangementbetweentwoormorepartiesdesignedtoachieveanimproperpurpose,includingtoinfluenceimproperlythe actions of another party;

9.1.4 "Coercivepractice"isimpairingorharming,orthreateningtoimpairorharm,directlyorindirectly,anypartyorthepropertyofthepartytoinfluence improperly the actions of a party.

9.2 TheEmployerwillrejectabid,and/orawardifitdeterminesthattheBidderrecommendedforawardhasengagedinanyof the corrupt or practices in competing forthecontract in question andwilldeclarethe firmineligible, either indefinitely or fora stated period of time, tobe awarded a contract, if it at any time determines that the firm has engaged in corrupt or fraudulent practices in competing for, or in executing the contract.

10. Formsanddeclarations

10.1 VariousformsandformatsfordeclarationstobesubmittedbytheBidderforBidsubmissionareincludedinthePart-VI-FORMS.Biddersarerequestedtofillintherequiredformsanddeclarationsandsubmitthesamewiththeirbidsbothonlineandinhardcopy.

PartII-GENERALCONDITIONSOFCONTRACT

1. Definitions

1.1 EmployermeansGovernmentofKeralaonwhosebehalftheWorkistakenupforexecution.Employerwillcarryoutitsfunctionsand obligations through officers who have been delegated powers.

1.2 AcceptingAuthority/AgreementAuthoritymeanstheofficerwhohasinvitedandreceivedbidsfortheWorkandhasexecutedagreementforexecution on behalf of the Employer.

1.3 TechnicalSanctionAuthoritymeansthecompetentDepartmentalOfficerwhohasissuedthetechnicalsanctionforthe Work.

1.4 EngineermeansallEngineersinchargeoftheWorkfromChiefEngineertoAssistantEngineer.

1.5 FieldEngineermeansEngineersatSectionandSubDivisionlevelwhoaredirectlyinchargeofexecutionoftheWork.Engineer-

1.6 in-ChargemeanstheExecutiveEngineer,PWD,whoisresponsiblefortheexecutionoftheWork.

1.7 Engineer'sRepresentativemeansOverseerorothersubordinatestaffpostedtoassisttheEngineer,superviseexecutionandtomaintaindocuments.

1.8 ContractistheagreementbetweentheAgreementAuthorityandtheselectedBiddertoexecute,completeandmaintainthe Work.

1.9 Contractormeanspersonorpersonsorfirmswhohaveenteredintocontractfortheexecutionoftheworksubjecttotheeligibilityconditionsofthe NIT.

1.10 ContractPriceisthepricestatedintheLetterofAcceptanceandthereafterasadjustedinaccordancewiththeprovisionofthecontract.ContractDatadefinesthedocumentsandotherinformationwhichcomprisethecontract.

1.11 BidorTendermeanstheContractor'spricedoffertotheEmployerfortheexecutionandcompletionoftheWorkandtheremedyingofanydefectstherein accordancewiththeprovisionsofContract.

1.12 BillofQuantitiesmeansthepricedandcompletedBillofQuantitiesformingpartofthebid.

1.13 Specificationmeanstheinstructions,provisions,conditionsanddetailedrequirementscontainedinthetenderdocumentswhichformpart of the contract and any modification or addition made or approved by the Accepting Authority.

1.14 DrawingsmeansalldrawingscalculationsandtechnicalinformationrelatedtotheWorkprovidedbytheEngineerfromtimetotimetotheContractor or under the Contract.

1.15 LetterofAcceptanceorselectionnoticemeansintimationissuedbytheAcceptingAuthorityasformalacceptanceofBidbytheEmployer.Dateofcommencementmeansthedateofhandingoverthesitetothe Contractor.

1.16 TimeofcompletionmeanstheperiodallowedforcompletingallworksrelatedtotheWorkincludingcarryingoutandpassingtherequired

1.17 qualitycontroltestsprescribedbytheQualityManualpublishedbytheDepartment.

1.18

1.19 Dateofcompletionshallbethedateofissueofvirtualcompletioncertificate.Thevirtualcompletioncertificateshallbeissuedbythe Engineer-inchargewithin15daysofthefinalmeasurementandshallspecifytheworkhasbeencompletedsatisfactorilybythecontractorandtakenoverbytheDepartment.In caseofdefectsliabilityperiodtheworksshallbefinallytakenover after completionofdefectsliability period.

1.20 QualitycontroltestsmeansallrelevanttestsprescribedbythePWDQualityControlManualapplicabletotheWorkwhich are to be made and passed before each part bill is presented for payment.

1.21 ADefectisanypartoftheworknotcompletedinaccordancewiththecontract.

1.22 DefectsLiabilityPeriodistheperiodnamedinthecontractdataandcalculatedfromthedateofcompletion.Plantis

1.23 anyintegralpartoftheworkswhichistohaveamechanical,electrical,electronicorbiologicalfunction.Equipmentmeans

1.24 contractor'smachinery and vehicles brought temporarily to site for execution of the Work.

1.25 SitemeanstheplacesprovidedbytheEmployerwheretheWorkistobeexecuted.Itmayalsoincludeanyotherplaceorplacesasformingpartof the site, mentioned in the Contract.

1.26 Materialsmeansallsupplies,includingconsumablesusedbythecontractorforincorporationintheworks

1.27 WorksarewhattheContractrequiresthecontractortoconstruct,installandrunovertotheEmployerasdefinedinContract Data.

1.28 Daysarecalendardays,monthscalendarmonths.

1.29 "Codes"shallmeanthefollowing,includingthelatestamendments,and/orreplacements,ifany:

a. BureauofIndianStandards/IndianRoadsCongressrelevanttotheworksundertheContractandtheir specifications. IfIndianStandardsarenotavailableBritishStandardsorAASHTOStandardsaretobefollowed.

b. OtherInternationallyapprovedStandardsand/orrulesandregulationstouchingthesubjectmatteroftheContract.

c. Anyotherlaws,rules,regulationsandActsapplicableinIndiawithrespecttolabour,safety,compensation, insuranceetc.

1.30 Wordsimportingsingularonlyshallalsoincludethepluralandvice-versawherethecontextsorequires.

1.31 Wordsimporting"Person"shallincludefirms,companies,corporations,andassociationsorbodiesofindividuals,whetherincorporatedor not.

1.32 Termsandexpressions,notdefinedherein,shallhavethesamemeaningasareassignedtothemintheIndianContractAct,andfailingthatintheGeneral Clauses Act.

1.33 "GovernmentApprovals"shallmeanallpermits,licenses,authorisations,consents,clearances,decrees,waivers,privileges,approvalsfromandfilingwithgovernmentinstrumentalitiesnecessaryforthedevelopment,constructionandoperationoftheWork.

1.34 Measurement Books: The "measurement books" shall be defined as the books with seriallynumberedandmaintainedduringthecurrencyoftheWorktorecordallmeasurementsqualifyingforpayment.Themeasurementbookshall beintheformgiveninAppendix2100E1ofPWDManualandistheoriginalrecordofactualmeasurements.Exceptforquantitiesofworkpaidonlevelbasis,allmeasurementsshallberecordedinthemeasurementbook.Formeasurementstakenonlevelbasis,thelevelsshallbeentered in properlynumbered field booksasin Appendix-2100E2ofPWDManual.Allmeasurementbooksand FieldBooks shall be certified by the Engineer-in-Charge before entering measurements.

2. Scope,extent,intentetc

2.1 Scope:ThegeneralcharacterandthescopeoftheWorkshallbeasillustratedanddefined intheDrawings,Specifications, Schedule of Rates and other Contract Documents.

2.2 Extent: TheContractorshall carryoutandcompletetheWorkundertheContractineveryrespect,andhisworkshall include the supplyofalllabour,equipment,materials,plantandmachinery,tools,transportation,formwork,scaffoldingandeverything else necessary for the proper execution and completion of the Work in accordance with the Contract Documentsandtothe satisfactionoftheEngineer-incharge.TheContractorshallbefullyresponsibleandliableforeverythingandallmattersinconnectionwithorarisingout oforbeingaresult or consequence of his carrying out or omitting to carry out anypart of the Work. WhereanypartsoftheWorkmaybeexecutedbySub-Contractors,suchresponsibilityandliabilityoftheContractorshallcover and extend to the work of all such Sub-Contractors.

2.3 Intent: The Contract Documents are complementary and what is called for by any one shall be binding as if called for by all. Wherever it is mentioned in the Contract Documents that the Contractor shall perform certain work or provide certain facilities, it is understoodthattheContractorshalldosoathisowncost.Materialsorworkdescribedinwordswhichsoappliedhaveawell- known technical or trade meaning shall be held to refer to such recognised standards as are applicable.

3. SITE

3.1 Contractortosatisfyhimselfaboutsiteconditions:TheContractorensuresthatbeforesubmittingbidsfortheWorktheContractorhasvisitedtheSiteandsatisfiedhimselfabouttheSiteconditionsforconstructionandforlogisticsandsmoothflowofworkmenandmaterialsaswellaspermissionfromAuthoritiesforthispurpose.TheContractorhasexaminedtheSiteandtakennoteofcharacterofthesoilandoftheexcavations,thecorrectdimensionsoftheWork,andfacilitiesforobtaininganyspecialarticlescalledforintheContractDocuments.TheContractorhasalsomadeitsownassessmentandobtainedallinformationontheSiteconstraintsandonall mattersthatwillaffecttheexecution,continuationandprogress,andcompletionoftheWorks.Anyextraclaimsorextensionoftimemade in consequenceofanymisunderstanding,incorrectinformationonanyofthesepointsoronthegroundsofinsufficientdescriptionor informationshall not be entertained or allowed at any stage.

3.2 Itwillbetheresponsibilityofthecontractortoobtainnecessarylandforstackingthematerialsandestablishingplantsandequipmentsforcarrying out the work, if the specified site of work is of less extents.

3.3 Land requiredfor theworkmaynotbeavailablein full.Furtherlandwill behandedover asandwhen itisreceivedfrom the Land AcquisitionAuthority. Thecontractorshallnot beeligibleforanyextraorenhanceclaimsorforcompensationduetothenon-availability of entire land. He shall also not be eligible for any claims or compensative for the non- completion of the work within the agreed time and for continuing the work in the agreed extended period of completion due to the above reasons.

3.4 In the case of any delay in shifting the utility services like Telephone posts, Electric posts, Electric over head line and underground cables, water lines etc. by the utilityDepartment, theEmployershall not in anyway be liable to pay damageson account of this delay, instead a proportionate extension of time for completion of work will begrantedindeservingcases on application by the Contractor.

3.5 Accesstositebythecontractor:TheaccesstotheSitewillbeshownimmediatelyonawardoftheContracttotheContractorandtheSiteshallbe shared with other Contractors and Sub-Contractors as applicable. The Contractor shall upon beinggivensuchaccesscommencetheWorkanddiligentlyproceedwiththeexecutionoftheWorkinaccordancewiththeContractDocuments.AccesstotheSitebytheContractorshallbemerelyalicenceforcarryingouttheconstructionoftheWorkundertheContract,andtheContractorshallnotbyhisbeingallowedsuchentryontheSite,acquireanyright,lienorinteresteitherintheWorkcarriedoutbyhimundertheContractoranythingappurtenantorattached theretoortoany part ofthe Site,andhisclaim will only be in the nature of money found due and payable to him in accordance with thecertificatesissued by the Engineer-in-charge undertheprovisionscontainedherein.TheWorkshallbefreefromallliens,chargesorclaimsofwhatsoevernaturefromanypartyotherthantheEngineer .TheEngineershallhavealienoverallworkperformedbytheContractor,Sub-ContractorsandVendorsandalsoforthematerialsand equipmentbrought on Site by them.

3.6 The Department does not undertake to construct or make available any approach road or other means of approach to the proposed work site and the contractor shall get acquainted with theavailable meansofapproaches to theproposed siteand quoteforthevariousitems.TheDepartmentshallnotbeliableforanyclaimraisedlateronthepleaofnon-availabilityornon-accessto the site

3.7 Treasures,AntiquitiesfoundarepropertyofEmployer:Allfossils,antiquitiesandotherobjectsofinterestorvalue,whichmaybefoundonthe Site at the commencement or during the progress of theWork, shall be the property of the Employer. The Contractor shall carefully takeoutandpreserveallsuchfossils,antiquitiesandobjectsandshallimmediatelydeliverthesameintheirdiscoveredstateintothepossessionof the Employer.

4. Natureofcontract

4.1 The Contract shall be an item rate Contract wherein the item rates are for the finished work as per the Contract Documents. The estimated cost is tentative based on the estimated quantities and is liable to change during execution as per the actual quantities executed and approved by the Engineer-in charge. The Contractor understands and agrees that the amount payable is assessed on a re-measurable basis in accordance with the BOQ rates. The Contract Price shall include payment for the supply of all labour (including payment to his Sub-Contractors), equipment, materials, plant and machinery, tools, transportation, formwork, scaffolding, works under this contract and all applicable taxes, duties, octroi, levies, royalties, fees, insurance premiums, contributions towards employees benefits including Employee State Insurance and ProvidentFunds,arrangement of power and water and all services and activities constituting the Scope ofWork defined in the General Conditions of Contract.TheContractPriceshallalsoincludeexpensesfortheContractor'ssiteestablishment,infrastructure,overheads& profits, establishing site laboratories(for works costing more than Rs. 2 Crores), first tier quality control tests, expenses for all rectifications including that necessitated as a result of bad quality and all other charges required by the Contract to be borne by the Contractor and necessary for the proper execution and completion of the Work under the Contract, in conformity with the Contract Documentsand according to the best engineering and construction practices and tothesatisfactionoftheEngineer-in-charge. Goods & Services tax (GST), wherever legally applicable, shall be paid by the contractor to the concernedAuthoritiesand the Employer shall pay the applicable GST to the Contractor at the time of settlement of bills for the works done as per this contract. (Modified)

4.2 No adjustmentofthe prices shall be allowedduring theperiodofthecontract for workswhichhave aperiod of completion up to 18(eighteen) months for any reasons whatsoever and the prices quoted by the Contractor shall be deemed to be fixed for the entirecontractperiod.Forworkswhichhaveaoriginalperiodofcompletionupto18(eighteen)months,andifthetimeof completion is extended beyond18(eighteen)monthsinaccordancewithclause19ofGCC,thereshallnot be anyescalation in theprice.Forworkswhichhave a time ofcompletionmore than18(eighteen))months, price adjustment willbe permittedsubjected to the provisions in clause 40 of GCC.

5. Notices,Fees,Byelaws,Regulations,etc

TheContractorshallcomplywithallapplicablelawsandGovernmentActsincludingtheByelawsorregulationsofCentraland/or LocalAuthoritiesrelatingtotheWorkinsofaraslabour,construction,fabricationandinstallationactivitiesareconcerned,andheshallobtainfromtheCent ral and / or Local Authorities all permissions and approvals required for the plying of trucks, construction machinery etc., and alsoforconstructionoftemporaryoffices,labourcamps,batchingplant,hotmixplant,basecamp,storesandothertemporarystructuresinconnectio n with the Work, and the Contractor shall give all noticesand payall fees andchargesthatareandthatcanbedemandedbylawthereunder.IntheContractPricefortheWork,theContractorshallallow for such compliance and work, and for the giving ofall such notices, and shall include the payment of all such feesand charges.

Thecontractorisboundtofollowrelevant KeralaState Governmentorders, circulars, KeralaPWDManualsetcprevailingatthetime ofcontractconnectedtotheexecutionoftheworkunderthecontract eventhoughspecificreferencetothesearenot providedelsewherein the contract conditions.

6. Licensesandpermits

TheContractorshalldirectlyobtainalllicencesandpermitsforthematerialsunderGovernmentcontrol,andthoserequiredtobeobtainedbytheContractorfort heexecutionoftheWork.TheContractPriceshallincludealltransportationchargesandtheotherexpenses thatmaybeincurredinthisconnection.

7. Contractdocuments

Thefollowingdocumentsshallconstitutethe Contractdocuments:

a. ArticlesofAgreement,
b. NoticeInvitingTender
c. LetterofAcceptanceofTenderindicatingdeviations,ifany,fromtheconditionsofContractincorporatedintheTenderdocumentissued to the bidder and/or the Bid submitted by the bidder,
d. ConditionsofContract,includinggeneraltermsandconditions,instructionstobidders,additionaltermsandconditions,technicalter msand conditions, erection terms and conditions, special conditions, if any etc. forming part of the Agreement,
e. Specifications,whereitispartofTenderDocuments,
f. Scopeofworks/Billsofquantities/scheduleofworks/quantitiesand
g. ContractDrawingsandfinalisedworkprogramme.

After acceptance of Tender the Contractor shall be deemed to have carefully examined all Contract Documents to his satisfaction.Ifheshallhaveanydoubtastothemeaningofanyportionofthe ContractDocuments,heshallbeforesigningtheContract, set forth the particulars thereof, and submit them to the Agreement Authority in writing in order that such doubt may be removed.TheAgreementAuthoritywillprovidesuchclarificationsasmaybenecessaryinwritingtotheContractor.Any information otherwise obtained from the Employer or the Engineer shall not in any way relieve the Contractor of hisresponsibility tofulfil his obligations under the Contract.

TheContractorshallenterintoaContractAgreementwiththeAgreementAuthoritywithin14(fourteen)workingdaysfrom the dateof'Acceptanceof Tender' or withinsuchextended time asmaybe grantedby theAgreementAuthority.Thedateof despatchofLetterofAcceptancebyregisteredpostshallbethedateofAcceptanceofTender.TheperformanceGuaranteefor the proper fulfilment of the Contract shall be furnished by the contractor in the prescribed form within fourteen(14)daysof 'AcceptanceofTender'.TheperformanceGuarantee shall beasperterms prescribedin theclause7 of"InstructionstoBidders"of this Tender.

Theagreement,unlessotherwiseagreedto,shallbesignedwithin14(fourteen)workingdaysfromthedateofAcceptanceofTender,atthe officeof theAgreementAuthority onadateand time tobemutuallyagreed. TheContractorshallprovide required details forsigning of the contract like, performance guarantee in copies as required, appropriate powerofattorneyandotherrequisitematerials.Incaseitisagreedmutuallythatthecontractistobesignedbeyondthestipulatedtimeasspecifiedinclau se 6.6.3 of section Instructions to Bidders, the Bid SecurityorEMDsubmittedwiththetenderwillhavetobeextendedaccordingly.

AfterthesigningoftheagreementwiththeAgreementAuthorityandtheContractor,twocertifiedcopiesoftheagreement are to be made.Original shall bekeptwith the Agreementauthorityand theContractor shallbeprovidedwithonecertified copy and the other certifiedcopy shall bekeptwith the Engineer-inCharge.Noneofthesedocumentsshall beused foranypurpose other than this Contract and the Contractor shall ensure that all persons employed for this Contract strictly adhere to this.

ThelawsapplicabletothisContractshallbethelawsinforceinIndia.

8. Assignmentandsublettingofcontract

8.1 TheContractorshallnotassignthisContract.TheContractorshallnotsub-lettheContractoranyparttthereofotherthanforsupplyofrawmaterials,forminorworksoranyspecialtypeofworksforwhichmakesareidentifiedintheContractorasapprovedbytheEngineer-incharge.SuppliersoftheequipmentnotidentifiedintheanychangeintheidentifiedsuppliershallbesubjecttoapprovalbytheEngineer.Theexperiencelistofsuchequipmentvendorsunderconsiderationbytheforthiscontractshallbefurnishedtotheforapprovalpriortoprocurementofallsuchitems/equipments.Suchassignment/sub-lettingshallnotrelievetheContractorfromanyobligation,dutyorresponsibilityunderthe.Anyassignmentasabovewithoutpriorwritten approval of Engineer-in Charge shall be void.

9. Patentrightsandroyalties

9.1 Royalties and fees for patent covering materials, articles, apparatus, devices, equipment or processesused in theworks shall bedeemedtohavebeenincludedintheContractPrice.TheContractorshallsatisfyalldemandsthatmaybemadeatanytimeforsuchroyaltiesorfeesandhealoneshallbeliableforanydamagesorclaimsforpatentinfringementsandshallkeeptheEmployerindemnifiedinthatregard.TheContractorshall,athisowncostandexpense,defendallsuitsorproceedingsthatmaybeinstitutedforallegedinfringementofanypatentinvolvedintheworks,and,incase ofan awardofdamages,theContractor shallpayforsuchaward.Intheeventofanysuitorotherproceedingsinstitutedagainsttheemployer,thesameshallbedefendedatthecostandexpenseoftheContractorwhoshallalsosatisfy/complyanydecree,orderorawardmadeagainsttheEmployer.Butitshallbeunderstoodthat no such machine, plant, work, material or thing foranypurpose oranymannerother than that for which they have been furnished

andinstalledbytheContractorandspecifiedunderthesespecifications.FinalpaymenttotheContractorbytheEmployerwillnot be madewhile any suchsuit orclaim remains unsettled. In theeventany apparatusorequipment, or any matter thereof furnished by the Contractor, is in such suit or proceedings held to constitute infringement, and its use is enjoined, the Contractor shall, at his option and at his own expense, eitherprocure for theEmployer, the right tocontinue use of said apparatus, equipmentorpart thereof, replace it with non-infringing apparatus or equipment or modify it, so it becomes non-infringing.

10. Variationinquantity

10.1 TheEmployer/Engineer-inchargereservestherighttovarythequantitiesofitemsorgroupsofitemstobeorderedasspecifiedintheBillofquantities,asmaybenecessary,duringtheexecutionoftheContract.Thefollowingaredefinedforthepurposeofthisclause(Modified)

AbnormallyHighQuotedRate(AHQR)-Itemsforwhichthequotedrateishavingdeviationofmorethan25%overthecorrespondingrateinthetechnicallysanctionedestimate.

AbnormallyLowQuotedRate(ALQR)-Itemsforwhichthequotedrateishavingadeviationoflessthan25%belowthecorrespondingrateinthetechnicallysanctionedestimate.

ForAHQRitems,theContractorisboundtoexecuteuptotheagreedquantity.Incaseofvariationovertheagreedquantity,theadmissiblerateforthexcessquantityshallbelimitedtothetechnicallysanctionedestimateratemodifiedbytheoverallexcess/tenderdeductionsubjectedtoamaximumofthelocalmarketrateprevailingatthetimeoforderingtheexcessquantity.

Forotheritems,theContractorisboundtoexecuteupto25%overtheagreedquantity.Incaseofvariationover25%oftheagreedquantity,theadmissiblerateforthexcessquantityshallbelimitedtothetechnicallysanctionedestimateratemodifiedbytheoverallexcess/tenderdeductionsubjectedtoamaximumofthelocalmarketrateprevailingatthetimeofordering theexcessquantity.

Noincreaseshallbepermittedwithintheoriginalcontractperiodandthereinexcessofmarketrateshallnotbegivenunder anycircumstances.Uponrevisionshallbeconsideredonlyinexceptionalcaseswhichshallbeapprovedbytheforthenhancedrates based on the recommendation ofthe Engineer.

Subjectedtoclause10.1.3and10.1.4,thedepartmentreservestherighttoarrangesuchvariedquantitiesofworksthroughaseparatecontract.

Forpercentageratecontracts,incaseofvariationinquantitiesover25%ofagreedquantity,nochangeinratewillbe permitteddunderany circumstances.

10.2 The Contractor is bound to carry out sinking of wells increase up to 10 meter (ten meter) extra depth beyond the estimated designdepthandrateforwhichshallbepaidasperscheduleofrateandextraitemconditionsincasesuch itemsare includedin the contract. In case of pile foundation, precast or cast in site, the same conditions as above shall apply.

11. Deductionsfromcontractprice

11.1 Allcosts,damagesorexpenses,whichtheEmployermayhavepaid,forwhichundertheContracttheContractorisliable, willbeclaimedbytheEmployer. The Engineer-inchargeshall deduct theamount, fromany moneysdue orbecoming dueby himto theContractorunder theContractor maybe recoveredbyactionsoflaworotherwise,iftheContractorfails tosatisfy the Employer of such claims.

12. Insurance

12.1 TheContractorshallprovide,inthejointnamesoftheEmployerandtheContractor,insurancecoversintwoparts,i.e.(a)fromthestartdatetothecompletiondate,and(b)fortheDefectLiabilityperiod,intheamountsanddeductiblesstatedintheContractData forthefollowing events which are due to the Contractor's risks:

a. lossofordamagetotheWorks,PlantsandMaterials;
b. lossofordamagetoEquipment;
c. lossofordamageofproperty(exceptttheWorks,Plant,MaterialsandEquipment)inconnectionwiththeContract;
d. Workmancompensationpolicytocoverpersonalinjuryordeath.

12.2 PoliciesandCertificatesforinsuranceshallbedeliveredbytheContractortotheEngineer'sapprovalbeforetheStartDate. All such insurance shall provide forcompensationtobe payable in the types andproportionsof currenciesrequired to rectifythe loss or damage incurred.

12.3 IftheContractordoesnotprovideanyofthepoliciesandcertificatesrequired,theEngineer-inchargemayeffecttheinsurancewhichtheContractorshouldhaveprovidedandrecoveranysuchpremiumswhichtheEmployer haspaidfromthepaymentsotherwiseduetotheContractoror,if nopaymentisdue,thepaymentofthepremiumsshallbeadebtdue.

12.4 Alterationstothetermsofinsuranceshallnotbemadewithouttheapprovaloftheemployer.Both

12.5 parties shall comply with any conditions of the insurance policies.

12.6 Premiumforallinsurancepoliciesshall bepaidandbornebytheContractorandshallnotbereimbursable.TheContractor shall provide totheEngineer-in-Chargeall policiesofinsuranceinoriginal. Thesepoliciesshallbefullyexecutedandshallstate that the policies cannot be cancelled until completion of the Contract or completion of defects liability period and any extensionsthereof. The Contractor shallobtainsimilarpoliciesfromallSub-Contractorsandtherebyassumeresponsibilityforanyclaimsorlosses totheEmployerandEngineer- in-charge resulting from failure of any of the Sub-Contractors to obtain adequate insurance protectioninconnectionwiththeirworkandshallindemnifyandkeepindemnifiedtheEmployerandEngineer-in-chargeincluding their employees, officers, servants, agents and any other person moving in the premises, accordingly.

12.7 Unlimited liability: In addition to the liability imposed by law upon the Contractor for injury (including death) topersonsor damage to property by reason of the negligence of the Contractor or his agents, which liability is not impaired or otherwise affected hereby, the Contractor hereby assumes liability for and agrees to save the Employer and Engineer-in-Charge includingtheir employees, officers, servants, agentsandany otherpersonmoving inthepremises harmless andindemnifies themfromevery expense, liability orpayment by reason of any injury (including death) to persons or damage to property suffered through any act or omission of the Contractor, his employees,agents, servants, workmen, suppliersorany of hisSub-Contractors,or any person directly or indirectly employed by any of them or from the conditions of the Site or any part of the Site which is in the control of the Contractor orhisemployeesoranyofhisSub-Contractors,orany onedirectlyorindirectlyemployedbyeitherofthemorarising in any way from the Work.

12.8 All insurance claims, payable by the insurers, shall be paid to the Employer which shall be released to the Contractor in instalmentsasmaybecertifiedbytheEngineer-in-chargeforthepurposeofrebuildingorreplacementorrepairoftheworks and/or goods destroyed or damaged for which payment was received from the insurers.

13. Liabilityforaccidentsanddamages

13.1 UndertheContract,theContractorshallberesponsibleforanylossordamagetotheworksunderthiscontractuntiltheworksare completedand taken over in accordance with the Contract.

14. TimeofCompletion

14.1 Time is the essence ofthecontract. The time allowed for carrying out theWork as entered in the tendershallbe strictly observed by the Contractorand shallbe deemed to beof theessenceof theContractandshallbereckoned fromthedateof handing over the site to theContractor.TheWorkshallproceedwithduediligenceuntilFinalCompletion.TheContractorshallprepareaConstructionProgrammewith time schedule keeping in view the completion period stipulated for specific portionsof the WorkandalsotheoverallcompletiontimeandsubmitthesameftheapprovaloftheTenderingauthorityafterthereceiptofletterofacceptanceorselection notice. The approved work programmeshall bemade as part ofthe Contract agreement. TheContractorshallcomplywiththis timeschedule.IntheeventoftheContractorfailingtocomplywiththeoverallandindividualmilestonescontainedinthetimeschedules,heshallbeliable to pay liquidated damages as provided for in this Contract.

14.2 CompletionPeriod:TheDateofcommencementwillbethedateofsitehandoverorthe10thdayafteragreementwhichever is earlier. The Milestone dates shall be those specified in the Contract Data or as mutually discussed and agreed. Incase the Contractor failsto meetthe above stipulated completionperiod,Contractor shallbeliabletopaytotheEmployer,liquidated damages as specified in Clause 15 of General Conditions of Contract. In addition to his own work in the overall time period, the Contractor shall provide for the works of other Sub- contractors and Vendors, including those employed directly by the Employer / Engineer-in-Charge.

Thecontractorhastotakeoverchargeofthesitebysigningtheacknowledgementformandcommencetheworkwithin10daysfromthedate of execution of agreement.

14.3 Ifthesiteisnottakenoverbythecontractorbysigningtheacknowledgementform,Engineerwillforwardthefilledupformbyregistered/speedpost,recordingthedateoftakingoverasthetenthdayfromthedateofexecutionofagreementunlessotherwisedecided.

14.4 Thecontractorhastoresubmittheacknowledgementformdulysignedwithinthreedaysofreceiptandcommencethe works.

14.5

14.6 It shallbedeemed thatthe contractorhas takenoverchargeof the siteon the tenthday fromthe dateofagreement irrespectiveof whether he has received the acknowledgement by post or has resubmitted it with his signature. The work will be terminated at his risk and cost if the contractor does not resubmit the acknowledgement form and commence the work as required under 14.3.

14.7 Recoverytowardsriskandcostwillbemadefromtheperformanceguarantee,ifthecontractordoesnotturnuptotake charge of the site within the time prescribed under 14.3, he shall be demoted to a lower category as per the rules for registration of contractors.

14.8 TheworksshallbecarriedoutinaccordancewiththeprogrammesubmittedbythecontractorandagreedtobytheagreementAuthorityatthe time of executing agreement and updated subsequently with the approval of the Agreement Authority.

15. Liquidateddamages(LD)

15.1 If the Contractor fails to maintainthe required progress in termsof the agreed time and progress chart or to complete thework andclear thesite on orbeforethe date ofcompletion ofContractorextended date ofcompletion,he shall without prejudice to any other right or remedy available under the law to the Employer on account of such breach, pay as compensation, Liquidated damages @ 1(one) percent of the contract price per week of delay or part thereof. The aggregate of such compensation / compensationsshall notexceed 10(ten) percentofthecontractvalue.Thiswill alsoapply toitemsor groupof itemsforwhich separateperiodofcompletionhasbeenspecified.Theamountofcompensationmaybeadjustedorsetoffagainstanysum payable to the contractor under this or any other contract with the Employer.

15.2 TheAgreementAuthority,ifsatisfied,thattheworkcanbecompletedbytheContractorwithinareasonabletimeafterthe specifiedtimeofcompletion,mayallowfurtherextensionoftimeatitsdiscretionasperclause-19.IntheeventofextensiongrantedbeingwithLiquidatedDamages,theEmployerwillbeentitledwithoutprejudicetoanyotherrightorremedyavailablei nthatbehalf,torecoverfromtheContractorasagreeddamagesequivalentto@1(one)percentofthecontractpriceperweekofdelayorpartthereof.

15.3 Ifthecontractorachievesbalancemilestones,eventhoughhehasfailedtoachieveinitialmilestones,andtheworkhasbeencompletedinthe specified/original time of completion, the Employer may release the already levied liquidated damagesat his sole discretion.

15.4 TheAgreementAuthority,ifnotsatisfiedthattheworkscanbecompletedbytheContractorandintheeventoffailureonthepartoftheContracto rtocompleteworkwithinfurtherextensionoftimeallowedasaforesaid,shallbeentitled,withoutprejudicetoanyotherright,orremedy available in that behalf, to terminate the contract.

15.5 TheAgreementAuthority,ifnotsatisfiedwiththeprogressofthecontractandintheeventoffailureoftheContractortorecoupthedelaysin the mutually agreed time frame, shall be entitled to terminate the contract.

15.6 Intheeventofsuchterminationofthecontractasdescribedinclauses15.4and15.5orboth,theEmployer,shallbeentitled to recover LiquidatedDamagesuptotenpercent (10%)ofthecontractvalueandforfeit thePerformanceGuaranteeandSecurityDeposit madeby the Contractor besides getting the work completed by other means at the riskand cost of the Contractor.

15.7 The Employer may waive the payment of compensation in the case of contracts where milestones are fixed, depending upon meritofthecase,onrequestreceivedfromtheContractoriftheentireworkiscompletedwithinthedateasspecifiedinthe Contract or as validly extended without stipulating any penalty.

16. BonusfortimelyCompletion

16.1 BonuswillbepaidtothebidderattherateofI%oftheestimatedPACoftheworksubjecttoamaximumofRs.4lakhs (fourlakhs)forcompletionofworkwithintheoriginaltimeofcompletionincaseofworkswhichexceedTSpowerofSuperintendingEngineer.Theamount of bonus, if payable, shall be paid along with final bill after completion of Work.

17. Contractor'sdefault

17.1 IftheContractorshallneglecttoexecutetheworkswiththediligenceandexpeditionorshallrefuseorneglecttocomplywithanyreasonableordersgiventohim,inwritingbytheEngineerinconnectionwiththeworksorshallcontravenetheprovisionsoftheContract,theAgreementAuthoritymaygivenoticeinwritingtotheContractortomakegoodthefailure,neglectorcontraventioncomplainedof.ShouldtheContractorfail to complywiththenoticewithinthirty(30)daysfromthedateofservice thereof,thenandinsuchcasetheAgreementAuthorityshallbeatlibertytoemployotherworkmenandforthwithexecutesuchpart ofthe worksasthe Contractor mayhaveneglected to dooriftheAgreementAuthorityshall thinkfit,itshallbelawfulforhim, withoutprejudiceto any other right he may have under the Contract, to take the works wholly or in part thereof and in that event the Agreement Authority shall havefreeuseofallContractor'sequipmentthatmayhavebeenatthetimeonthesiteinconnectionwith theworkswithoutbeingresponsibletotheContractor for fairwearandtear thereofandtotheexclusionofanyrightofthe Contractoroverthesame,andtheAgreementAuthorityshallbeentitledtoretainandapplyanybalancewhichmayotherwisebedue on the ContractbyhimtotheContractor,orsuchpartthereofasmaybenecessary,thepaymentofthecostofexecutingthesaid partoftheworksor ofcompleting theworksasthe casemay beplusafine of20percentofthe valueofworksocarriedout.If thecostofcompletingtheworksorexecutingapartthereofasaforesaidplusafineof20percentofthevalueofworksocarriedoutshallexceedthebalancedu etotheContractor,theContractorshallpaysuchexcess.Suchpaymentofexcessamountshallbeindependentoftheliquidateddamagesfordelay, whichtheContractorshallhavetopayifthecompletionofworksisdelayed.Inaddition,such actionbytheAgreementAuthorityasaforesaidshallnotrelievetheContractorofhisliabilitytopayliquidateddamagesfordelayincompletionofworksasdefinedinclause15.TheterminationoftheContractunderthisclauseshall not entitle theContractor to reducethevalueoftheperformancebankguaranteenorthetimethereof.Theperformanceguaranteeshallbevalidforthefullvalueandforthe full period of the Contract including Defects Liability Period.

17.2 IftheContractorfailstocompletetheworkandtheagreementiscancelled,theamountduetohimonaccountofworkexecutedbyhim, ifpayable,shallbepaidtohimonlyafterduerecoveriesaspertheprovisionsoftheContractandthattooafteralternativearrangementstocomplete the work has been made.

18. DelaysbyEmployerorhisauthorisedagent

18.1 In case the Contractor's performance is delayed due to any act of omission on the part of theEmployeror hisauthorized agents, thentheContractor shallbe given dueextensionoftime forthecompletionoftheworks,tothe extentsuch omissionon thepartoftheEmployerhascauseddelayintheContractor'sperformanceofhiswork.Regardingreasonablenessorotherwiseof theextensionof time,thedecisionoftheEngineershallbefinal.Thereasonsforsuchdelaysshallberecordedinthehindranceregisterasperclause 19.2andshallbecertifiedbytheFieldEngineersinchargeofthework.

18.2 Anydelayinfinalisationofmutualagreementinregardtoanyof theContractor'sclaimagainstanyactofomissiononthepartoftheEmployeror his authorised agentsshould not result in any work stoppage /further delay on the part of the Contractor.

19. Extensionoftimeofcompletion

19.1 Onhappeningofanyeventscausingdelayasstatedhereinafter,theContractorshallintimateimmediatelyinwritingtotheEngineer-in-charge:

a. duetoanyreasonsdefinedasForceMajeure.
b. non-availabilityofstoreswhicharetheresponsibilityoftheEmployertosupply.
c. non-availabilityorbreakdownoftoolsandplanttobemadeavailablebytheEmployer.
d. Inclementweatherconditions
e. delayonthepartoftheContractorsortradesmenengagedbytheEmployernotformingpartoftheContract,holdingupfurtherprogress of the work.
f. non-availabilityofdesignordetaileddrawingsorspecificationstime,whicharetobemadeavailablebytheEmployerduringprogressofthework.
g. anyothercauseswhich,atthesolediscretionoftheEmployerisbeyondthecontroloftheContractor.

19.2 A"HindranceRegister"shallbemaintainedbytheDepartmentalOfficer(notbelowtherankofAE)atsitetorecordthevarioushindrances, asmentionedunderitem19.1above,encounteredduringthecourseofexecution.Theentriesmadeinhindranceregisteraretobeapprovedbythe Engineer in charge. Contractor ispermittedtosigntheregisterandrecordhis remarks.

19.3 The Contractor may request the Agreement Authority in writing for extension of time within 14(fourteen) days of happening of such event causing delay stating also, if practicable, the period for which extension is desired. The Agreement Authority may, consideringtheeligibilityoftherequest,giveafairandreasonableextensionoftimeforcompletionofthework.Suchextension shall be communicated to the Contractor in writing by the Agreement Authority through theEngineer- in-chargewithin onemonth of the date of receipt of such request. The Contractor shall howeveruse his best effortsto preventormakegood the delay by puttinghis endeavoursconstantly asmaybe reasonably requiredofhimto thesatisfaction of theEngineer-in-charge. Relatedentriesin the hindrance register shall also to be submitted along with the request for extension.

19.4 When the period fixed for the completion of the Contract is about to expire, the question of extension of the Contract may be considered at the instance of the Contractor or the Employer or the both. The extension will have to be by both party's agreement, expressed or implied.

19.5 IncasetheContractordoesnotapplyforgrantofextensionoftimewithin07(Seven)daysofhindranceoccurringinexecutionofthework and the Employer wants to continue with the work beyond the stipulated date of completion for reasonofthe workhaving been hindered,the Engineer-inchargeathissole discretioncangrantprovisionalextensionoftimeeven in the absenceofapplicationfromthe Contractor.Such extensionoftimegrantedbytheEngineer-in-chargeisvalidprovidedthe Contractor accepts the same either expressly or impliedbyhisactionsbeforeandsubsequenttothedateofcompletion.Suchextensionoftimeshallbewithoutprejudicetoemployer'sright to levy compensation under the relevant clause of Contract.

20. Termination,suspension,cancellation&foreclosureofcontract

20.1 The Agreement Authority shall, in addition to other remedial steps to be taken as provided in the conditions of Contract, be entitled to cancel the Contract in full or in part, if the Contractor

a. makes default in proceeding with the works with due diligence and continues to do so even after a notice in writing from theEngineer-in charge, then on the expiry of the period as specified in the notice, or

b. commits default/breach in complying with any of the terms and conditions of the Contract and does not remedy it or fails to take effectivestepsfortheremedytothesatisfactionoftheEngineer-incharge,thenontheexpiry oftheperiodasmaybespecifiedby the Engineer-in-charge in a notice in writing, or

c. fails to complete the work or items of work with individual dates of completion, on or before the date/dates of completion or as extended by the Agreement Authority, then on the expiry of the period as may be specified by the Engineer-in-charge in a notice in writing, or

d. shall offer or give or agree to give any person in the service of the Employer or to any other person on his behalf any gift or consideration of any kind as an inducementor reward foract/actsof favour in relation to theobtaining or executionof this or any other Contract for the Employer, or

e. shalltrytoobtainaContractfromtheEmployerbywayofringTenderingorothernon-bonafidemethodofcompetitiveTendering,or

f. transfers,sublets,assignstheentireworkoranyportionthereofwithoutthepriorapprovalinwritingfromtheAgreementAuthority.TheAgreement Authority may by giving a written notice, cancel such transfers or sublets or assignment.

20.2 TheAgreementAuthorityshallinsuchaneventgivefifteen(15)daysnoticeinwritingtotheContractorinforminghisdecisiontodosoTheContractoruponreceiptofsuchnoticeshalldiscontinuetheworkonthedateandtotheextentspecifiedinthenotice,makeallreasonableeffortstoobtaincancellationofallordersandContractstotheextenttheyarerelatedtotheworkterminated

20.3 andtermssatisfactorytotheEmployer,stopallfurthersub-Contractingorpurchasingactivityrelatedtotheworkterminated,andassisttheEmployerinmaintenance, protection, and disposition of the works acquiredunder the Contract by the Employer.

20.4 The Contract shall stand terminated under the following circumstances unless the Employer is satisfied that the legal representativesoftheindividualContractor or oftheproprietor ofthe proprietaryconcernandinthecaseofpartnershipthe surviving partners, are capable of carrying out and completing theContractand the Employershall in any way notbe liable to paymentofanycompensationtotheestateofdeceasedContractorand/ortothesurvivingpartnersoftheContractor'sfirmon account of the termination of the Contract.:

a. If the Contractor being an individual in the case of proprietary concern or in the case of a partnership firm any of its partners is declaredinsolventundertheprovisionsofinsolvencyact forthe timebeingin force, ormakesany conveyance orassignment of his effects or compositionor arrangement for the benefit of his creditors amounting toproceedingsfor liquidationorcomposition under any insolvency act.

b. InthecaseoftheContractorbeingaemployer,itsaffairsareunderliquidationeitherbyaresolutionpassedbytheemployer or by an order of court, not being a voluntary liquidation proceedings for the purpose ofamalgamation or re-organisation,ora receiver or manager is appointed by the court on the application by the debenture holders of the Employer, if any.

c. If the Contractor shall suffer an execution being levied on his/their goods, estates and allow it to be continued for a period of 21(twenty-one) days.

d. OnthedeathoftheContractorbeingaproprietaryconcernorofanyofthepartnersinthecaseofapartnershipconcernand theEmployerisnotsatisfiedthatthelegalrepresentativeofthedeceasedproprietorortheothersurvivingpartnersofthepartnershipconcernarecapable ofcarryingoutandcompletingtheContract.ThedecisionoftheAgreementAuthorityinthisrespectshallbefinalandbindingwhichis to be intimated in writing to the legal representative or to the partnership concern.

e. IftheContractorisanindividualoraproprietaryconcernandtheindividualortheproprietordiesandiftheContractorisapartnershipconcernandoneofthepartnersdies,thenunlesstheEmployerissatisfiedthatthelegalrepresentativesoftheindividualContractororofthe proprietoroftheproprietaryconcernandinthecaseofpartnershipthesurvivingpartners,arecapableofcarryingoutandcompletingtheContractthe AgreementAuthority shall be entitled to cancel the Contract as to its incomplete part without being in any way liable to payment of any compensation to the estate of deceased Contractor and/or to the survivingpartnersoftheContractor'sfirmonaccountofthecancellationoftheContract.ThedecisionoftheAgreementAuthority thatthelegal representativesofthedeceasedContractororsurvivingpartnersoftheContractor'sfirmcannotcarryoutandcompletetheContractshallbefinalandbindingontheparties.IntheeventofsuchcancellationtheEmployershallnotholdtheestateofthedeceasedContractorand/or the surviving partnersofthe estateof thedeceasedContractor and/orthesurviving partners ofthe Contractor's firm liable to damages for not completing the Contract.

20.5 OncancellationoronterminationoftheContract,theEngineer-in-chargeshallhavepowers

a. totakepossessionofthesiteandanymaterials,constructionalplant,implements,stores,etc.thereon.

b. tocarryouttheincompleteworkbyanymeansattheriskofthedefaultedContractor.

c. to determine the amount to be recovered fromtheContractor forcompleting the remainingworkor in the event the remaining work is not tobe completed the loss/damagesuffered, ifany, by theEmployerafter giving credit for the value ofthe work executed by the Contractor uptothe time of termination/cancellation less on account payments made tilldate and value ofContractor's materials, plant, equipment, etc., taken possession of after termination/cancellation.

d. to recover the amount determined as above, if any, from any moneys due to the Contractor or any account or under any other Contractand in the eventofanyshortfall,theContractor shall becalledupon to paythesameondemand.Theneedfor determination of the amountofrecoveryofanyextracost/expenditureorofanyloss/damagesufferedbytheEmployershallnothoweverariseinthecaseof termination of the Contract for death/demise of the Contractor as stated in clause.20.4 (d).

e. The inventory of up to date work and balance stores at site, plant/machineries, equipments and any other property of contractor utilised for the work shall be taken on charge by the Department after combined survey with the Contractor or his authorised representative. If Contractor or his authorised representative is not appearing for combined survey after one week of giving notice, inventory shall be prepared by the Department in his absence and the Contractor is bound toaccept the same.

f. Duringthecurrencyofexecutionofwork,contractorshallnotremovehisresourceswithoutpriorpermissionofEngineer-incharge.

g. Additionally,theEmployerwillreservetherighttodebarsuchdefaultingContractorfromparticipatinginfutureTendersforaminimumperiodofone year.

20.6 Suspension of work - TheEmployer shallhave power tosuspendtheprogress of the work or any partthereof andtheEngineer- in-chargemaydirecttheContractorinwritingtosuspendthework,forsuchperiodandinsuchmannerasmaybespecifiedtherein,on account of any defaultonthepartof theContractor,orforproperexecutionoftheworkforreasonsotherthananydefaultonthepartoftheContractor,oron ground ofsafetyof theworkor partthereof. Intheevent ofsuspensionforreason other than any default on the part of theContractor,extensionoftimeshallbeallowedbytheAgreementAuthorityequaltotheperiodofsuchsuspensionplusanadditionaltimeperiodof25%ofthesuspensionperiodor30dayswhicheverisless.Anynecessaryanddemonstrablecostsincurredbythe Contractorasaresultofsuchsuspension oftheworkswillbepaidbytheEmployer,providedsuchcostsaresubstantiatedto the satisfactionofthe Engineer.TheEmployer shall notbe responsiblefor anyliabilitiesifsuspensionor delayisduetosomedefault onthepartoftheContractororhissub-Contractor.Theworkshall,throughoutthestipulatedperiodofcontract,becarriedoutwithalldue diligenceonthepartofthecontractor.Intheeventofterminationorsuspensionofthecontract,onaccountofdefaultonthepartofthecontractor,asnarratedhereinbefore,thePerformanceSecurityDepositandotherduesofthisworkoranyotherworkdoneunderthisEmployershallbeforfeitedandbrought undertheabsolutedisposaloftheEmployerprovided,thattheamountsoforfeitedshall notexceed10%of the contract value.

20.7 ForeclosureofContractinfullorinpart-IfatanytimeafteracceptanceoftheBid,theEmployerdecidestoabandonorreducethescopeoftheworkforanyreasonwhatsoevertheEmployer,throughitsEngineer-in-charge,shallgivenoticeinwritingtothateffecttotheContractor.Intheeventofabandonment/reductioninthescopeofwork,

a. The Contractor shall,ifrequired by the Engineer-in-charge,furnish tohimbooksofaccounts,papers, relevantdocumentsas may be necessary to enable the Engineer-in-charge to assess the amount payable in terms of the contract, the Contractor shall not have any claim for compensation whatsoever either for abandonment or for reduction in the scope of work, other than thoseas specified above.

b. Iftheprogressoftheworkorofanyportionoftheworkisunsatisfactory,theEngineer-in-Charge,aftergivingthecontractor 15(fifteen) days' notice in writing, without cancelling or terminating the contract, shallbe entitled to employ anotheragency forexecuting thejobortocarryouttheworkdepartmentallyorcontractuallythroughtenderingprocess,eitherwhollyorpartly,debitingthecontractorwithcostinvolvedinengaginganotheragencyorwiththecostoflabourandthepricesofmaterials,asthecasemaybe.Thecertificatetobeissuedbythe Engineer-in-Chargeforthecostoftheworksodoneshallbefinalandconclusiveandtheextracost,ifany,shallbebornebythecontractor.However,when this clause is invoked, penalty will not be applicable.

21. Nowaiverofrights

21.1 Neither the inspection by the Employer or the Engineer or Engineer's Representatives or any of their officials, employees or agentsnoranyorderby the Employer orthe Engineer for paymentofmoney or any payment for or acceptance of, thewholeorany partoftheworksbytheEmployerortheEngineer,noranyextensionoftime,noranypossessiontakenbytheEngineer, inspectionby ChiefTechnical Examinerorhisauthorisedrepresentativesandmandatory waitingperiod forinspectionbyCTEwing etc shall operate as a waiver of anyprovision of the Contract, or of any powerherein reserved to the Employer, or any right todamageshereinprovided,norshallanywaiverofanybreach intheContractbeheldtobeawaiverofanyotherorsubsequent breach.

22. CertificatenottoaffectrightofEmployerandliabilityofcontractor

22.1 NointerimpaymentcertificateoftheEngineer,noranysumpaidonaccount,bytheEmployer,noranyextensionoftime for execution of the works granted by the Engineer shall affector prejudice the rightsof theEmployeragainstthe Contractoror relievetheContractorofhisobligationsfortheduеperformanceoftheContract,orbeinterpretedasapprovaloftheworksdoneor of the equipment furnished and no certificate shall create liability for the Employer to pay for alterations, amendments, variations or additional works not ordered, in writing, by the Engineer or discharge the liability of the Contractor forthepayment ofdamages whether due, ascertained, or certified or not, or any sumagainst the payment ofwhich he is bound to indemnify theEmployer, nor shall any such certificate nor the acceptance by him of any sum paid on account or otherwise affect of prejudice the rights of the Contractor against the Employer.

23. Graftsandcommissionsetc.

23.1 Anygraft,commission,giftoradvantagegiven,promisedorofferedbyoronbehalfoftheContractororhispartner,agent, officers,director,employeeorservantoranyoneofhisortheirbehalfinrelationtotheobtainingortotheexecutionofthisoranyotherContractwiththeEmployer, shall,in additionto anycriminalliabilitywhichitmayincur,subjecttheContractortothe cancellation ofthisand all otherContractsand alsotopaymentofanylossordamagetotheEmployerresultingfromanycancellation.TheEmployer/Engineer-inchargeshallthenbe entitled to deductthe amountso payable from any moneysotherwise due to the Contractor under the Contract.

24. Languageandmeasures

All documents pertaining to the Contract including specifications, schedules, notices, correspondence, operating and maintenance instructions,drawingsor anyother writing shall bewritten in English language. Themetricsystem of measurement shall be used exclusively in the Contract. Measurements, quantities, prices or rates and amounts shall have two digit precision.

25. Releaseofinformation

24.1 TheContractorshallnotcommunicateoruseinadvertising,publicity,salesreleasesorinanyothermediumphotographsorotherreproductionof the works under this Contract, or descriptions of the site, dimensions, quantity, quality or other information, concerning the works unless prior written permission has been obtained from the Employer.

26. Completionofcontract

25.1 UnlessotherwiseterminatedundertheprovisionsofanyotherrelevantclauseofthisContractshallbedeemedtohavebeencompletedatthe expiration of the Defects Liability Period as provided for under the clause 46.

27. Enforcementofterms

26.1 The failure ofeither partyto enforce at any time of the provisionsofthisContractoranyrightsin respecttheretoor to exerciseanyoptionhereinprovided,shallinnowaybeconstruedtobeawaiverofsuchprovisions,rightsoroptionsorinanyway to affect thevalidityofthe Contract. The exercise byeither partyofanyofits rightsherein shallnotprecludeorprejudiceeither party from exercising the same or any other right it may have hereunder.

28. Engineer'sdecision

27.1 Inrespect ofallmatterswhicharelefttothedecisionof theEngineerincluding thegrantingorwithholding ofthecertificates,the Engineer shall, if required to do so by the Contractor, give in writing a decision thereon.

28.1 If in the opinion of the Contractor, a decision made by the Engineer is not in accordance with the meaning and intent of the Contract, the Contractor may file with the Engineer within 15(fifteen) days after receipt of the decision, a written objection to the decision. Failuretofilean objectionwithintheallottedtimewillbe consideredasacceptanceof theEngineer'sdecision andthedecision shall become final and binding.

28.2 The Engineer's decision and the filling of the written objection thereto shall be a condition precedent to the right to any legal proceedings.Itistheintentoftheagreementthatthereshallbenodelayintheexecutionoftheworksandthedecision oftheEngineeras rendered shall be promptly observed.

29. Co-operationwithotherContractors,Consultants&Engineers

28.3 TheContractorshallco-operatewiththeEmployer'sotherContractorsConsultantsandconsultingEngineers,ifemployedinthesite,andfreely exchange with them such technical information as is necessary for the satisfactory execution of works.

30. Variationsoradditions

30.1 No alterations, amendments, omissions, suspensions orvariationsof theworks (hereinafter referred toas“Variation”) under the Contract as detailed in the Contract documents, shall be made by the Contractor except as directed inwriting by the Engineer,buttheEngineershallhavefullpowersubjecttotheprovisionhereinaftercontainedfromtimetotimeduringthe execution of the Contract,by notice inwriting, to instruct theContractor tomake such variationwithoutprejudice to theContract. TheContractorshallcarryoutsuchvariationandbeboundbythesameconditionsasfarasapplicableasthoughthesaid variation occurredintheContractdocuments. If anysuggestedvariationwould,in theopinionof theContractor, if carriedout, preventhimfrom fulfilling anyof hisobligationsorguaranteesunder theContract,he shallnotify theEngineer thereofinwriting and the Engineer shalldecide forthwith, whether or not the same shall be carried out and if the Engineer confirm his instructions, Contractor's obligations and guarantees shall be modified to such an extentasmay bemutually agreed.Any agreeddifference in cost occasioned by any such variation shall be added to or deducted from the Contract price as the case may be.

30.2 In the event of the Engineer requiring any variation, such reasonable and proper notice shall be given to theContractorto enable him to work his arrangements accordingly, and in cases where goodsor materials are already prepared or anydesign, drawings of pattern made or work done requires tobe altered, a reasonable and agreed sum in respect there of shallbe paid to the Contractor.

30.3 In any caseinwhichthe Contractorhasreceived instructions fromtheEngineeras tothe requirement of carryingout thealtered or additionalsubstituted work which eitherthen orlateron, will inthe opinion oftheContractor,involve aclaim foradditional payments,the Contractorshall immediatelyandinno case laterthanten (10)days,afterreceiptof theinstructionsaforesaidand beforecarryingout the instructions, advise theEngineer to thateffect.But theEngineershallnot become liable for the payment ofany charges in respect of any such variations, unlessthe specifications ofthe same shall be confirmed in writing by the Engineer.

30.4 Ifanyvariationintheworks,resultsinreductionofContractprice,thepartiesshall,agree,inwriting,sototheextentofanychangeintheprice,before the Contractor proceeds with the change.

Inalltheabovecases,intheeventofadisagreementastothereasonablenessofthesaidsum,thedecisionoftheEngineershallprevail.

30.5

30.6 Notwithstanding anything stated above in this clause, the Engineer shall have the full power to instruct the Contractor, in writing,duringtheexecutionoftheContract,tovarythequantitiesoftheitemsorgroupsofitems.TheContractorshallcarryout such variations and beboundby thesameconditions, asthoughthesaidvariationsoccurredintheContractdocuments. However, theContractpriceshallbe adjusted at the rates and the prices provided for the original quantities in the Contract.

31. Replacementofdefectivepartsandmaterials

31.1 If during the progress of the works the Engineer shall decide and inform in writing to the Contractor, that any part of work or materials used therein is unsound or imperfect or has furnished any work is inferior than the quality specified, the Contractor on receiving details of such defects or deficiencies shall at his own expense within seven (7) daysofhis receiving the notice,or otherwise,withinsuch timeasmaybe reasonablynecessaryfor makingitgood,proceed toalter,re-construct orremovesuch work and furnish fresh materials up to the standards of the specifications.

31.2 In case theContractorfails todoso, theEngineermayongivingthe Contractorseven (7)days' notice in writing of his intentions to do so, proceed to remove the portion of the works or materials so complained ofand, at the cost ofthe Contractor, performallsuchworkorfurnishallsuchequipmentprovidedthatnothinginthisclauseshallbedeemedtodeprivetheEmployerof or affect any rights under the Contract which the Employer may otherwise have in respect of such defects and deficiencies.

31.3 The Contractor's fullandextreme liability under this clauseshallbesatisfied by thepayments to theEmployer of theextracost, of suchreplacementprocured,includingerection,asprovidedforintheContract,suchextracostbeingtheascertaineddifferencebetweenthepricepaidbytheEmployerforsuchreplacementsandtheContractpriceportionforsuchdefectiveworkandrepaymentsofany sumpaid by the Employer to the Contractor in respectof such defective work.Should the Employer not so replace the defectiveworkormaterials,theContractor'sextremeliabilityunderthisclauseshallbelimitedtorepaymentofallsumspaidbytheEmployerunderthe Contract for such defective works or works using the defective materials.

32. Defenceofsuits

32.1 If any action in court is brought against the Employer or Engineer or anofficer or agentof theEmployer for the failureorneglect on the part of the Contractor to perform any acts, matters, covenants or things under the Contract, or for damage or injury caused by the alleged omission or negligence on the part of the Contractor, his agents, representatives or his sub-Contractors, workmen,suppliersoremployees,theContractorshallinallsuchcasesindemnifyandkeeptheEmployer,andtheEngineer and/or his representative, harmless from all losses, damages, expenses or decrees arising out of such action.

33. Limitationsofliabilities

33.1 Thefinal paymentbythe Employer inpursuanceoftheContract shallmeanthereleaseoftheContractor fromallhis liabilitiesunder theContract.Suchfinal payment shall be made only at the end of theDefect liabilityperiod asdetailed inclause 46 andtillsuchtimeastheContractualliabilitiesandresponsibilitiesoftheContractor,shallprevail.Allotherpaymentsmadeunder theContract shall be treated as on account payments.

34. Taxes,Permits&Licenses

34.1 TheContractorshallbeliableand payalltaxes,duties,levies,royaltiesetclawfullyassessedagainsttheContractorinpursuance of the Contract. In addition the Contractor shall be responsiblefor payment of all Indian duties, levies and taxes lawfully assessed against the Contractor for his personal income and property. This clause shall be read in conjunction with clause 3.3.6 of section Instruction to Bidders.

35. Payments

35.1 The payment to the Contractor for the performance of the works under the Contract will be made by the Employer as per the guidelinesand conditionsspecifiedherein.Allpaymentmadeduring theContractshallbeon accountpaymentsonly. Thefinalpayment will be made on completion of allthe worksand on fulfilment by the Contractor of all his liabilitiesunder thiscontract and also after issue of Completion Certificate by the Agreement Authority.

35.2 AllpaymentsundertheContractshallbeinIndianRupeesonly.

35.3 All such interimpaymentsshallbe regarded aspaymentbyway ofadvancesagainst finalpaymentonlyandshallnot preclude the requiring of bad, unsound and imperfect or unskilled work to be rejected, removed, taken away and reconstructed or re- erected. Any certificate given by the Engineer-in-Charge relating to the work done or materials delivered forming part of such payment, may be modified or corrected by any subsequent such certificate(s) or by the final certificate and shall not by itself be conclusive evidencethat any work or materials to which it relates is/are inaccordancewiththecontractandspecifications.Anysuch interim payment, or any partthereof shallnot in any respectconclude, determine or affectin any way powersof theEngineer- in-Charge under thecontract orany ofsuch paymentsbe treated asfinal settlementand adjustment ofaccountsor in anyway vary or affect the contract.

35.4 Pending consideration of extension of date of completion, interim payments shall continue to be made as herein provided without prejudice to the right of the department to take actionunder theterms ofthis contract for delayin thecompletionofwork, if the extension of date of completion is not granted by the competent authority.

35.5 ThebillforaworkshallbesubmittedonlywiththefirsttierqualitycontrolcertificatesandTestResultsheetsforallitemsintheBillasrequiredbytherelevantprovisionsofthePWDQualityControlManualoraslistedintheContractData.AssistantEngineershallobtaincertificatesandTestResultSheetsofthesecondtierqualitycontroltestsfromtheQualityControlwingand attachthesametothebillalongwiththeTestResultsoffirsttierQ.C.Disbursingofficersshalleffectpaymentonlyafterensuringthe QCtestresultsfurnished fortheitemscoveredinthebillconfirmtostandardsprescribedwhicharedetailedinthePWD Quality Control Manual.

35.6 TheContractorwillberequiredtoproduceincome-taxandsalestaxclearancecertificatesbeforethefinalpaymentandreleaseofPerformanceSecurityDeposits.

36. MethodofmeasurementandBillPreparation:

36.1 AllWorksshallbemeasuredformakingpaymentstotheContractor.ToevaluateWorkunderthisContractandinstructed as per work order/change orders issued by the Engineer-in-Charge, the standard method of measurement in accordance with the Standards laid down by CPWD Specifications Vol-I and II or Bureau of Indian Standards (IS: 1200) shall be followed.However if definite methods of measurements are stipulated in the Schedule of Rates or Specifications, then the same shall supersede BIS methodsandshallbefollowed.Intheeventofanydisputewithregardtothemethodofmeasurementofanywork,thedecisionof the Engineer-in-Charge shall be final and binding and no extra claims shall be entertained or allowed at any stage in this regard.

36.2 ThebillsshallbepreparedbytheDepartmentalofficersaspertheprocedurelaiddowninrevisedPWDManualandamendmentsthereof ifany.

36.3 Measurementsfortheworksunderthiscontractshallbemadeelectronicallythroughtheonlinesoftwaresystem(PRICEsoftware)ofthe Government. The Contractor shall use hislogin facilityin the above Online system whereinhecanview, accept/rejectthemeasurementsofworkdone.TheContractorshallaccept/rejectthemeasurementswithinsevendaysof recording ofmeasurements.Ifthecontractorfailstoaccept/rejectthemeasurementswithintheaboveperiod,itshallbedeemed that,theContractorhasacceptedthemeasurementsandbillsshallbepreparedaccordinglybytheDepartmentalOfficers.Forworkscostingmorethan Rs.5Crores,theContractorshallrecordthemeasurementselectronicallythroughtheonlinesoftwaresystem(PRICEsoftware)usinghislogincredentials.TheContractorshallsubmittherecordedmeasurementthroughonlinetotheconcernedFieldEngineerperiodicallyfor verification and checkmeasurement. For recording measurements, theContractor shall abide by all the prescribed rules formeasurementsrecording,verification,checkmeasurementandsupercheckingprevailing in the Department.(Modified)

37. Coveringup:

37.1 The Contractor shall give at least 24 hours clear notice in writing to the Engineer-in-Charge before covering up any of the Work in foundations or any other such areas in order that inspection of the Work may be carried out for maintaining proper quality control. In the event of the Contractor failing to provide such notice he shall, at his own expense, uncover such Work as required to allow the inspection to be taken and thereafter shall reinstate theWork to the satisfactionoftheEngineer-in-Charge. Eachstage of all hidden works shall be approved by the Engineer-in charge before executing the next stage.

38. Rectificationofimproperworknoticed:

Ifitshallappeartothe Engineer-in-Chargeduringtheprogressofthe Work thatany workhasbeenexecutedwithunsound, imperfectorunskilfulworkmanshiporwithmaterialsofanyinferiordescriptionorthatanymaterialsorarticlesprovidedbytheContractorfortheexecution oftheWorkareunsoundorofaqualityinferiortothatcontractedfororotherwisenotinaccordancewiththeContract,theCo ntractorshall,ondemandinwritingfromtheEngineer-in-Chargespecifyingthework,materialsorarticles complainedof,notwithstandingthatthesamemayhavebeenpassedandcertified,forthwithrectifyorremoveandreconstructthe worksospecifiedinwhole,orinpartasthecasemayrequireorasthecasemaybe,removethematerialsorarticlessospecified and provide other properandsuitablematerialsorarticlesathisownproperchargeandcostandintheeventofhisfailingtodosowithinaperiodsospecified by the Engineer-in-Charge in his demand aforesaid, the Engineer-in-Charge may rectify or remove and re-executetheworkorremoveandreplacewithothers,thematerialsorarticlescomplainedof asthecasemaybeattheriskandexpense in all respectsoftheContractor,anddeducttheexpensesfromthePerformanceSecurityDepositanysumsthatmaybedueatanytimethereafter to the Contractor or from his performance guarantee.

39. Changeorders(ApprovalforVariations)

EmployerreservestherighttoaltertheScopeofWork(SeeClause10and30)andconsequentlytheContractPriceshallbesui tablyadjustedforsuchchangesbyapplyingtheapprovedrates.Allchangeordersshallbeissuedbythe Engineer-in-Chargeand theonusshallbeontheContractor toobtainsuchpriorwrittenconsentoftheEngineer-in-Charge.

Thereshallbeanorderinwritingtoexecutetheextraitemofworkdulysignedbythe AgreementAuthoritybeforeitscommencement.

Ifthecontractorfinds,afterexaminingthespecificationsandplansthatextrasareinvolved,heshouldgivenoticetotheEngineer-inchargetothiseffectandshallproceedwiththeexecutionoftheextraitemonlyafterreceivinginstructionsinwritingfromEngineer-inchargeandAgreementAuthority.

Extraitemsmaybeclassifiedasnew,additional,substitutedoraltereditems,depending,ontheirrelationorotherwisetotheoriginalitemoritem s of work.

Theratesforextraitemsshallbeworkedoutasbelow

Inthecaseofextraitemswhetheradditional,alteredorsubstituted,forwhichsimilaritemsexistsinthecontract,theratesshallbederivedfromtheoriginalitembyap propriateadjustmentofcostofaffectedcomponents.Thepercentageexcessordeductionoft hecontractrateoftheoriginalitemwithreferencetothedepartmentalestimatedrateshallbeappliedinderivingtheratesforsuchite ms.TheEngineer'sinterpretationastowhatisasimilarclassofworkshallbefinalandbindingontheContractor.

39.5.2 Inthecaseofextraitemswhetheradditional,alteredorsubstitutedandforwhichsimilaritemsdonotexistinthecontract and rates existsin the prevailingdepartmentaldatarate, therates shallbearrivedat onthe basis of thedepartmentaldata rateat the time of issuing technical sanction modified by overall tender excess/tender deduction except on cost of departmental material.(Modified)

Inthecaseofextraitemswhetheradditional,alteredorsubstituted,forwhichtheratescannotbederivedfromsimilaritemsintheco ntract,andonlypartlyfromthedepartmentalscheduleofratestheratesforsuchpartorpartsofitemswhicharenot coveredinthescheduleofratesshallbedeterminedbytheEngineer-inchargeonthebasisoftheprevailingmarketrates(if availableintheLMRpublishedbytheDepartmentthesameshallbetaken)givingdueconsiderationtotheanalysisoftheratefurnishedb ythecontractorwithsupportingdocuments,includingcontractor'sprofit,overheadsandotherallowedchargesifany. Thisshallbeaddedontothedepartmentalrate(includingcontractor'sprofit,overheadsandallowedotherallowedchargesifany)atthetimeofissuingtechni calsanctionmodifiedbyoverallTenderexcess/tenderdeductionexceptoncostofdepartmentalmaterialandmarket rate items.(Modified)

Inthecaseofextraitemwhetheralteredorsubstituted,forwiththeratescannotbederivedeitherfrom-similaritemof workinthecontractorfromthedepartmentalscheduleofrates,thecontractorshallwithin14daysofthereceiptoftheordertocarryoutthesaidextraitemofwork communicatetotheEngineer-inchargetheratewhichheproposestoclaimfortheitem, supportedbyanalysisoftherateclaimedandthedepartmentshallwithinonemonththereafterdeterminetherateonthebasisofthemarketrate(ifavailableinth eLMRpublishedbytheDepartmentthesameshallbetaken)givingconsiderationtotherate claimedby thecontractor,afterapplyingthetenderdeductionexceptoncostofdepartmentalmaterialandmarketrateitems. Tender excess, if any, will not be applied.

Inalltheabovecases,theapprovedratesforextra,additional,alteredorsubstituteditemsshallnotexceedtheratewhichisarrivedonthebasisoftheprev ailinglocalmarketratesoftheDepartment(publishedasperGovernmentguidelines)atthetimeoforderingor executing the extra item whichever is earlier.

Wherevertheterm"Departmentaldatarate"appears,itshallmeantheratederivedfromtheprevailingDepartmental scheduleofrateand dataandshallincludeconveyancechargesandcontractor'sprofit.

Wherever,theterm"tenderexcessortenderdeduction"appears,itshallmeantheoverallpercentagevariationofestimatedPACandagree d PAC of the original contract.

In cases in which the contractor has executed extra items not contemplated in the agreementbut the ratesofwhich require sanctioningofhigherauthoritiestheDivisionOfficermayinsuchcase,sanctionadvanceuptoanamountnotexceeding75per centof the amount fortheitemsattherateworkedoutandcertifiedbytheEngineerincharge.TheAssistantEngineershallinallsuchcasespromptlyrecord all authorised extra items executed by the contractor
including detailed measurements and quantities thereofin theMeasurementBook.Heshall neither enterany rate for thesame in the Measurement Book nor include such extra items in the body of the bill. When the bill is received in the Sub Division, the subDivisionOfficershallprepareaseparatestatementforthoseextraitemsshowingtheitemsexecuted,quantityofeachitemsrate for each item worked out by him based on agreement, conditions and amountforeach item onthebasis of the rate worked out by him, He shall also furnish a certificate to the effect that he has personally examined all the extra items and they arebonafide the amountpayablefortheseitemswillnotbelessthenRs.....(amounttobespecified)andthatthereisnoobjectionin
paying 75 per cent of this amount as a secured advance On receipt of the bill with the above statement and certificate the Division Officermaymakepaymentnotexceedingtheamountrecommendedbythesubdivisionofficerasa lumpsumsecuredforextraitemsof works done but not billed for.

Forpercentageratecontracts,the rateofextra itemshallbearrivedbyapplyingthepercentagetenderexcess/tenderdeduction to thedepartmental datarateexcludingthecostofdepartmental materialsandmarketrateitemsaspertheoriginalscheduleon which the tender is invited.(Modified)

Wherever,theterm"Marketrate"appearsintheclause39,itshallmeanallratesotherthandepartmentalscheduleofratescurrentlyCPWDDelhiSoR.

40. PriceAdjustment

Thisclauseisapplicableforworkswhichhaveoriginaltimeofcompletionmorethan18months

40.1 Contract priceshallbe adjustedfor increaseordecrease in ratesandpricesbeyondthebaseprice(s)of labour,materials, plant and equipment spares,fuels andlubricants as indicatedintheContract Datainaccordancewiththefollowingprinciples, procedures andas per

40.2 formula given in the Special conditions of contract.

a. The price adjustment shall apply for the work done from the startdate up to endof the initial intendedcompletiondateor extensionsgrantedbytheEngineerandshallnotapplytotheworkcarriedoutbeyondthestipulatedtimeforreasonsattributions to the contractor.

b. Thepriceadjustmentshallbedeterminedduringeachmonthfromtheformulagivenintheconditionsofcontract.

Totheextentthatfullcompensationforanyriseorfallincoststothecontractorisnotcoveredbytheprovisionsofthisor other clauses in the contract, the unit rates and prices included in the contract shall be deemed to include amounts to cover the contingency of such other rise or fall in costs.

40.3 **41. Deductionsforuncorrectedwork:**

IftheEngineer-in-ChargedeemsitinexpedienttogetcorrectedorrectifiedanyworkoftheContractorwhichisdefectiveor damagedorofsubstandardqualityorisgenerallynotinaccordancewiththeContractDocuments,thenanequitableandappropriatedeductionshallbema dethereoffromtheContractPrice,andtheEngineer-in-Charge'sdecisioninthisrespectshallbefinaland binding on the Contractor.

41.1 Furthermoreif,byreasonofanyaccident,orfailure,orothereventoccurringto,inorinconnectionwiththeWork,orany partthereof,eitherduringtheexecutionoftheWorkorduringtheDefectsLiabilityPeriod,anyremedialorotherworkorrepairshall,intheopinionoftheEngineer-in-Charge,beurgentlynecessaryforthesafetyoftheWork,oranypartthereof,andtheContractorisunableorunwillingtoimmediately and at oncedo such workor repair, the Engineer-in-Chargemay employ and pay otherpersonsoragenciestocarryoutsuchworkorrepairastheEngineer-in-Chargemayconsidernecessary.Iftheworkorrepairsodoneby other personsor agenciesworkwhich, in theopinion ofthe Engineer-in-Charge, the Contractorwas liableto do at his own expense under theContract,thenallexpensesincurredbytheEmployer/Engineer-in-Chargeinconnectionwithsuchworkorrepairshall

41.2 berecoveredfromtheContractorandshallbedeductedbytheEmployer/Engineer-in-Chargefromany moneythatmaybepayableorthatmaybecomepayabletotheContractororfromtheContractor'sperformance Guarantee/Security Deposit.

Thedefectiveoruncorrectedworkoftheontractoratanystage(duringoraftercompletionofwork)mayadverselyaffectordamagetheworkofothe rVendors.Contractorshallathisowncostimmediatelyrectify,correctorreplacebothhisdefectivework aswell astheworkof theother Vendors sodamaged,within the timeperiodstipulated bythe Engineer-in-Charge,soasnot to effecttheprogressandqualityofotherVendor'swork.IncasetheContractorfailstodothenecessarycorrectionstothesatisfactionofEngineer-in-Charge or unduly delays the correction work, then the Engineer-in-Charge shall be at liberty to get the correction work done and if the correctionworkisnotpossible,thenanyextraworknecessarytocoverthedefectordamage,donethroughsame/anyotherVendoratContractor'scost.

Actualcostsincludinganyincidentalsthereofincurredbytheengineer-in-

41.3 Chargeonsuchcorrections/extraworksshallberecovered from the payments or any amounts due to the Contractor.

42. Virtualcompletionofworks:

41.4

42.1 TheContractorshallcompletetheWorksbytheintendeddateofcompletion.IncaseExtensionofTimehasbeengranted,theextendeddate ofcompletion shall be considered.The Worksshall be consideredasVirtuallyCompleteonlyuponsatisfactory correction ofall defectsnotified bytheEngineer,andonlyaftertheWorkhasbeencompleted ineveryrespectin conformitywith theContractDocuments andafterallthesystemsandserviceshavebeentestedandcommissioned,andaftertheSitehasbeenclearedandtheWorkcleanedinaccordance with Clause 78 and when the Agreement Authority on a report by the Engineer-in-Chargehavecertifiedinwritingthattheworkisvirtuallycomplete.Thevirtualcompletioncertificateshallbeissuedbytheengineer-inchargewithin15daysof finalmeasurement.TheDefectsLiabilityPeriodshallcommencefromthedateofVirtualCompletion inthevirtualcompletion certificate issued by the Agreement Authority.

42.2 Should, beforeVirtualCompletion,theEmployer/Engineer-in-Chargedecidetooccupyanyportionoftheworkoruseany part ofany equipment,the same shall notconstitute anacceptance ofanypartof theWork orofanyequipment, unlessso stated in writing by the Engineer-in-Charge.

42.3 Priortothe issueof theVirtual Completion Certificate, theContractorshallsubmitand hand-over to the Engineer-in- Charge the keys to all locks, all operation and maintenance manuals for systems and services, material reconciliation statements, warrantees, as built drawings, any spares called for in the Contract, and everything else necessary for the properuseandmaintenance of the Work complete with all systems and services.

42.4 ItisclarifiedthatallmaterialswhetherEmployersuppliedornotshallbeprocuredbythecontractorathisowncostforcarryingout correction work. No charges shall be paid on this account.

43. Programmechart/milestones:

43.1 The Contractor should strictly adhere to the agreed milestones, if any for the work. If the milestones are not achieved by the Contractor, the Contractor shall pay the Employer liquidated damages as per clause 15 of GCC. However,releaseof interim Liquidated Damages can be considered in case the very next Milestone is achieved on time. Extension of time for any milestone if allowed has to be obtained in writing from the Agreement authority well in advance of completion dates.

44. Penalty/finefornon-complianceofsafetycodes&labourlaws:

44.1 If the Engineer-in-Charge notifiesthe Contractor of non- compliance with safety codes as in Clause no. 67 and68 andthe labour laws etc. Contractor shall immediately if so directed or in any event not more than 10(ten) hours after receipt of such notice, make all reasonable effort to correct such non-compliance and to ensure that there is no reoccurrence of such non-compliance.

44.2 IftheContractorfailstodoso,theEngineer-in-Chargeshalllevyfineof Rs.500(Rupeesfivehundredonly)perheadperdayofthetotalnumberoflabourersemployedonthatparticularday at site for not complying with safety codes & labour laws etc.

45. Guarantees:

45.1 TheContractorunderstandsandagreesthattheEngineer-in-ChargeisexpresslyrelyingandwillcontinuetorelyontheskillandjudgmentoftheContractorinexecutingtheWorkandremedyinganydefectsintheWork .TheContractrepresentsandwarrantsthat:-

a. TheContractor shall performtheWorkina timelymanner,in strictaccordancewith the ContractDocuments,andconsistent withgenerallyacceptedprofessional,constructionandconstruction-supervisionpracticesandstandardsprovidedbyanexperiencedandcompetentprofessionalcontractorandconstructionsupervisorrenderedunderthesameorsimilarcircumstances.

b. TheContractorisandwillberesponsibletotheEngineer-in-Chargefortheactsandomissionsofhis Sub-Contractorsandtheirrespectiveemployees,agentsandinviteesandallthepersonsperforminganyoftheWorkonbehalfofthe Contractor.

c. Besidestheguaranteesrequiredandspecifiedelsewhereinthecontractdocuments,theContractorshallingeneralguarantee all work executed bythe Contractor and his Sub-Contractors for Defects Liability Period from the dateof issue of the Virtual Completion Certificate. Thoseparts oftheWork orequipment orinstallations, forwhichextendedguaranteeperiods arestipulatedelsewhere inthe ContractDocuments, shall be guaranteed for suchperiodsthataresostipulated. The durationof theDefects Liability Period, unless specified otherwise, shall be the extent of length of such guarantee periods.

TheContractorrepresents,warrantsandguaranteestoEngineer,interaliasthat:

a. TheexecutionoftheWorkshallbeapprovedandcapableofuse,operation,performanceandmaintenanceforaccomplishingthepurpose for which it has been built and acquired.

b. TheWorkshallcomplywiththeSpecifications,Drawings,andotherContractDocumentsandthatqualitystandardsasperthePWDQualityControl Manual shall be maintained.

c. TheWorkshall,forDefectLiabilityPeriodfromthedateofissueoftheVirtualCompletionCertificate,befreefromalldefectsandtheWorkshall be of structural soundness, durability, ease of maintenance, weather tightness etc.

d. Thematerials,workmanship,fabricationandconstructionshallbeofthespecifiedandagreedqualityandallmaterialsshallbenew.

e. TheWorkperformedfortheEngineer-in-Chargeshallbefreefromallliens,charges,claimsofwhatsoevernaturefromanypartyotherthantheEngineer-in-Charge.

Where,duringsuchguaranteeperiodsasmentionedabove,anymaterialorequipmentorworkmanshiporgenerallyanyitemofworkfailstocomplyorperforminconformitywiththerequirementsstipulatedintheContractDocumentsorinaccordancewiththecriteria andprovisionsofthe guarantee,theContractor shall be responsible for and shallbear andpayall costsand expenses for replacing and/or rectifyingandmakinggoodsuchmaterials,equipment,workmanship,anditemsofworkand,inaddition,theContractorshallbealsoresponsibleforandshallbearandpayallcostsandexpensesinconnectionwithanydamagesand/orlossessufferedasaconsequenceofsuchfailure.

AllguaranteesrequiredundertheContractshallbeintheformatapprovedbytheEngineer-in-ChargeandsubmittedtotheEngineer-in-Charge by the Contractor when requesting certification of the final bill.

46. Defectsliability:

46.1 TheDefectLiabilityPeriodshallbeasmentionedinthecontractdata.

46.2 Maintenance by contractor during defects liability period: All defective items of work and defects noticed and brought to the attentionoftheContractorbytheEngineerinwritingduringtheDefectsLiabilityPeriodshallbepromptlyandexpeditiously attended to and replaced and/or rectified and made good by the Contractor at his own cost, to the complete satisfaction of theEngineer-in-Charge.

46.3 Replacementand/orrectificationandmakinggoodbycontractorsofalldefectivematerials,equipmentand/or workmanshipduringdefectsliabilityperiod:TheContractorshallreplaceand/orrectifyandmakegood,athisowncost,andtothesatisfactionoftheEngineer-in-Charge,alldefectiveitemsofworkanddefectsarising,intheopinionoftheEngineer-in-Charge,frommaterials,equipment,and/orworkmanshipnotperformingorbeingnotinaccordancewiththeDrawingsorSpecificationsortheinstructionsof the Engineer-in-Charge or other Contract Documents or the bestengineeringandconstructionpractices,and whichmayappearorcometonoticewithinDefectsLiabilityPeriodafterVirtualCompletionoftheWork.Anyitem,materialormatterrepairedorreplacedshallreceiveanewDefectsLiabilityPeriodoflikedurationbeginninguponthedatetherepairedorreplaceditem,materialormatterisreturnedforusetotheEngineer-in-Charge,providedthattheaggregateguaranteeperiodshallnotexceed24months.TheContractorshallbealsoliableforallcostsassociatedwithdamagesand/orlosseswhichareaconsequenceofsuchdefectiveitemsofworkanddefects,andsuchcostsshallberecoupedbyEngineer-in-Charge/Agreement Authority from the Contractor and shall be recovered from the PerformanceSecurity Depositheld and/orfrom theContractor's final bill(ifthefinalbillhasnotbeencertifiedandpaidforatthetime),orthesamewouldotherwiseberecoveredfromtheContractor. ShouldthePerformanceSecurityDepositheld(andtheamountinrespectofthefinalbillifithasnotbeencertifiedandpaidforatthetime)beinsufficient to meet such costs, damages, losses and expenses, as determined by the

EngineerinchargethentheContractorshallbelegallyboundtopaythebalanceamountdueundertheclaimtotheEngineer-in-ChargewithinonemonthofreceivingnotificationtothateffectfromtheEngineer-in-Charge.IntheeventoffailureonthepartoftheContractortopaythebalanceamountduewithinonemonthasstatedabove,theEngineer-in-Chargeshallbeentitledto invoke the performance bond and the Contractor shall raise no objectionin this regard. In respect ofthosepartsoftheWorkfor whichlongerguaranteeperiodsarestipulatedelsewhereintheContractDocuments,theDefectsLiabilityPeriodforsuchpartsoftheWorksshallbeuntiltheendoftherespectiveguaranteeperiodthatisstipulatedforeachsuchpart.Nopaymentshallbemadetothecontractoronthisaccount.

AllthematerialwhetherEmployersuppliedornotshallbesuppliedbytheContractorathisowncostforundertakinganycorrection/rectification /replacementofdefective/damagedoruncorrectedworks.

46.4

47. Finalcompletionofthework:

47.1 The Work shall be considered as finally complete at the end of the Defects Liability Period subject to the Contractor having replaced and/or rectified and made good all the defective items of work and defects and hand over theWork inaccordancewithclause above, to the satisfaction of the Engineer-in-Charge, and provided that the Contractor has performed all his obligations and fulfilled all his liabilities undertheContract, andwhentheAgreementAuthorityhascertified inwritingthat theWorkarefinally complete. SuchFinal Completion in respect of those parts of the Work, for which extendedguaranteeperiodsarestipulated elsewhere in the Contract Documents, shall be achieved at the end of such stipulated guarantee periods.

48. Takingoveroftheworks

48.1 TheContractorshallberesponsibletomaintainallhisworkstillcompletionoftheDefectsLiabilityPeriodandtohandover the workto theAssistantEngineer. Inthisregards theworkswouldbe jointly inspectedbya teamcomprisingofrepresentativesof ContractorandtheEngineer-in-Charge,fornotinganydiscrepancy,defect,shortcomings.Withinthetimeperiodspecifiedbythe Engineer-in-ChargetheContractorshallrectify,correctorreplacethedefectiveworkssonotedduringthejointinspection,athisowncosttothesatisfactionoftheEngineer-in-Charge.OnacceptanceoftheContractor'swork,thecontractorshallpreparetheinventoryofhisworks,andhandovertheWork & the inventory to the Assistant Engineer.

48.2 During carrying out the rectification, correction or replacement works as mentioned above the Contractor shalltakeall necessaryprecautionstosafeguardtheexistingfinishingandworksofotherVendorsagainstanydamage.Incasetheworksof other Vendors are damaged by the Contractor while undertaking the rectification / replacement work, the Contractor shall rectify / replace the works so damaged at his own cost to the satisfaction of the Engineer-in-Charge.

48.3 Onfailureofthecontractortorectify,correctorreplacethedefectiveworksoronunduedelayonpartofthecontractorfor the same, the Engineer-in-Chargeshallbe at liberty toundertakethecorrectionworksby itselforthroughany VendorattheContractor'scost. Allsuch costs including any incidentals thereof incurred by the Engineer-in-Charge shall be recovered from the Contractor's payments or from any amounts due to the Contractor.

48.4 Subjecttoclause 42ofthissection,upontheissueofvirtual completioncertificate,theEngineermaytakeoverthe completed work for intended use. Such taking over of the works prior to completion of theDefectsLiability Period by theEngineer shall notdischarge thecontractorofhis responsibilities forthebalanceDefectsLiabilityPeriodandtheDefectsLiabilityPeriodshallremain inforcetillcompletion of Defects Liability Period.

48.5 On removal of all the defects and handing over to the Assistant Engineer upon successful completion of the Defects Liability Period by the Contractor, the Engineer-in-Charge shall issue the FinalCompletionCertificateto the contractorand the Defects Liability Period shall deemed to be complete.

49. Forcemajeure

49.1 Force Majeureis hereindefined as anycause which isbeyond thecontroloftheContractoror the Employerasthecase maybe which theycouldnotforeseeorwith a reasonable amountofdiligence couldnothaveforeseenandwhichsubstantially affect the performance of the Contract, such as:

a. Naturalphenomena,includingbutnotlimitedtofloods,draughts,earthquakesandepidemics:

b. Actsofanygovernment,includingbutnotlimitedtowar,declaredorundeclared,priorities,quarantines,embargoes,

49.2 Providedeitherpartyshallwithinfifteen(15)daysfromtheoccurrenceofsuchacausenotifytheotherinwritingofsuchcauses.

a. Thecontractorwilladvise,intheeventofhishavingresorttothisclausebyaregisteredletterdulycertifiedbythelocalchamberofcommerceorstatutory authorities,thebeginningandendoftheclauseofdelay,withinfifteendaysoftheoccurrenceandcessationofsuchforcemajeurecondition.

b. FordelaysarisingoutofForceMajeure,thecontractorwillnotclaimextensionincompletiondateforaperiodexceedingtheperiodofdelayattributableto causesofForceMajeureandneitherEmployernortheContractorshallbeliabletopayextracosts(likeincreasein rates,remobilizationadvance,idlechargesforlabourandmachineryetc.)provideditismutuallyestablishedthattheForceMajeureconditions didactually exist.

c. IfanyoftheForceMajeureconditionsexistsintheplaceofoperationofthebidderevenatthetimeofsubmissionofthebidhe will categorically specify them in the bid and state whether they have been taken into consideration in their bids.

The Contractor or the Employer shall not be liable for delays in performinghis obligations resulting fromany force Majeure causeasreferredtoand/ordefinedabove.Thedateofcompletionwill,subjecttohereinafterprovided,beextendedbya reasonable time even though such cause may occur after Contractor's performance of his obligations has been delayed for other causes.

50. Intellectualpropertyrights:

49.3 All communications, whether written or oral, including but not limited to this Contract, its Annexure, Drawings, data sheets, Specifications,billsofmaterial,sketches,calculations,designsandallothermaterialsshallbetreatedasconfidentialandshallbe the exclusive property ofthe Employer unless otherwise agreedin writing andmust begiven to the Employerupon request,but in any event all such materials shall be delivered to the Engineer-in-Charge upon termination/expiry of this Contract.

50.1 The Contractor agrees that it and its employees, agents, Sub- Contractorsandconsultantsshall not (without theprior writtenconsentoftheEmployer)duringthetermofthisContractorthereafter,disclose,makecommercialorotheruseof,giveor sellto any person, firmorcorporation,anyinformationreceiveddirectlyorindirectlyfromtheEngineer-in-Chargeoracquiredordeveloped inthecourseof the Work or this Contract,including byway of exampleonly, ideas, inventions,methods, designs, formulae,systems,improvements,prices,discounts,businessaffairs,tradesecrets,products,productspecifications, manufacturing processes, data and know-how and technical information of any kind whatsoever unless such information has been publicly disclosed by authorised officials of the Employer. The Contractor agrees that prior to assigning any employee oragentor hiringanySub-

50.2 ContractororconsultanttoworkonthisWork,suchemployee,agent,Sub-Contractororconsultantshallbe required to execute a document containing in substance and form, a confidentiality provision similar to this provision.

TheContractorshallnot,withouttheEngineer-in-Charge'spriorconsent:

a. TakeanyphotographsorvideosoftheWork(oranyparttheref)foruseotherwisethaninconnectionwithcarryingoutandcompletionoftheWork ;

50.3 b. Writeforpublication,orcause,informationorcommentorpicturesabouttheWork;

c. Supplytoanythirdpersonsuchasactualandprospectiveclients,contractors,publishers,otherinterestedpartiesandthelike,thedesig ns and any articles or information relating to the Work; and

d. Giveinterviewstothepressincludingtelevision,radioprintandthelikeregardingtheWorkortheContractor'sinvolvementintheWork.

Notwithstandingtheforegoing,thisprovisionshallnotlimittheobligationoftheContractortotakephotographsand/orvideoson aregularbasisforthepurposeofprovidingtheprogressreportsandothercommunicationstotheEngineer/Employer.

50.4

50.5 TheContractor,Sub-Contractorsandtheirrespectiveemployees, representatives, agents,servants,workmenandsuppliersshall not, during or after the termination/expiry of thisContract, disclose anyinformationpertaining tothisContractor theWork to any person without the prior written consentof the Engineer-in-Charge except when called uponto do soby a valid and lawful directionororderofastatutoryorGovernmentauthorityoranorderofacourtoflaworwhereanyofthepartiesrequireproduction of this document and related information for establishing their respective legal rights.

51. Governinglaw:

51.1 ThegoverningLawoftheContractshallbeIndianlaw.

52. Standardsofconduct:

52.1 TheContractor,inperformingitsobligationsunderthisContract,shallestablishandmaintainappropriatebusiness standards, procedures and control, including those necessary to avoid any real or apparent impropriety or adverse impact on the interestsof theEmployer /Engineer-in-Charge. TheEmployer /Engineer-in-Chargewill inno event reimburse theContractorfor any costs incurred for purposes inconsistent with such policies.

52.2 CompliancewithLaws,RulesandRegulations:Contractorrepresents,warrants,certificatesandcovenantsthatin connection with performance under this contract that:

a. It shall, and the Work to be provided hereunder shall, comply with all applicable Local, National, and Central Laws, rules and regulations, including but not limited to those governing building/road constructions, environmental, safety of persons and property, Employee State Insurance, workmen compensation, ProvidentFund andapplicable industrial/labourlaws, and land development laws, rules and regulations.

b. Noservicesprovidedhereunderwillbeproducedusingforced, indenturedorconvictlabourorusingthelabourofpersonsinviolation of the minimum working age law in the country where the Work are rendered;

c. Itshallcomplywithalllawsregardingimproperorillegalpayments,giftsorgratuities;andContractoragreesnottopay,promise to pay or authorize the payment of any money or anything of value, directly or indirectly, to any person or entity for the purpose of illegally or improperly inducing a decision or obtaining or retaining business or any advantage in connection with this Contract;

d. Ithasnotpaidorprovidedandshallnotpay,anygratuityforthebenefitofanyagent,representativeoremployeeoftheEmployerotherthan in accordance with the Employer's applicable policies; and

e. It has not, and shall not, engage in any sharing or exchange of prices, costs or other competitive information or take any other collusiveconductwithanythirdpartysupplierorbidderinconnectionwiththepreparationorsubmissionofanybidorproposalto the Engineer-in-Charge or the negotiation of this Contract.

f. ItwillalsocomplywithallrulesandregulationsoftheEmployerwhichmaybeineffectattheFacilitysiteregarding employment, passes, badges, smoking, fire prevention, safety and conduct or property. On behalf of theEngineer-in-Charge, ContractorshallrequestandmonitorthatsuchisobservedbyanyContractor,subcontractors,vendorsandeachoftheiremployees.

52.3 SalientFeaturesofSomeMajorLabourLaws(Applicabletotheestablishmentsengagedinconstructionwork)

52.3.1 WorkmenCompensationAct1923:TheActprovidesforcompensationincaseofinjurybyaccidentarisingoutofandduringthecourseof employment.

52.3.2 PaymentofGratuityAct1972:Gratuityispayabletoanemployeeundertheactonsatisfactionofcertainconditionson separationifanemployeehascompleted5years'serviceormoreorondeaththerateof15dayswagesforeverycompletedyearofservice.TheActisappl icable to all establishments employing 10 or more employees.

52.3.3 EmployeesP.F.andMiscellaneousProvisionAct1952:TheActProvidesformonthlycontributionsbytheemployerplusworkers@10% or 8.33%. The benefits payable under the Act are:

i. Pensionorfamilypensiononretirementordeath,asthecasemaybe.
ii. Depositlinkedinsuranceonthedeathinharnessoftheworker.
iii. PaymentofP.F.accumulationonretirement/deathetc.

52.3.4 MaternityBenefitAct1951:TheActprovidesforleaveandsomeotherbenefitstowomenemployeesincaseofconfinementormiscarriage etc.

52.3.5 ContractLabour(Regulation&Abolition)Act1970:TheActprovidesforcertainwelfaremeasurestobeprovidedbythe Contractortocontractlabourandincasethe Contractorfailstoprovide,thesamearerequiredtobeprovided,bytheEmployerbyLaw.The ContractorisrequiredtotakelicensefromthedesignatedOfficer.TheActisapplicabletotheestablishmentsoftheContractorforthe Employer if they employ 20 or more contract labour.

MinimumWagesAct1948:TheEmployerissupposedtopaynotlessthantheMinimumWagesfixedbyappropriate GovernmentasperprovisionsoftheActiftheemploymentisascheduledemployment.ConstructionofBuildings,Roads,Bridges,Runwaysetcare scheduled employments.

PaymentofWagesAct1936:Itlaysdownastobywhatdatethewagesaretobepaid,whenitwillbepaidandwhat deductionscanbemadefromthewagesoftheworkers.

EqualRemunerationAct1979:TheActprovidesforpaymentofequalwagesforworkofequalnaturetoMaleandFemaleworkersandfornotmakingdiscriminati onagainstFemaleemployeesinthemattersoftransfers,trainingandpromotionsetc.

PaymentofBonus:MinimumbonusshallbepaidaspertheStateGovernmentrulesprevailingduringthetimeofwork.

IndustrialDisputesAct1947:TheActlaysdownthemachineryandprocedureforresolutionofIndustrialdisputes,inwhatsituationsastrikeorlock-outbecomesillegalandwhataretherequirementsforlayingofforretrenchingtheemployeesorclosingdowntheestablishment.

IndustrialEmployment(StandingOrders)Act1946:Itisapplicabletoallestablishmentsemploying100ormoreworkmen(employment size reduced bysome of the States and Central Government to 50). The Act provides forlaying downrules governingtheconditionsofemploymentbytheEmployeronmattersprovidedintheActandgetthesamecertifiedbythe designatedAuthority.

TradeUnionsAct1926:TheActlaysdowntheprocedureforregistrationoftradeunionsofworkmenandemployers.TheTradeUnionsregistered under the Act have been given certain immunities from civil and criminal liabilities.

ChildLabour(Prohibition&Regulation)Act1986:TheActprohibitsemploymentofchildrenbelow14yearsofageincertain occupations and processes and provides for regulation of employment of children in all other occupations and processes. EmploymentofChildLabourisprohibitedinBuildingandConstructionIndustry.

Inter-StateMigrantworkmen's(RegulationofEmployment&ConditionsofService)Act1979:TheActisapplicabletoan establishmentwhichemploys5ormoreinterstatemigrantworkmenthroughanintermediary(whohasrecruitedworkmeninone stateforemploymentintheestablishmentsituatedinanotherstate).TheInter-Statemigrantworkmen,inanestablishmenttowhichthisAct becomesapplicable, are required to be provided certain facilities such as housing, medical aid, travelling expensesfromhome up to the establishment and back, etc.

The BuildingandOtherConstructionworkers(Regulation ofEmploymentandConditionsofService)Act1996 and the Cess Act of 1996: All the establishments who carry on any building or other construction work and employs 10 or more workers are coveredunderthisAct.Allsuchestablishmentsarerequiredtopaycessattheratenotexceeding1%ofthecostofconstruction asmaybemodifiedbytheGovernment.TheEmployeroftheestablishmentisrequiredtoprovidesafetymeasuresattheBuildingor constructionworkandotherwelfaremeasures,suchasCanteens,First-Aidfacilities,Ambulance,Housingaccommodationsforworkersneartheworkplaceetc. The Employer towhom the Act applies has to obtain a registration certificate from the Registering Officer appointed by the Government.

FactoriesAct1948:TheActlaysdowntheprocedureforapprovalatplansbeforesettingupafactory,healthandsafetyprovisions,welfareprovisions,workinghours,annualearnedleaveandrenderinginformationregardingaccidentsordangerous occurrencestodesignatedauthorities.Itisapplicabletopremisesemployingpersonsormorewithaidofpoweror20ormore personswithouttheaidofpowerengagedinmanufacturingprocess.

53. WarrantyastodocumentssubmittedtoEmployeraudit:

TheContractorrepresentsthatalldocuments,includinginvoice,vouchers,financialstosettlements,billingsandother reports submitted or to be submitted by theContractor to the Engineer-in-Charge in supportof an application paymentare true, correct,complete and accurate in all respects.UponrequestoftheEngineer-in-Charge,theContractoragrees to cooperate fully withtheEngineer-in-ChargeandthefieldEngineersintheconductofaTechnicalAuditfortheWorkbyanindependentagency

53.1 entrusted by the Agreement Authority. The Contractor accepts that the contract / work shall be subject to the technical audit by an independent technical auditor appointed by the Agreement Authority to audit the quality and quantities of the works done by the contractor, and agrees to renderall necessary assistance to such agencies/ professionals, whose reports/ assessmentsshall be finalandbinding.Contractorshallfulfiltherequirementsaspertheauditorsassessmentsathisowncostwithinthetimestipulatedby theEngineer-in-Charge.

54. ChangesinContractor'sconstitution:

54.1 WherethecontractorisaPartnership,priorapprovalinwritingshallbeobtainedfromtheEngineer-in-Chargebeforeanychangeismade inthe Constitution of the partnership.

54.2 WheretheContractorisanindividualoraHinduUndividedFamilybusiness,suchwrittenapprovalfromtheAgreement authorityshalllikewisebeobtainedbeforeContractorentersintoanypartnershipagreementinwhichthepartnershipwouldhavetherighttocarryoutthework previously to be undertaken by the Contractor.

54.3 IfsuchwrittenpriorapprovalisnotobtainedbytheContractor,appropriateactionshallbetakenbytheAgreementauthorityasperthecontract terms and conditions.

55. Groundsforwithholdingpayments:

TheEngineer-in-Chargemay withhold thewholeorpartofany compensationdue to theContractor to theextent necessarytoprotect theEmployerfromany loss onaccount of any breachof Contractor's obligations undertheContract. Whenthecauseforwithholding is rectified, such amounts then due and owing shall be paid or credited to the Contractor.

CONTRACTOR'SSITEORGANIZATIONANDRESOURCES

56. Contractor'srepresentativeandsupervisorystaff

TheContractorshallathiscostprovideandensurecontinuedeffectivesupervisionoftheWorkwiththehelpofthe Contractor'sRepresentative,assistedbyteamofqualified,experiencedandcompetentengineers,supervisorsandadequatestaff, to the satisfaction ofthe Engineer-in-Charge for the entire duration of the Work. The Contractor shall submit his proposed site organizationchartfortheapprovaloftheEngineer-in-Charge.TheContractor'sRepresentativeshallbeontheSiteatalltimesastheWorkandtheWorkprogressesandshallberesponsibleforcarryingoutt heWorktothetruemeaningoftheDrawings,Specifications, ConditionsofContract,ScheduleofRates,theotherContractDocuments,andinstructionsanddirectionsoftheFieldEngineers.Theinstructionsandd irectionsgiveninwritingtotheContractor'sRepresentativeortoanyofhisassistantsattheSitebytheEngineer-in-ChargeshallbedeemedtohavebeengiventotheContractorofficially.Attentioniscalledtothe importance of the Contractor requesting written instruction from the Engineer-in-Charge before undertaking any Work where the Engineer-in-Charge'sand/orEmployer'sdirectionorinstructionsarerequired.AnysuchWorkdoneinadvanceofsuchinstructionswillbeliabletoberemovedatthe Contractor's expense and willnot be paid for unless specifically approved in writing by the Engineer- in-Charge, as the case may be.Allkey staff employed at the Site by the Contractor shallbe considered essentialto the performance of the Work and theWorkCo-ordinationServices,andallkeystaffshallbesubjecttotheapprovaloftheEngineer-in-Charge.HoweversuchapprovalshallnotrelievetheContractorofanyofhisContractualobligations.Nostaffincludingtheresidentengineerandoth ertechnicalsupervisorystaffshallbe removed or transferred from the Work without the prior written permission of the Engineer-in-Charge.TheEngineer-in- Chargeshall, however,havetheauthoritytoordertheremovalfromSiteofanyundesirablepersonnel.Ifkeystaffbecomesunavailablefor assignment to theWork or theWork Co-ordinationServices for reasons beyond the Contractor's control, theContractorshall immediately notify theEngineer-in-Charge toevaluate the impactonthe Work. Prior to substitution or additionofanykeystaff,theContractorshallobtaintheEngineer-in-Charge'swrittenconsentastotheacceptabilityofreplacementsoradditionstosuchpersonnel.TheContractorshallatalltimesbefullyresponsibleforth eacts,omissions,defaultsandneglectofallofhisrepresentatives,agents,servants,workmenandsuppliersandthoseofhisSub-Contractors.

56.1

57. Man-powerandplantandmachinery

TheContractorshallathisowncostprovideandinstallallequipment,materials,plant/machines.ProvisionofPassengerLift,BatchingPlant,Concr etePumps,Cranes,andMaterialHoistseachofadequatecapacity,willberequiredincaseofbulkconcretingandfast construction. Other equipments like concrete mixers (weigh batchers in case of design mixes), ladders, and scaffolding etc, necessary fortheexecutionoftheWorkinconformitywiththeContractDocumentsandtothesatisfactionoftheEngineer-in-Chargewill alsobeprovidedbythecontractorathisowncostinadequatequantity.Allmachines,tools,trucks, formworkmaterial,man-powerandeverythingelsenecessaryfortheproperandsatisfactoryexecutionandcompletionofthe WorkinaccordancewiththeContractDocumentsshallbeprovidedbytheContractorathisowncost.Thepre-qualificationapprovalofthelistofequipmentshowevershallnot relieve the Contractorofanyof his responsibilities,obligationsandliabilities undertheContract.TheContractorshallaugmenthismanpower,plantandmachinerywithoutextracosttotheEmployerwheneverrequiredorsodirected by the Engineer-in-Charge in order to conform to the approved construction programme fortheachievementofmilestonesandVirtualCompletion.Thebatchingplant,hotmixplantWMMplantandConcretebatchmixplan tshallbecomputerised(Microprocessorbased)withprintingfacilitysoastokeeptheprintedout-putforeachbatchofconcretemixandforeachcomponent(stoneaggregates,sand,cement,flyash,water,plasticiser&anyotherconcreteadmixture)foreachbatch ofdesignmix concrete for record purpose. The plants shall also be equipped with antipollution device and mechanisms.

57.1

58. Contractorstore,siteofficesandotherfacilities

ItisagreedthattheContractorhasinspectedthesiteandhasmadehisownassessmenttowardstheavailabilityofspaceat siteforhisstores,yards,offices,placementofbatchingplant,steel&shutteringyards,cranes,materialhoistsandotherfacilities. AmutuallydeterminedareawithintheconstraintsoftheSitewillbeallowedtotheContractorfreeofcost forthepurposeofstoring histools,plant,materials,Siteoffice,cementgodown,canteen,plant&machineryetc.Incasecontractorisnotabletoaccommodatehisfacilitieswithi nthesite,orintheopinionoftheEngineer-in-Chargecontractor'sfacilitiesaretoberemovedorrelocatedintheinterestof theprogressof work (contractorsand /orany otheragencies/ vendors) thecontractor shall make his ownarrangementselsewhereoutsidethesiteathisowncostforthesame.Watertankforthepurposeofconstruction,Site offices,toilets,workshopsandstorageshedsetc.shallbebuiltbytheContractorattheContractor'scost.Watertank/sconstructedforthepurposeofcon structionshouldbeofsuchdimensionsastoprovidestorageforatleasttwodaysconsumption.Siteofficesshallbeofsuch dimensionsto accommodatetheContractor'sownoffice.Aseparatesanitaryfacilityshallbeprovidedandmaintainedfor,Engineersandworkers.Thesameshallbe clearedorremovedafterconstructionperiod.TheContractorshallremoveallthetemporaryconstructionconstructedby him atthe Site for the purpose of completing the Work after the Work is completed. Costs of allsuch facilities including construction&removalshallbebornebytheContractor.ConstructionoflabourhutmentswillnotbeallowedinsidetheSite.TheContractorshallathis own cost make all arrangements for space, lodging, transportation etc. for the labour.

58.1

59. Security

TheContractorshall athiscostprovideatall timesadequatenumberofwatchmen toguardtheSite,materialsand equipment, to the satisfaction of the Engineer-in-Charge. The Contractor shall at all times be fully responsible for the security of all materialsand equipmenton the Site, whether owned by the Employer, Contractor'sown or those ofany Sub-Contractor. Employer /Engineershallnotberesponsibleforanylossduetotheft,fire,accidentoranyotherreasons,whatsoever.

59.1

60. Telephone/Communication/Otherservices

60.1 Thecontractorshallmakehisownarrangementforthetelephonesandcommunicationatsitewithinformationtothe Engineer-in-Charge.

61. SanitaryConvenience:

61.1 TheContractorshallathisexpenseprovideanderectwithpriorpermissionanddetailstotheEngineer-in-Chargeall necessarysanitaryconveniencesincludingseptictankandsoakpitsattheSiteforthestaffandallworkmenofhisown,hisSub-Contractors,theEngineerandEngineer'sRepresentatives.Thesanitaryconveniencesshallbestrategicallylocatedaroundthe Sitetoprovidereadyacc esstoallsiteoperativesandemployees.TheContractorshallmaintainsuchconvenienceinaclean, hygienic,orderlyconditionandshall clean,disinfectanddeodorizethegroundaftertheirremoval,andmeetallstatutory requirements.

62. Scaffolding,staging,guardrails,barricades:

62.1 TheContractorshallathiscostprovidesteelscaffolding,staging,guardrails,barricadesandsafetybarriersaroundallexcavations,openingsandatalledge s, temporary stairsandother temporarymeasuresrequired duringconstruction.The supportsforthescaffolding,stagingguardrails,barricadesandsafetybarriersandtemporarystairsshallbestrong,adequatefortheparticularsituatio ns,tiedtogetherwithhorizontalpiecesandbracedproperly.Thetemporaryaccesstothevariouspartsofthebuildingunderconstructionshallberigidan d strong enough toavoidanychance ofmishaps. Theentire scaffolding arrangementtogether withthe staging,guardrails,barricadesandsafetybarriers,andtemporarystairsshallbetotheapprovaloftheEngineer-in-ChargewhichapprovalhowevershallnotrelievetheContractorofanyofhisresponsibilities,obligationsandliabilitiesforsafetyandfortimelycompletio noftheWork. The use of wooden scaffolding on the Site is strictly forbidden.

63. TemporaryRoads: TheContractorshallathiscostconstructandmaintaintemporaryroads/accesswaystosuitSiterequirementsatlocations mutuallyagreedwiththeEngineer.Suchroads/accesswayswillalsobeusedbyotherContractors/vendors/OfficialsworkingattheSite.

64. SafetyEquipment&Personnel:

63.1 The Contractor shall provide sufficient helmets, safety boots/shoes, nets and protective clothing for use by the Work ManagementTeam,Engineer,Engineer'sRepresentative,contractor'sownstaffandstaffofhissub-contractors.TheContractorshallmakeavailableatalltimeswhenworkisbeingundertaken,avehiclesuitablefortheemergencyevacuationofper sonnelfromthesitetoa hospital staffed and equipped to receive injured personnel.

65. TemporaryLighting:

64.1 TheContractorshallmakehisownarrangementinrespectoftheprovisionofadequatelightingatallplaceswhereadequatevisibilityisnotthereo rat night worksand alsoprovidegenerallighting ofsite as awholeinapropersafe andsatisfactory manner.

66. ProtectionofEnvironment:

65.1 TheContractorunderstandsthattheSiteisfree from pollutantsatthe timeofaccessto theSiteandcommencementofthe Work.TheContractorshallcomplywithallapplicableenvironmentallawsandregulationsandshallensurethattheSiteisandremainsfreefrompollutantsatthe endoftheWork.TheContractorshallensureinter-alia,thatneitherthesoilnorthegroundwaterispollutedorcontaminatedbyfuelsorlubricantsemittedbymachineryoperatedontheSiteorbyotherdang erousorpoisonoussubstanceswhichareoraredeemedtobehazardoustotheenvironment.Notwithstandingtheabove,theContractorshallcomply with all the directions and decisions of the Engineer in this regard.

66.1 **67. FirstAidFacilities:**

TheContractorshallprovideadequatefirstaidfacilitiesatsite.

68. Labourregulations:

67.1 TheContractorshallbewhollyandsolelyresponsibleforfullcompliancewiththeprovisionsunderalllabourlawsand/or regulations suchasPaymentofWagesAct1948,EmployeesLiabilityAct1938,Workmen'sCompensationAct-1923,EmployeesStateInsuranceAct-1948, Employees Provident Fund Act-1952, Industrial Disputes Act- 1947, the Maternity Benefit Act-1961, the Contract Labour (Regulation andAbolition) Act-1970 andtheFactories Act-1948 or any modificationsthereofor anyother law relating thereto and rules there under introduced from time totime. The Contractorshallassume liability and shallindemnify the EmployerandEngineer-in-Chargefromeveryexpense,liabilityorpaymentbyreasonoftheapplicationofanylabourlaw,act,rulesorregulationsexistingortobeintroduced at a future date during the term of the Contract. Insurance cover towardsthe above shallbeeffectedbytheContractorascalledforinClause12.Ingeneral,inrespectofalllabourdirectlyorindirectlyemployedintheWorkfortheperforman ceofContractor'spartoftheContract,theContractorshallcomplywithalltherulesframedbythe

68.1 Governmentauthoritiesconcernedfromtimetotimeforprotectionofthehealthandwelfareoftheworkers.TheContractorshallathisowncostobtainav alidlicenceforhimselfandtheEmployerunderthe ContractLabour(R&A)Act1970andtheContract labour (Regulation and Abolition) Central Rules 1971 and under any otherapplicable rulesbefore thecommencement ofthe Work and continue to have a valid licences until the completion of the Work.

68.2 Paymentofwages:TheContractorshallpaytolabouremployedbyhimeitherdirectlyorthroughSub-Contractorswagesnotless than fair wages as defined in the relevant Central / Local Labour Regulations or as per the provisions of the Contract Labour (RegulationandAbolition)Act1970andtheContractLabourRegulationandAbolitionofCentralRules1971,whereverapplicable. He shall also abide by the minimum wages and other regulations applicable to the labour engaged in the Work, as laid down by the concerned Central / local authorities (State, District or other local Authorities). In case the contractor fails topay farewagesas required by the authorities then the Employer/ Engineer-in- Charge shall be entitled to do so and receives such amounts including associated cost incurred by them in doing so from the contractor.

68.3 Model Rules: The Contractor shall at his own expense comply with or cause to be compliedwith, ModelRulesfor labour welfare framed by Governmentorotherlocalbodiesfromtime to timeforthe protection ofhealth andformakingsanitary arrangements,Malaria control,etc.forworkersemployed directlyor indirectlyontheWorkandintheworkershutmentarea.In casetheContractorfailstomakearrangementsasaforesaid,theEmployershallbeentitledtodosoandrecoverthecostthereof from the Contractor.

68.4 SafetyCodes:InrespectofalllabourdirectlyorindirectlyemployedontheWorkfortheperformanceandexecutionoftheContractor'sWorkunder theContract,theContractorshallathisownexpensearrangeforallthesafetyprovisionsaslistedin (i) Safety codes of Central Public Works DepartmentandBureau of IndianStandards, (ii)TheElectricity Act, (iii)TheMinesAct, and Regulations, (iv) Regulations of employment & conditions of service Act 1996, Rules and Ordersmade thereunder andsuch otheractsasapplicable.Precautionsasstated inthesafetyclausesareofminimumnecessityandshallnotprecludethe Contractor taking additional safety precautions as may be warranted for the particulartype of work or situations. AlsomereobservanceofthesepreautionsshallnotabsolvetheContractorofhisliabilityincaseoflossordamagetopropertyorinjuryto any personincludingbutnot limitedtotheContractor'slabour,theEmployer'sConsultants,Employer'sRepresentativesandEngineer- in-Charge'srepresentativesoranymemberofthepublicorresulting inthedeathofanyofthese.Protectivegearsuchassafetyhelmets, boots,belts,gloves, spectacles,nets, fire extinguishersetc.shallbe provided by theContractor at hisowncost to all his manpowerattheSite.TheContractorshallimposesuchrequirementsonallSub-ContractorsandVendorsalso.Itshallbetheresponsibilityofthe Contractor to ensure that such protective gear is wornat alltimesbyallpersonnelworkingat theSite during the termoftheWork. TheEmployer,Engineer,andEngineer'sRepresentativeshalleachhavetherighttostopanypersonnotwearingsuchprotectivegearfromworkingon the Site.

68.5 IncasetheContractorfailstomakearrangementsandprovidenecessaryfacilitiesasaforesaid,theEngineer-in-Chargeshallbeentitled (butnotobliged)todosoandrecoverthecoststhereoffromtheContractor.ThedecisionoftheEngineer-in-Chargeinthisregardshallbefinalandbinding on the Contractor.

69. Safety/SiteConditions:

69.1 TheContractorshalltakefullresponsibilityfortheadequacy,stabilityandsafetyofallSiteoperationsandensurethatthemethodsofcarryingoutthe WorkandtheWorkbytheContractorincludinghisworkmen,employees,Sub-ContractorsandVendorsmeetallthenecessarysafetystandardsand requirements. In order tofulfil thisobligation the Contractorshallappoint a permanent, fulltime andsuitablyqualifiedsafetyofficer for theSite,who shall be responsiblefor incorporation,implementationand enforcementofall safety measures and requirements for maintaining safeworking conditions, safety of manpower and equipment, generalsafetyandsecurityofSiteasperthevarioussafetycodesandstipulationsmentionedincontractdocuments.TheContractorshallprovideId-Cards(IdentityCards)toeachofhisworkerwithdesignatednumber&colouronlyofthecardas directed by theEngineer-in-Charge.

69.2 TheContractorhasfullresponsibilityformaintainingtheSite ingoodandcleanconditionandremovingalltrashanddebrisonadaily basistothesatisfactionoftheEngineer.TheContractorisresponsibleforprovidingadequatesanitaryfacilitiesandmaintainingtheminacleanandhealthy condition. If the Contractorfails to comply with the above the Engineer-in-Chargewill havethe authorityto get the same cleaned byanexternalagencyanddebittheexpensesincurredonthesametotheContractor'saccount;butwithoutbeingunderanylegal obligation to do so.

69.3 If,byreasonofanyaccident,orfailure,orothereventoccurringto,in,orinconnectionwiththeWork,oranypartthereof,eitherduringtheexecutionoftheWork,orduringtheDefectsLiabilityPeriod,anyremedialorotherworkis,intheopinion ofEmployers Representative or the Engineer-in-Charge urgently necessary for the implementationofthesafetyprogrammeof theWorkbytheContractorandtheContractorisunableorunwillingatoncetodosuchwork,theEngineer-in-Chargeshallbeentitledtoemployandpayotherpersonstocarryoutsuchworkastheengineer-in-Chargemayconsidernecessary.Iftheworkorrepairsodonebythe Engineer-in-Charge is work which, in the opinion of theEngineer-in-Charge, the Contractor is liable to do at itsown cost, then all costs consequent thereonorincidentaltheretoshall berecoverablefromtheContractorandmaybedeductedby theEngineer-in-Charge fromanyofthePerformanceSecurityDepositandanymoneysdueortobecomeduetotheContractorandtheEngineer-in-Chargeshallnotifythe Contractor accordingly, provided that the Engineer-in-Charge shall, as soon aftertheoccurrence ofanysuchemergencyasmay be reasonablypracticable,notifytheContractor thereof.The Contractor shallensure that all operations by the Contractor, his workmen,employees,Sub-ContractorstocompletetheWorkandtheremedyingofanydefectsthereinshall,sofarascompliancewiththerequirements of this Agreement permit, be carried on so as not to interfere unnecessarily or improperly with:

a) Theconvenienceofthepublic,or
b) Theaccessto,useandoccupationofpublicorprivateroads,railwaysandfootpathstoorofpropertieswhetherinthe possession of Employer/Engineer-in-Charge or of any other person.
c) TheWorkofVendors/othercontractors.

69.4 Ifanyhazardousorobnoxiousmaterials(asdefinedbyIndianlaw)arespecifiedforuseorarebeingusedbySub- Contractors or Vendors, the Contractor shall take necessary clearances from concerneddepartments andkeep recordof such material and forthwith give written noticetotheEngineer-in-ChargeandshallensurethattheSub-ContractorsandVendors,asapplicable,use,storeanddisposeofsuch hazardous or obnoxious materials strictly in accordance with all applicable laws.

69.5 AdditionalSafety Regulations: The Contractor shallcontinuously maintain adequate protection for the Workagainst fire andother hazards andshallprotect theEmployers /Engineer's property fromdamageorlossduringtheperformanceofthisContract.TheContractor also shall adequately protect property adjacent to theWork. TheContractorshall take all necessary precautionsfor thesafetyofitsemployees,SubcontractorsandtheVendorsperformingtheWorkandlaterphasesoftheWorkandshallcomply with all applicable safety laws and regulations to prevent accidents or injury to persons on, about, or adjacent to the Site.The Contractor shall be responsible for co- coordinating a safe working programme with the Field Engineers. Such a programme shall include, and the Contractor shall be responsible for maintaining, the following safe working conditions and practices:

a) All combustible material, food matter, garbage, scrap, and other debris generated during the performance of the Work shall be collected and removed from the Site on daily basis. Arrangements for scrap disposal should be discussed with Field Engineers.

b) An adequate number and type of fire extinguishers and sand buckets shall be provided at the Site for fire control and shall be kept/maintained in satisfactory and effective working condition, at all times.

c) TheContractoranditsemployees,labourersandsubcontractorsshallstrictlyobeyall"NoSmoking"restrictions.

d) The Contractor shall not operate or use or manipulate utilities already established at the Sitewithout theEngineer- in-Charge's prior writtenapproval.

69.6 Safety with regard to site and housekeeping:- The contractor shall depute a dedicated team of adequate numberofworker under the responsibility of the Safety In-charge for carrying out the safety andhousekeeping workat siteon daily basis. Following shall be ensured by the Contractor and his safety & housekeeping team:

a) TheuseofintoxicantsorunlawfuldrugsattheSite,inanydegree,shallbestrictlyprohibited.TheContractorshallrigorouslyenforce this regulation.

b) Whenoverheadworkisinprogressinoraroundanoccupiedarea,signstodenotesuchworkprominentlydisplaying"OverheadWork"shallbeusedan d a barricade shallprotect the area. Safety nets and appropriate catchments provisions shallbe provided at suitable levels so as not to allow any material to fall on the ground.

c) Dustywork,suchasconcretebreakingordemolition,inornearoccupiedareas,shallproceedonlyafterwettingdownthearеaandtakingsteps necessary to prevent dust from penetrating occupied areas and creating a nuisance.

d) Careshallbetakennottoblockanydoor,passageway,andsafetyexit,firefightingequipment,orsafetyequipmentwithmaterialsorequipment.

e) Materialsmustbepiled,stacked,orstoredinaneatandorderlymanner.Allstackinginthesite,whetherinsideoroutsidea building,shallbeparallel to or atrightanglesto the buildinglineor fence.Thestacking ofmaterialsshallbe organisedon daily basis.

f) Whennoisyoperationsofaprolongednaturearenecessaryinornearanoccupiedarea,arrangementsmustbemadewiththeEngineer-in-Charge for scheduling to minimize any nuisance in the occupied area.

g) Allcriticalanddangerouslocations/areasatsiteshallbemarkedwithcautionsigns,indicationsanddirectionsintheformofwelldesignedand uniform signage, the design of signage shall be approved by the Engineer-in-Charge.

69.7 Ifthe FieldEngineernotifiesthe Contractorofnon-compliancewithall oranyofthe foregoingregulations,theContractor shallimmediately,ifsodirected,orinanyeventnotmorethaneighteen(18)hoursafterreceiptofsuchnotice,makeall reasonable effortsto correct such non-compliance. IftheContractor fails to do so, the Engineer-in- Charge may suspend all or any partoftheWork.WhentheContractorhasundertakensatisfactorycorrectiveaction,Engineer-in-ChargeshalliftthesuspensionofthеWork. The Contractor shall not claim any extension of time to complete the Work or additional fees due to any such work suspension.

69.8 Notwithstandinganythinghereinbeforecontained,theContractorshallbeliabletoensureandimplementallsafetymeasures,whetherornotstat utorilyprescribed,tosafeguard,preserveandprotectthelife,healthandwelfareofeveryworkmanemployed/deployed/engageddirectlyorindirectlybyt he Contractor on the Site andinrelationto orconnected with the Work and all VendorsemployedinlaterphasesoftheWorkinadditiontoinstalling,providingeveryprescribedsafetyandprotectiveequipment,clothingetc.,andthem ereabsenceofanyreferencetoorspecificationofaparticularstatuteorruleorregulationinthisContractshallnotabsolvetheContra ctorofanobligationtocomplywitheverysuchlaw,ruleorregulation.Theobligationsstipulatedshallnotinanymannerbedeemedtolimitorrestrictanyobli gationordutythatanylaw,ruleorregulationmayotherwiseimposeupontheContractor.The Contractor shall beliable for all consequences/liabilitiesarising outofhisviolatinganyoftheaforesaid provisions, including fines, penalties, compensations,damages,prosecutions,proceedings,medicalexpenditureandcosts,rehabilitationcostsandallotherexpensesconnectedtherewith .

70. ChildLabour:

70.1 TheContractorshallnotemployanylabourlessthan18(eighteen)yearsofageonthejob.Iffemalelabourisengaged,theContractorshallmakenecessaryprovisionsathisownexpenseforsafeguardingandcareoftheirchildrenandkeepingthemclearofthe Site. No children shall be permitted at the Site.

71. Contributiontowardsworkers/employeebenefits,fundsetc

71.1 The Contractor shall include intheContract Price all expenses necessary to meet his obligations for making contributions towardemployeebenefitsfunds(SuchasprovidentfundEmployeesStateInsurancebenefits,ESI,oldagepensionand/orany other benefits/compensation legally payable) in compliance with allthe statutory regulations and requirements. Allrecords in this connection shallbeproperly maintainedby theContractorandproducedforscrutiny by theconcernedauthorities andtheEngineer in-Chargeand the Employer whenever called for.

71.2 Employees State Insurance Scheme (ESI): TheContractor shall beliable topay hiscontribution andEmployees contributionto the StateInsuranceSchemeinrespectofalllabouremployedbyhimorfortheexecutionofthecontractinaccordancewiththeprovisionof "The Employees State Insurance Act, 1948" as amended from time to time.

71.3 EmployeesProvidentFund(EPF):TheContractorshallobtainprescribedrecommendationsfromtheRegionalProvident FundsCommissionerundertheEmployees"ProvidentFundand MiscellaneousProvisionsAct,1952andshallcauseprovident fundcontributionfromalleligibleemployeesandContractor'scontributiontobedepositedregularlywiththeprescribedauthorityandintokenofwhichshall submiteverymonthnecessaryreceipts/documentaryevidenceasmayberequiredbytheEngineer-in-Charge.ThecontractorshallalsoprovideitsProvidentFundregistrationnumber/certificatetoEngineer-in-Charge.Incasethe contractorfailstocomplywithaboveprovisionsasrequiredbytheauthoritiesthentheEngineer-in-Chargeshallbeentitledtodosoandrecoversuchamountsincludingtheassociatedcostsincurredbythemindoingso,fromthecontractor.TheContractor mustfullysatisfy himselfastothesepointsandallowcoverageforthesameintherateswhilegivinghistender.Nothingextrashallbepaidontheseaccounts.

72. Settingoutandsitesurveys

72.1 The Contractor shall establish, maintain and assume responsibility for all bench marks and grid lines, and all other levels, lines, dimensions and grades that are necessary for the execution of the Work, in conformity with the Contract Documents. The Contractor shall establish his relationto the permanent benchmarksandboundary linesestablishedattheSite.The Contractor shallverifyandco-relateallthesurveydataavailableattheSitebeforecommencingtheWorkandshallimmediatelyreportin writing any errors or inconsistencies to the Field Engineer. Commencement of Work by the Contractor shall be regarded as his acceptanceofthecorrectnessofallsurveyandsettingoutdataavailableattheSiteandnoclaimsshallbeentertainedorallowed in respect ofany errorsordiscrepanciesfoundatalaterdate.Ifatanytimeerrorinthisregardappearsduringhisprogressoftheork,theContractorshall athisownexpenserectify sucherrorto thesatisfactionoftheEngineerTheapprovalby theEngineerof the setting out by the Contractor shall not relieve the Contractor from any of his responsibilities, obligations, and liabilities under the Contract.

72.2 The Contractor shall be entirely and exclusively responsible for the horizontal, vertical and other alignment for all levels and dimensions andfor thecorrectness of every part of theWork, andheshallrectify effectively any errors or imperfectionstherein. Allsuch rectifications shall be carried out by the Contractor at his owncost and to the instructions and satisfaction of the Engineer-in- Charge

TheContractorshallemployqualifiedsurveyorstocarryoutallthesurveysandsettingoutworks.

73. Drawings,specifications,interpretationsetc

72.3 The drawings included/available with the tender are to be used for general guidance only. These drawings are broadly indicative of the work to be carried out. These drawings are not the "Construction Drawings" and details indicated there in are for guidance only and are liable to be modified by the Engineer-in-Charge during courseof actualconstruction. Noclaim what so ever shall be admissible on account of changes that may be introduced later by the Engineer-in-Charge.

73.1 In general, the Drawingsshall indicate the dimensions,positionsandtypeofconstruction,the Specificationsshallstipulate the quality and the methods and performance criteria, and the Schedule of Rates shall indicate the rates for each item of work for evaluating change orders. However, the above Contract Documents being complementary, what is called for by any one shall be bindingasifcalledforbyall.Whereverthereisadiscrepancybetweendrawingsandspecifications,thedrawingsshallbe followed. In interpreting the specifications, the following order of decreasing importance shall be followed:

73.2

(i) BillofQuantities
(ii) TechnicalSpecifications
(iii) CPWD/MoRTH/IRCSpecifications
(iv) IndianStandardSpecificationofBIS

73.3 Matters not contained in the specifications and in case of any ambiguities in writtenspecifications ofthe contract, theworks shallbeexecutedasperrelevantBureauofIndianStandardscodes,CentralPublicWorksDepartmentspecifications,MoRTHspecificationsandIRC specifications in the above order of preference. If such codes have not been framed, the decision of the Engineer-in-chargeshallbefinal.AnyworkindicatedontheDrawingsandnotmentionedintheSpecificationsorviceversa,shallbedeemedasthoughfullysetforthineach.Worknotspecificallydetailed,calledfor,markedorspecifiedshallbethesameassimilarpartsthataredetailed,markedorspecified.Fromtimetotimeduringtheprogressoftheork,theContractorwillbeissuedwithrevisionsofDrawingsandwritteninstructionsbytheEngineer-in-ChargeinconnectionwithandnecessaryfortheproperexecutionandcompletionoftheWork.AllsuchrevisionsofDrawingsandwritteninstructionsshallbepartoftheContractDocumentsandtheContractorshallbeboundtocarryouttheworkthatisshownanddetailedonallsuchDrawingsandshallbebound tofollowand comply with all such instructions.

73.4 It shall be the responsibility of theContractor to ascertain and ensure that all the Work iscarried out in accordance with thelatest revisionsoftheDrawingsissuedtohim.ShouldtheContractorfailtodothis,alltherectificationsandremedialworkthatmayberequiredtoconformtothe latest revisions of the Drawings shall be at the Contractor's expense.

73.5 WhereveritismentionedintheConditionsofContract,Specifications,andotherContractDocumentsthattheContractor shall perform certainworkorprovide certain facilities,itisunderstood thatthe Contractor shall doso athisowncost,unless otherwise provided in the Documents.

73.6 No deviations shall be made by the Contractor, in the execution of the Work from the Drawings, Specifications, and other Contract Documents. Only the Engineer-in-Charge shall issue interpretations and clarifications.

73.7 The Contractor shall immediately in writing bring any errors or inconsistencies in the Drawings and Specifications to the attentionoftheFieldEngineerforinterpretationorcorrectionbeforeproceedingwiththeaffectedportionoftheWork,andno claims or losses alleged to have been caused by such discrepancies shall be entertained or allowed at any stage. Local conditions, whichmayaffecttheWork,shalllikewisebebroughttotheFieldEngineer'sattentionatonce.Ifatanytimeitisdiscoveredthat work,whichhas been done or isbeing done isnot in accordance with the approvedDrawings andSpecifications, the Contractor shall correcttheworkimmediately.CorrectionofsuchworkshallbeattheexpenseoftheContractor andshallnotform abasisfor any claims for payment orextensionof time. TheContractorshall carryoutall the rectificationworkonlyafterobtaining approval for the same from the Engineer-in-Charge.

73.8 NoscalingofanyDrawingshallbedonetoobtainthedimensions.FigureddimensionsontheDrawingsshallbeusedforcarryingouttheWork.Drawingswithlarge-scaledetailsshalltakeprecedenceoversmallscaleDrawings.WhereanyDrawings anddetailshavenotbeenprovidedbutarenecessaryfortheexecutionoftheWork,itshallbetheresponsibilityoftheContractortoseekthesedrawings anddetailsinwritingfromtheEngineer-in-Chargeatleastfourweekspriortothelatestdatebywhichthe Contractor needs thesedrawingsanddetailstosuittheprogrammedexecutionoftheWork.Noextensionoftimeshallbeallowedforanydelayscauseddue to the Contractor's failure to seek such details.

73.9 Drawings, Schedule ofRates, Specifications, and other Contract Documents, and all copiesthereoffurnished by the Engineer-in-ChargeshallbecometheEmployer'sproperty. They shallnot beusedonany otherworkandshallbereturnedtothe Employer at his request or at the completion of the Contract.

74. Overtimework

74.1 IfitisnecessaryfortheContractororanySub-ContractortoworkonotherthanworkingdaysoroutsidethenormalworkinghoursinordertokeepuptothetimescheduleandmeettheConstructionProgramme,theContractorshallobtainthepriorapprovaloftheEngineer-in-Charge in writing, which approvalshallnot be unreasonably withheld. The additionalcost ofwages andany othercosts incurred as a result of overtime or any shift work (except supervision expenses incurred by the Employer)shall be borne by the Contractor.

74.2 Whereworkisbeingcarriedoutinoraroundanoperatingplant/officeoroccupiedbuilding/premisesandisliabletocausedisturbanceorinterruptioninworkingofthePlant/Officeor inconveniencetotheoccupantsofthepremises,theContractorshall workonlyatspecifiedplacesandtimesasmutuallyarrangedbetweentheContractorandtheFieldEngineersoasnottocause any disturbance.DuetothistheContractormayberequiredtoworkduringoff-hours,Sundaysandholidays.TheContractorshallnotbeentitledforanyextra payment for doing work in the manner described above.

75. Materials,workmanship,storage,inspectionsetc

EmployerSuppliedMaterial

a) TheEmployerwillnotsupply anymaterialunlessotherwisespecifiedinthecontract.Soleresponsibility restswiththecontractor for procurement of all other materials required for completion of work within the stipulated time.

b) MaterialsspecifiedastobeissuedbytheEmployer,ifany,willbesuppliedtotheContractorbytheEmployerfromhisstoresorthedealerorthedealer's warehouse or railway siding or from any other specified place.

c) Itshallbetheresponsibilityofthecontractortotakedeliveryofthematerialsandarrangeforitsloading,transportandunloadingatthesiteofworkandtokeepthematerialsundersafecustodyatthesiteathisowncost.Thematerialsshallbe issuedduringworkinghoursonly.

d) TheContractorshallbearallincidentalchargesforthestorageandsafecustodyofmaterialsasdirectedbytheEngineer-in-Charge,atsiteafter these have been issued to him.

e) Thematerialsshallbeissuedinstandardsizesasobtainedfromthemanufacturers.

f) Itshallbethedutyofthecontractortoinspectthematerialssuppliedtohimatthetimeoftakingdeliveryandsatisfyhimselfthattheyareingoodconditi on.Afterthematerialshavebeendelivered,itshallbetheresponsibilityoftheContractortokeepthemingoodconditionand ifthematerialsaredamagedorlost,atanytime,theyshallberepairedand/orreplacedbythecontractorathisowncost,accordingtothedirectionsofthe Engineer-in-Charge.

g) The Employershall not be liable for delay in supply ornon- supply ofany materials, if any,which he has undertaken to supply where such failure or delay is due to naturalcalamities, transport and procurement difficulties and any circumstancesbeyond the controlofthe Employer.In no case, shall the Contractor be entitled to claimanycompensationor losssuffered byhimon this account.

h) Itshall be the responsibilityof the Contractor to arrange in timeall thematerials requiredfortheworks. If,however,in the opinion of the Engineer-in-Charge/Employer,theexecutionoftheworkislikelytobedelayedduetotheContractor'sinabilitytomakearrangementsfor supply of materials whichnormally he has toarrange for, the Engineer-in-Charge / Employer shall have the right, at his own discretion to arrange for issue of such materials from the market orelsewhere andtheContractorwill be bound to take such materialsattherate decidedbytheEmployer.This however,doesnot inanywayabsolvetheContractorfrom responsibilityofmakingarrangements forthesupply of suchmaterial in part or full, should sucha situation occur nor shall this constitute a reason for the delay in the execution of the work.

i) TheContractor shall,ifdesiredbythe Engineer-in-Charge/Employer,berequiredtoexecuteanindemnitybondinthe prescribed form for safe custody and accounting of all materials issued by the Employer.

j) A day to day account of the materials issued by the Employer shall be maintained by the Contractor, indicating the daily receipt, consumption and balance in hand, in a manner prescribed by the Engineer-in-Charge.

k) The Contractor shall see that onlythe required quantities of materialsare issued. The contractor shall not be entitledto cartage and incidental charges for returning the surplus materials, if any, to a place as directed by the Engineer in charge.

l) MaterialssuppliedbytheEmployer,ifany,shallnotbeusedforanyotherpurposeorworkotherthanthatissuedfor.

ContractorSuppliedmaterial

a) Allthematerialsincludingreinforcementsteel,cement,bitumen,aggregateetcshallbeprocuredbythecontractor.Quotedratetoincludelabour,basicco stofmaterial,costofaccessories,taxes,paymenttosuppliers,transportation,handling,storage,safety,wastage,accountingandreconciliati onandtoprovideForm-C&38andanyotherdocuments/formalitiesforpurchaseofmaterials,costof electricity, water, WCT, GST and Contractor's overheads and profits etc.

b) IncasetheContractorfails/refusestoprocureandprovideanymaterial,theEngineer-in-Chargeintheinterestofthework may resort to procure and provide such materials at the risk and cost of the Contractor. Under such circumstances anextra procurement charge @ 15% of the respective item rates shall be imposed on the Contractor and recovered from his bills / any outstanding payments.

c) ThematerialsshallbefullyaccountedforbytheContractoras requiredhereinafter.Inaccountingforthematerialswithallowances tocover all wastages and losses that may have been incurred in the processofhandling,storing,cutting, fabrication, fixingandinstalling.ThecontractorshallsubmitstatementofaccountandreconciliationofmateriallyinginContractor'sstores along with each Running Account Bill and consolidated statement of reconciliation along with Final Bill.

d) The Contractor shall, at all times when requested, satisfy the Engineer-in-Charge by the production of records or books or submissions of returns that the materials are being used for the purpose for which they are procured and theContractor shall at all timeskeeptherecordsupdatedtoenabletheEngineer-in-Chargetoapplysuchchecksashemaydesiretoimpose.The Contractor shall, at all times, permit the Engineer-in-Charge toinspect his godown. TheContractor shallnot, withoutprior written permission ofthe Engineer-in-Charge, utilise or dispose of the materials for any purpose other than intended in the Contract.

Materialsandworkmanship:

a) The Contractor shall be responsible for the establishment of a full and comprehensive quality control system for the Work. The systemshall include, but not belimitedto,themeansofcontrollingthetesting andreceiptofmaterials,the inspectionoftheWork, thefiling and ordering of drawings and correspondence and the duties and responsibilities of staff members.

b) Allmaterials and equipmentto be incorporated in the Work shall be new unlessthere is specific provision in the contract for reusing old good quality material. The materials, equipment, and workmanship shall be of the best quality of the specified type, in conformity with Contract Documents and the best engineering and construction practices, and to the complete satisfaction of the Engineer-in-Charge. This requirement shall be strictly enforced at all times and stages of the Work and no request for change whatsoever shall be entertained on the grounds of anything to the contrary being the prevailing practice. The Contractor shall immediatelyremovefromtheWorkanymaterials,equipmentand/orworkmanshipwhich,intheopinionoftheEngineer-in- Charge,are defective or unsuitableor notin conformitywith the Contract Documentsandbest engineeringandconstruction practices, and the Contractor shall replace such rejected materials, equipment and/or workmanshipwith proper,specified, required and approved materials, equipment and/or workmanship, all at his own costwithin a period of seven (7)days from thedate of issuance of such notice.

c) TheContractorshall,wheneverrequiredtodosobytheEngineer-in-Charge,immediatelysubmitsatisfactoryevidenceandnecessarytest results as to the kind and quality of the materials and equipment.

Specialmakesorbrands:

a) Where specialmakes or brands are called for, they are mentioned as astandard. Others of equivalent quality may beusedprovided thatEngineer-in-Chargeconsidersthesubstitutedmaterialsasbeingequivalenttothebrandspecified,andpriorapproval for the use of such substituted materials is obtained in writing from the Engineer-in-Charge.

b) UnlesssubstitutionsareapprovedbytheEngineer-in-Chargeinwritinginadvance,nodeviationsfromtheSpecificationsand other Contract Documents shall be permitted, the Contractor shall indicate and submit written evidence of thosematerialsor equipmentcalledforin theSpecificationsandotherContractDocumentsthatarenotobtainableforincorporationintheWork within the time limit of the Contract. Failuretoindicatethisin writingwillbedeemedsufficient causefordenialofanyrequestforanextensionoftimeand/oradditionalcost because of suchcircumstances.

c) Alternative equivalent brands if suggested by the Contractor during construction may be considered if approved brand is not available in market, provided the suggested brand fully meets the requirements and is acceptable to the Engineer-in- Charge.

Contractor shall be responsible for providing, at his own cost, proper and adequate security for all the materials and equipment stored at the Site so as to prevent any theft, pilferage etc., and the Contractor shall be responsible and liable for all the matters inconnection withsuchsecurityorthelackthereof.Where, afterpermission has beensought and obtainedfrom theEngineer-in-Charge, any material or equipment is kept on any portion of the structure, this shall be done in such a mannerasto prevent any overloading whatsoever of the structure, to thecomplete satisfactionof theEngineer-in-Charge.Thecost associatedwith any damage to any portion of the structure in this respect shall be to the account of the Contractor and shall be borne by him. Shoulddelaysbecausedonaccountofremovalandreplacementofanymaterialsorequipmentoronaccountofanylackof security, the Contractorshall not be entitled to any extension of timeor increase in theContract Price. Wherever applicable the storage of materials shall be in accordance with the relevant Indian Standard Specifications. Reinforcement bars shall be stored diameter-wise over raised sleepers and protected from rain in suitable manner as approved by the Engineer-in-Charge. Similarly, structural steel sections shall also be stored in the yard in a proper orderly manner.

Certificates:TheContractorshallfurnish,athisowncost,testcertificates,calibrationcertificatesforthevariousmaterials and equipment as called for by the Engineer-in-Charge. Such test certificates should be for the particular consignment/lot/piece as decidedby theEngineer-in-Charge. The details in respect ofthetestand calibration certificates shallbeas decided by theEngineer-in- Charge for the relevant items.

76. ConstructionprogrammeandSiteorderbook

ConstructionProgramme:

ThecontractorshouldfurnishanoverallconstructionprogrammefortheapprovaloftheEngineer-inchargebeforethestart oftheworks.Theconstructionprogrammeshallclearlyshowallthesequentialactivitiesofworkrequiredtobecarriedoutfromthecommencementofthe WorkuptotheVirtualCompletion.

Theconstructionprogrammeshallbebasedonthemutuallyagreedmilestones.

Everymonth,orsoonerifrequiredbytheEngineer-in-Charge,theapprovedprogrammechartsshallbereviewedinrelationtotheactualprogressoftheWork,and shallbe updated asnecessary.Ifat any timeitappearsto the Engineer-in-Charge thattheactualprogressoftheWorkdoesnotconformtotheapprovedprogramme,theContractorshallproduce,atitsexpense andwithoutreimbursementtherefore,arevisedprogrammeshowingthemodificationstotheapprovedprogrammeand theadditionalinputofresourcesbytheContractornecessarytoensurecompletionoftheWorkwithinthetimestipulatedforcompletion.

Thesubmissiontoandapprovalbytheengineer-in-Chargeofsuchprogrammesorthefurnishingofsuchparticularsshall notrelievetheContractorofany ofhisresponsibilities,obligationsandliabilitiesundertheContract.

SiteOrderBook/WorkspotOrderBook-shallbemaintainedattheSiteaspertheprovisionscontainedintheRevisedKeralaPWDManual-2012.

SiteRegister:

TheContractorshallmaintainasiteregisterthatrecordsthenameandtimeofarrivalanddeparture,atSite,ofanyvisitors.

76.3.1 **77. Protectionsofworks:**

TheContractorshalltakefullresponsibilityforthepropercareandprotectionoftheWorkfromcommencementofworkuntil completionandhandingoveroftheWorktotheAssistantEngineeratnoadditionalcost.TheContractorshallprotectandpreservetheWorkinevery way from any damage, fire or accident, including by providing temporary roofs,boxingorotherconstructionasrequiredbytheEngineer.Thisprotectionshallbeprovidedforallpropertyontheadjacentto theSite.TheContractorshalladequatelyprotect,tothesatisfactionoftheEngineer-in-Charge,alltheitemsoffinishingworktopreventanychipping,

77.1 cracking,breakingofedgesoranydamageofanykindwhatsoeverandtopreventsuchworkfromgettingmarkedorstainedor dirty.ShouldtheContractorfailtoprotecttheWorkoranypartthereofandshouldanydamagebecausedtothesame,theContractorshallbe responsible for all replacement and rectification, as directed by the Engineer, and all costs and expensesinconnectionwithsuchreplacementandrectificationshallbetotheaccountoftheContractor andshallbeborneby him.

77.2 TheContractorshallinconnectionwiththeWorkprovideandmaintainathisowncostalllights,securityguards,fencingandanythingelsenecessary fortheprotectionoftheWorkandforthesafetyofthepublicandeveryoneassociatedwiththeWork,alltotheapprovalandsatisf action of the Engineer-in-Charge.

77.3 Alloperationsnecessaryfortheexecutionofthe Workshallbecarriedoutsoasnottointerferewiththeconvenienceofthe public,orwiththetraffic,ortheaccessto,useandoccupationofpublicorprivateroadsandfootpathsorofpropertieswhetherinthepossessionoftheEmployerorofanyotherperson.TheContractorshallsaveharmlessandindemnifytheEmployer& Engineerinrespectofallclaims,proceedings,damages,costs,charges,andexpenseswhatsoeverarisingoutoforinrelationto any such matters.

78. Cleaningofworksandclearingofsite:

78.1 The Contractor shall maintain theSite,adjoining areas within 20 metersallaroundsite andallWork thereon in neat,clean andtidy-conditionsatalltimes. TheContractorshallremoveallrubbishanddebrisfromtheSiteandadjoiningareasondaily basis andas directed by the Field Engineer. Suitable steel skips shall be provided at strategic locations around theSite to receive waste and packaging materials.

78.2 JustpriortotheVirtualCompletionoftheWork,orwheneversodirectedbytheEngineer,theContractorshallcarryoutalltheworknecessarytoensurethattheSite&20meterareaallaroundsiteisclearandtheWorkarecleanineveryrespect,thesurplusmaterials,debris,shedsandallothertemporarystructuresareremovedfromtheSite,allplantandmachineryoftheContractorareremovedfromsite,theareasunderfloorsareclearedofrubbish,theguttersanddrainsarecleared,thedoorsandsashesareeased,thelocksandfasteningsareoiled,allelectrical,plumbingandotherservicesaretestedanddcommissioned,thekeysareclearlylabelledandhandedtotheAssistantEngineer,sothatatthetimeofVirtualCompletionthewholeSiteandtheWorkareleftfitforimmediateoccupationanduse,to the approvalandsatisfactionoftheEngineer-in-Charge.

78.3 ShouldtheContractorfailtocomplywiththecleaningrequirements,whetherprogressivelyorbeforecompletion,orfailtoclear theSiteand 20 meter area all around site as directed and required, then theEngineer-in-Charge, aftergiving duenotice in writing to theContractor,shallhavetherighttoemployotherpersonsoragenciestocarryoutthecleaningand/orclearingworkandallcostsincurredon such workshall be recovered fromthe Contractor and shallbe deducted by the Employer /Engineer-in- Charge fromany money that maybe payable or that may become payable to the Contractor.

78.4 If thecontractor fails to dispose the construction wastes and any other kind of wastewhichaccumulatesatthesite,theEngineer- in charge shall impose a fine at the rate of 1%of the estimated PAC of the Contract subjected to aminimum ofRs.1 lakh (Rupees onelakh only) and maximum of Rs. 5 Lakhs(Rupees Five lakhs only) (Modified)

79. Settlementofdisputes

79.1 Arbitration shall not be a means of settlement ofany dispute or claim outof thiscontract. All disputes and differencesarising outofthe contractmaybe resolved throughdiscussionsbetween theEmployerand theContractorwithin thepurviewofthe contract agreement.Ifsuchdiscussionsarenotfruitful,thedisputesshallbe settledonlybytheCivilCourtinwhosejurisdictiontheworkcovered by the contract is situated, or in whose jurisdictionthe contractwas entered intoincasethe work extended to the jurisdiction ofmorethan one court.

PartIII-SPECIALCONDITIONSOFCONTRACT

1. General

1.1 TheSpecialConditionsofContractareanextensionofandaretobereadinconjunctionwiththeGeneralConditionsof Contract.Shouldtherebeanycontradictoryrequirementsinthetwo,therequirementaspertheSpecialConditionsofContractshallprevail.

2. Referencedrawings

2.1 TheContractorshallmaintainonsiteonesetofallDrawingsissuedtohimforreference.

3. Completiondrawings(AsBuilt)&Measurementbooks

3.1 On completion of the Work, theContractor shallsubmit three (3) complete sets of drawings andmarkedup prints of "AS BUILT" drawings verified and approved by the Engineer-in-Charge. These drawings shall include and showall thechanges / deviations made from the working drawings during the course of construction and also the other detailsas called for by the Engineer-in-Charge.Duringthe executionof theWorks aset of drawings prepared initially shallbe retained intheContractorsSite Offices forthe exclusivepurpose ofrecordingchangesmadetothe Workastheconstructionproceeds.Thedrawingsshallbeprepared on computer through CAD Software and provided to the Engineer-in- Charge as hard and soft copy.

4. Testingofinstallations:

4.1 All water retaining structuresand the basementshallbe testedas specified for thewaterproofqualities, inthepresenceof the Engineer-in-Chargeor hisauthorised representative. The Contractor shallalsoperform allsuchtests as maybenecessary andrequiredbytheEngineer-in-Chargetoensurequalityoftheexecutedworks.TheContractorshallprovideallIabour,equipment, andmaterials etc., required for the performance of the tests.

5. QualityassuranceandQualityControl

5.1 TheContractorshallestablishaneffectivequalitycontrolsystemattheSiteandimplementthesamethroughan independentteamconsistingofqualifiedandexperiencedEngineersandtechnicalpersonneltoenforcequalitycontrolonallitemsoftheWorkatallstages. Generally the following are to be noted regarding the quality control ofthe works in this contract.

5.2 Quality control of various items in this Work shall be governed by the provisions of Kerala PWD Quality Control (QC)Manual approved vide GO(Rt) No-1339/2015/PWD dated 10-9-2015 and Kerala PWDQuality Control laboratoryManual approvedvide GO(Rt) No-1346/2015/PWD dated 11-9-2015 and subsequent modifications if any.

5.3 Theintendingbiddersareexpectedtofamiliarizewiththecontentsof QCmanualbeforeparticipatinginthebid.

5.4 Technical audit asenvisaged in clause 2406 of the revised PWDManual-2012shallbe carried out for thisWork. The contractor shall extend full cooperation to the agency entrusted with the technical audit.

5.5 The contractor shall extend full cooperation to the departmental officers of quality control wing for taking samples, curing and keeping themin safe custody whenever required.The contractor shall issueproperacknowledgement forsamplessokept inhis safe custody.

5.6 Thecontractoristomobilisetechnicalpersonnelwhoarewellversedwithqualitycontroltestsandotherguidelines stipulated in the QC manual.

5.7 ForWorksorworkscostingmorethanRs.200lakhs,theselectedContractorshallestablishsitelaboratorieswithrequiredfacilities asspecified in PWD Laboratory Manual.

5.8 Thecontractorisresponsibleforensuringqualityofeachitemofworkinthiscontract.

5.9 Being theagencyentrusted withexecutionoftheContract,theprimaryresponsibilityforensuringqualityofeach itemof work in this Contract is vested withthe Contractor.Engineeror his Representative shallissue guidelines as andwhenrequiredforensuring Quality Control, which the Contractor has to follow.

5.10d. TheEngineerandhisRepresentativeshallhavetherighttodirectContractortoremovematerialssuppliedwhichdonotconformtostandardsspecifie

5.11 ForworkscostingmorethanRs.200lakhs,thecontractorshallconductfirsttierqualitycontroltests forallitemsofworkat the site laboratoryaspertheprocedurestipulatedinthePWDQualityControlManualathisownexpense.

5.12 TheContractorisboundtocarryoutrectificationworksathisowncost,ifresultsobtainedduringqualitycontroltestseither in the first- tier or second-tier do not comply with the standards. He shall also carry out rectification works, if any pointed out during technical audit done after completion of work.

5.13 ThedecisionoftheEngineer-in-chargeregardingcomplianceoftestresultsandrectificationworkstobedoneshallbefinalandbindingonthe contractor.

5.14 Paymentforworkswhich are to be re-done orrectified willbe madeonlyaftertheEngineer-incharge,after inspection, certifies in writing that the rectifications have been done satisfactorily and the results of the tests conductedafter the rectification comply with the specifiedvalues.

5.15 Thirdpartytesting shallbedoneinanindependentapproved laboratory, ifthere isdisputeduetodifference inthe test resultsof first- tier and second-tier testing or ifanymanipulatedresultsaresuspected. Incase,certain specifictests cannotbe carried out with the facilities available in the Contractor's site laboratory or the Department laboratories, third party testing shall be resorted to.

5.16 Engineerinchargeshalldecidewhetherthirdpartytestingisrequiredtosettleadispute.Hisdecisionwillbefinaland binding on the Contractor.

5.17 Thirdpartytests,ifapprovedbytheEngineer-inchargeshallbearrangedbytheContractorinanapprovedlaboratoryasdirectedbytheEngineer-in-charge.ItisdesirablethatthetestshallbedoneinthepresenceoftherepresentativesoftheEngineerinchargeandtheContractorto eliminateanyfurtherdisputes.TheexpensesshallbemetbytheContractor.Theresultobtainedinthetestshallbefinalandbindingonboth theContractor and the Employer.

5.18 Wherever specified,the contractor shall also obtainmanufacture's testcertificatefromthemanufacturer/dealerand submit the same before executing the items listed in such certificates. Contractor shall be responsible for the genuineness of the Manufacturer's Test Certificateobtainedandsubmittedbyhim.HeshallrecordastatementintheManufacturer'sCertificatethat"ThisCertificateforsupplyof ..... (NameofmaterialwithitemnoinBoQ)hasbeenobtainedbymefrom.. ..... (NameandaddressofManufacturer/Dealer)on(dateofreceiptofcertificate)fortheactualmaterialssupplied atsite.

5.19 Theratequotedbythebiddershallincludeallexpensesforcarryingoutthefirsttierqualitycontroltests.Expensesforthirdpartytestsasd etailed in clause 7.4 of the introduction to QC Manual, if required, shall also be borne by the Contractor.

6. Drilling,cuttingetc.

6.1 All cutting and drilling of walls or other elements of the building or structure for the proper entry/installation of inserts, boxes, equipment, etc. shall be carried out using electrically operated tools only.Manualdrilling, cutting, chiselling, etc. shallbe permitted with thewrittenapprovalof Agreementauthority. Nostructuralmembershallbecut orchasedwithout thewrittenpermissionoftheEngineer- in-Charge. Cutting and drillingof structuralmembersshallbe carriedout usingvibration free diamondwiresawingand diamonddrillingonly with prior permission from the Engineer-in-Charge. The costs for procurement and using such equipment are deemed to be included in the Contract and no extra costs will be paid.

6.2 Horizontal cutting of walls or other supporting structural elements for laying pipe conduits, water supply lines etc., shall be avoidedasfaraspossible.Conduitsshallbelaidthroughlintelsor slabsorsimilarelementswithoutaffecting thestructuralsafety. The conduits shall be connected to the required locations though vertical cuts in the walls or the supporting elements.

7. Approvalbystatutorybodies:

7.1 The Employer shall obtain Building Permit and Occupation Certificate after completion of work from the concerned Local self Government Institution, if applicable under this Contract. TheContractor shall be responsible for providing required notices to authoritiesandtoobtainandretainwithhimathisowncostallotherapprovalsfromthestatutorybodiespertainingtoworksunder this tender and temporary structures to be constructed at site or equipments to be erected, labour, Employee Insurance, Provident Funds, Tax Departments. etc and any other approval required to facilitate performance of Contractor's work under the Contract till completion. Refusalby statutory authorities toissueany certificate orany otherapprovals duetotheContractor's failuretoobservetherelevant rules and regulations inconnection withtheconstruction inaccordancewiththe sanctionedplansand/orspecificationsshallrendertheContractorliable for damages and in addition, render him liable to obtain such certificates at his cost.

8. Nameboardandpublicity

8.1 The contractor is not entitled to do any publicity on account of the Work. Contractor shall not put any hoarding, publish any advertisement, put any banner or circulate any pamphlet or adoptany otherpublicity methodsexceptwithprior writtenapproval of the Engineer-in-Charge. A name board may be made and displayed by the Contractor at his own cost at the Site at some approved place. The drawing of the Name Board shall be got approved from the Engineer-in- Charge. The contents of the board shall be as follows:-

i. NameoftheWork.
ii. NameoftheEmployer.
iii. NameofAgreementAuthoritywithaddress
iv. Engineer-in-ChargeandFieldEngineerswithcontactdetails.
v. ContractingAgencywithcontactdetails.
vi. Contract

9. WaterandElectricity

Contractor shall make hisownarrangementfor electricityandwater for constructionpurposes.Thewaterusedfor construction purpose shall be potable and tested once in every 6 (six) months. Thesource of water shall be approved by the Engineer- in-charge.

9.1 Thecontractorshallarrangethewatergoodforconstructionandpersonaluseathisowncostandshallberesponsiblefor all further connections, pumps, pipes, storage facilities and all other things necessary to distribute and useservices from this distribution point.

9.2 The electricity required for Construction Work shall be arranged by the Contractor from the authorities and/ or generators provided at site at his own cost. Contractor shall be responsible for all distribution points as may be required for the Work. The Contractor shall also make arrangement for alternative standby services at his own cost in the form of additional Generators of adequate capacity (day and night) so that there is no delay in progress of Work as per construction schedule submitted by him and approved by the Engineer-in-Charge. Contractor shall ensure adequate capacity ofgenerators tosupportsuch loadsharingwith other vendors.

9.3 The Contractor shall prepare schematic distribution diagrams of distribution of electricity and water for construction purposes incorporating all safeties and get them approved by the Engineer-in- Charge, the distribution at site shall be in accordance to the approved schematic. The contractor shall ensure incorporation and strict implementation of all safety parameters, equipments, instruments and directions given by the Engineer from time to time in this regard.

9.4 Thecontractorshallinstallthetemporarydistributionlinesforwaterandelectricityensuringthatworkofotheragencies/ vendorsisnotinterruptedorhampered.Incaseduringthecourseofconstructiontheselinesfoulorinterruptorhampertheworkofotheragencies/vendors,thecontractorshallremoveandrelocatetheservicelinesandrelocatethesameathisowncostwithinthetimestipulatedbytheEngineer-in-Charge.

9.5 AllstatutoryFees,&miscellaneousexpensesandcostsforelectricpowerandWaterconnectionforconstructionpurposesshallbeborneby the Contractor.

10. PriceAdjustment(applicableonlyforworkshavingTOCgreaterthan18months)The

formula(e) for adjustment of prices are:

9.6 R=Totalvalueofworkdoneduringthemonth.Itwouldincludetheamountofsecuredadvancegranted,ifany,duringthemonth,

Adjustmentforlabourcomponent

Priceadjustmentforincreaseordecreaseinthecostduetolabourshallbepaidinaccordancewiththefollowingformula:VL

10.1 =0.85xPl/100xRx(Li-Lo)/Lo,where

10.2 VL=increaseordecreaseinthecostofworkduringthequarterunderconsiderationduetochangesinratesforlocallabour.

Lo=theconsumerpriceindexforindustrialworkersfortheStateon28daysprecedingthedateofopeningofBidsaspublishedbyLabourBureau,Ministry of Labour, Government of India.

Li=TheconsumerpriceindexforindustrialworkersfortheStatefortheperiodunderconsiderationaspublishedbyLabourBureau,MinistryofLabour, Government of India.

Pl=Percentageoflabourcomponentofthework.

Adjustmentforcementcomponent

Priceadjustmentforincreaseordecreaseinthecostofcementprocuredbythecontractorshallbepaidinaccordancewiththefollowingformula.Vc

=0.85xPc/100xRx(Ci-Co)/Co,where

10.3

Vc=Increaseordecreaseinthecostofworkduringthequarterunderconsiderationduetochangesintheratesforcement

Co=TheallIndiaaveragewholesalepriceindexforGreycementforon28dayspriorthedateofopeningofBidsaspublishedbythe Ministry of Industrial Development, Government of India, New Delhi

Ci=TheallIndiaaveragewholesalepriceindexforGreycementforthemonthunderconsiderationaspublishedbyMinistryofIndustrialDevelopment , Government of India, New Delhi

Pc=PercentageofcementcomponentoftheworkAdjustmentof

Bitumencomponent

Priceadjustmentforincreaseordecreaseinthecostofbitumenshallbepaidinaccordancewiththefollowingformula:

Vb=0.85xPb/100xRx(Bi-Bo)/Bo,where

Vb=Increaseordecreaseinthecostofworkduringthequarterunderconsiderationduetochangesintherateforbitumen.

Bo=TheofficialretailpriceofbitumenattheIOCdepotatnearestcentreontheday28dayspriortodateofopeningofBids.

Bi=TheaverageofficialretailpriceofbitumenatIOCdepotatnearestcentreforthe15thdayofcalendarmonthunderconsideration.Pb=Percentageofbitumencomponentofthework.

Adjustmentforsteelcomponent

PriceadjustmentforincreaseordecreaseinthecostofsteelprocuredbytheContractorshallbepaidinaccordancewiththefollowingformula:

Vs=0.85xPs/100xRx(Si-So)/So,where

Vs=Increaseordecreaseinthecostofworkduringthequarterunderconsiderationduetochangesintheratesforsteel

So=TheallIndiawholesalepriceindexforreinforcementsteel(BarsandRods)on28dayspriorthedateofopeningofBidsaspublishedbythe Ministry of Industrial Development, Government of India, New Delhi

Si=TheallIndiaaveragewholesalepriceindexforreinforcementsteel(BarsandRods)forthemonthunderconsiderationaspublishedbyMinistryof Industrial Development, New Delhi

Ps=Percentageofsteelcomponentofthework

Note:Fortheapplicationofthisclause,indexofBarsandRodshasbeenchosentorepresentsteelgroup.

AdjustmentofPOL(fuelandlubricant)component

Priceadjustmentforincreaseordecreaseincostfuelandlubricantshallbepaidinaccordancewiththefollowingformula:Vf=0.85x

Pf/100 x R x (Fi - Fo)/Fo, where

Vf=Increaseordecreaseinthecostofworkduringthequarterunderconsiderationduetochangesinratesforfuelandlubricants.

Fo=TheofficialretailpriceofHighSpeedDiesel(HSD)attheexistingconsumerpumpsofIOCatthenearestcentreontheday28dayspriortothedate of opening of Bids.

Fi=TheofficialretailpriceofHSDattheexistingconsumerpumpsofIOCatnearestcentreforthe15thdayofthecalendarmonthunderconsideration.

Pf=Percentageoffuelandlubricantscomponentofthework.

Note:Fortheapplicationofthisclause,thepriceofHighSpeedDieseloilhasbeenchosentorepresentfuelandlubricantsgroup.

AdjustmentforPlantandMachinerySparescomponent

PriceadjustmentforincreaseordecreaseinthecostofplantandmachinerysparesprocuredbytheContractorshallbepaidinaccordancewiththefollowing formula:

Vp=0.85xPp/100xRx(Pi-Po)/Po,where

Vp=Increaseordecreaseinthecostofworkduringthemonthunderconsiderationduetochangesintheratesforplantandmachineryspares

Po=TheallIndiawholesalepriceindexforheavymachineryandpartson28dayspriorthedateofopeningofBidsaspublishedbytheMinistryofIndustrial Development, Government of India, New Delhi

Pi=TheallIndiaaveragewholesalepriceindexforheavymachineryandpartsforthemonthunderconsiderationaspublishedbyMinistryofIndustrial Development, New Delhi

Pp=Percentageofplantandmachinerysparescomponentofthework

Note:Fortheapplicationofthisclause,indexofHeavyMachineryandPartshasbeenchosentorepresentthePlantandMachinery Sparesgroup.

AdjustmentofOthermaterialscomponent

Priceadjustmentforincreaseordecreaseincostoflocalmaterialsotherthancement,steel,bitumenandPOLprocuredbythecontractor shallbe paid in accordance with the following formula:

Vm=0.85xPm/100xRx(Mi-Mo)/Mo,where

Vm=Increaseordecreaseinthecostofworkduringthequarterunderconsiderationduetochangesinratesforlocalmaterialsotherthancement,steel, bitumen and POL.

Mo=TheallIndiawholesalepriceindex(allcommodities)on28dayspriorecedingthedateofopeningofBids,aspublishedbytheMinistryofIndustrial Development, Government of India, New Delhi.

Mi=TheallIndiawholesalepriceindex(allcommodities)forthemonthunderconsiderationaspublishedbyMinistryofIndustrial Development,Government of India, New Delhi.

Pm=Percentageoflocalmaterialcomponent(otherthancement,steel,bitumenandPOL)ofthework.The percentagesgivenintheContractDatawillgoverntheadjustmentfortheentirecontract.

*[TheTenderinvitingauthorityshallfillupthepercentagesasperthereuirementintheWorkswhicharetobedecidedbasedonthe Workcomponents and type]

11. Protection/preservationoftrees:

11.1 Contractorshalltakeallmeasuresnecessarytoensuretheprotectionandpreservationofexistingtreeswithin/outsidetheboundaryofthesite.Contractorshallberesponsibleofanydamage/casualtytothetreeshappeningasaresultofhisworkingatsiteandforany action, claim, penalty or expenses imposed by the forest / any other department. Noclaim / payment shall bepayable to the contractor on this account.

12. Sub-Contracting

No subcontracting shall be done without prior written approval of Agreement Authority. Maximum value of works to be sub-contractedislimitedto25%ofContractvalue.ThevalueofasubcontractandProvisionalSumsitemsasandwhenawarded,shouldbeintimatedbythe Contractor to the Engineer-in charge and it should also be certified that the cumulative value ofthe sub-contractsawardedsofariswithintheaforesaidlimitof25%.AcopyofthecontractbetweentheContractorandSub-Contractorshallbegiventothe Engineer within 15 days of signing and in any case 7 days before the Sub Contractor starts the Workand thereaftertheContractorshallnotcarryanymodificationwithouttheconsentinwritingoftheEngineer.Thetermsandconditions ofsub-contractsandthepaymentsthathavetobemadetothesub-contractorsshallbethesoleresponsibilityoftheContractor.

12.1 Paymentstobemadetosuchsub-contractorswillbedeemedtohavebeenincludedintheContractprice.However,formajorsubcontracts(eachcostingoverRs50lakhs),itwillbeobligatoryonthepartoftheContractortoobtainconsentoftheEngineer.TheEngineerwillgive his consent after assessing and satisfying himself of the capability, experience and equipment resources of the sub-contractor.IncasetheEmployerintendstowithholdhisconsent,heshouldinformtheContractorwithin15daystoenablehimtomakealternativearrangements to fulfil his programme.

12.2 TheContractorshallprovidesufficientsuperintendence,whetheronthesiteorelsewhere,toensurethattheworktobecarriedoutby asub-contractor complies with the requirements of the Contract.

12.3 Theproposedsub-contracttermsandconditionsshallimposeonthesub-contractorsuchtermsoftheContractasareapplicableandappropriate tothe part of theWorks to besub-contracted, to enabletheContractortocomplywith hisobligationsunder the Contract.

12.4 Notwithstandinganyconsenttosub-contractgivenbytheEngineer,ifinhisopinionitisconsiderednecessary,theEngineer-in-chargeshallhavefullauthoritytoordertheremovalofanysub-contractorfromtheSiteoroff-Siteplaceofmanufactureorstorage.

13. SpecialisedWorkstobecarriedoutbylicensedpersons/firms:

13.1 Technically competent persons or firms holding valid licenses obtained from competent local authority/ proven experience record shall only carry out any specialworks and service installations includedin the scopeoftheWork. The listofsuch specialworks are available in the Government order No-GO(Ms) No-65/2015//PWD dated 24-7-2015.

14. Contractor'stemporaryworksdesign

14.1 TheContractorshall,priortocommencingtheconstructionofanytemporaryWorkslikeearthprotectionworksfordeep excavations,temporaryplatforms/formworksforheavyconcreting etc, submitacertificatetotheEngineersignedbyhimcertifying thatthetemporaryWorkshavebeenproperlyandsafelydesignedandcheckedtocarrytheintendedloadwithoutfailureandthattheContractorhascheckedtheeffectoftheTemporaryWorksonthePermanentWorksandhasfoundthistobesatisfactory.TheEmployerandtheEngineershallnotberesponsibleforanyfailureofsuchtemporarystructuresandtheContractorisboundtotakecareofall expenses related to such failures, its rectification and subsequent remedial measures if any at no extra cost.

15. DeductiontowardsthecostofBitumenifsuppliedbytheEmployer

15.1 The costofbitumen will berecovered at the ratespecified in contractdata which isexcluding costofempty drum andempty drumofbitumenusedontheworkshouldbereturnedingoodcondition.Ifemptydrumisnotreturnedingoodcondition,thevalueofemptytardrumwillberecoveredattheratesspecifiedincontractdataasperrules.Alsotherateforrecoveryofexcess Bitumenusedifanyshall be double the issue rate or market rate whichever is more.

16. ContractorsTechnicalPersonnelatsite

16.1 Thecontractorshallemployengineeringpersonnelinadditiontoothersupportingstaffasdetailedbelowfortenureofthecontractfor workssupervisiondependinguponthecostofwork.

a) adiplomaholder(CivilEngineering)withsufficientpracticalexperienceforthepropere xecutionandsupervisionofworkscostingfromRs. 5 lakhs to 75 lakhs

b) oneEngineeringGraduate(CivilEngineering)andonediplomaholder(CivilEngineering)forworkscostingRs.75lakhsupto150lakhsand

c) ForworksfromRs.150lakhstoRs.250lakhs-

i. WorksManager-1no(CivilEngineeringGraduatewithminimum3yrsexperience)

ii. SiteEngineers-2nos(oneCivilEngineeringgraduateandonecivildiplomaholderwithminimum1yearexperience)

d) ForworksfromRs.250lakhstoRs.500lakhs-

i. WorksManager-1no(CivilEngineeringGraduatewithminimum5yrsexperience)

ii. SiteEngineers-3nos(oneCivilEngineeringgraduateandtwocivildiplomaholderwithminimum2yearexperience)

If the Contractor fails to employ the required engineering personnel at site as per the above, the Engineer-in charge shall imposeapenaltyfornon-engagingtherequiredpersonnelatsiteattheappropriatedailywagesratespublishedbythe

16.2 Government (Finance Department - Enhancement of remuneration of daily wage personnel and persons on contract appointment) prevailing at the time of such non engagement on a per day basis. This amount shall be deducted from any moneys due to the contractor by way of this contract.

17. ContractorsEquipmentsatsite

Thecontractorshallown/hire/deploytherequiredtoolsandplantsasspecifiedintheContractdataforthesatisfactoryexecutionofthework.

18. SpecialConditionsforGSTdeductionasTDS

18.1 Asperthemodifiedclause3.3.5ofInstructionstoBidders,theratequotedbythebiddershallincludealltaxesdutiesandConstructionWorkersWelfare Fund Contribution etc except the GST (Goods and Services Tax) andtheGovernmentwillnotentertainanyclaimwhatsoeverinrespectofthesame.Goods&ServicesTax(GST),whereverlegallyapplicable,shallbepaidby theContractortotheconcernedAuthoritiesandtheEmployershallpaytheapplicableGSTtotheContractoratthetimeofsettlementofbillsfortheworksdo neasperthiscontract.However,outofthePRICEtotalGSTamounttobepaidtothe Contractoratthetimeofsettlementofbills,anamountattheratespecifiedinthecontractdatashallbedeductedasTDSanddepositedattheCentralTaxDe partmentbytheEmployer.TheContractorshallbepaidthebalanceamountofGSTatthetimeof settlement of the Bills. The Employer shall give necessary certificates to the Contractor in this regard.(Modified)

19. SpecialconditiontowardscontributionofKeralaConstructionWorkersWelfareFundBoard.

19.1 DeductiontowardstheKeralaConstructionWorkersWelfareFundBoardcontributionwillbemadeattheprevailingrate(asprovidedintheCont ractData)fromanybillamountwhichincludescostofdepartmentalmaterialsandhirechargesof departmentaltoolsandplants.Thisamountshallberemittedto K.C.W.W.F.bytheEngineer-inchargewithin15daysofthepaymenttotheBidder. Necessarycertificatesinthisregardshallbeissuedtothe Contractorinduecourse.

20. ADVANCEPAYMENTS

20.1 MobilisationAdvance

Thisclauseshallbeapplicableonlywhensoprovidedin'ContractData'.

20.1.2 Mobilizationadvance,shallnotexceed10%oftheContractPricemaybegiven,ifapplicableandrequestedbythecontractorinwritingwithino nemonthoftheordertocommencethework.Suchadvanceshallbein twoormoreinstalmentsasprovidedinthecontract data.Thefirstinstalmentofsuchadvanceshallbereleasedbythe Engineer-in-chargetothecontractoronarequestmadebythecontractortotheEngineerin-Chargeinthisbehalf.Thesecondandsubsequent instalments shall be releasedbytheEngineer-in-ChargeonlyafterthecontractorfurnishesaproofofthesatisfactoryutilizationoftheearlierinstalmenttotheentiresatisfactionoftheEngineer-in-Charge.

Beforeanyinstalmentofadvanceisreleased,thecontractorshallproduceanunconditionalBankGuaranteefroma NationalisedorScheduledBankfortheamountequaltotheamountofadvanceandvalidforthecontractperiod.ThisBankGuaranteeshallbekeptrenewe d fromtimetotime tocoverthebalanceamountandlikely periodofcompleterecovery.

Mobilisationadvance,ifpaid,shallbedeductedfromthenextimmediateinterimpaymentattherateof25%oftheamounts ofallInterimPaymentCertificatesuntilsuchtimeastheadvancehasbeenrepaid,alwaysprovidedthattheadvanceshallbecompletelyrepaidbef ore 80% completion of work.

SecuredAdvancefornon-perishablematerials

Thisclauseshallbeapplicableonlyfortheitemssoprovidedin'ContractData'.

Thecontractor,onsigninganindentureintheformtobespecifiedbytheEngineer-in-Charge,shallbeentitledtobe paidduringtheprogressoftheexecutionoftheworkupto75%oftheassessedvalueofanymaterialswhichareintheopinionof theEngineer-in-Chargenon-perishable,non-fragileandnon-combustibleandareinaccordancewiththecontractconditionsand whichhavebeenbroughtonthesiteinconnectiontherewithandareadequatelystoredand/orprotectedagainstdamagebyweatherorothercausesbutw hichhavenotatthetimeofadvancebeenincorporatedintheworks. Whenmaterials onaccountof whichanadvancehas beenmade under this sub-clause are incorporated in the work, the amount of such advance shall be recovered/deductedfromthenextpaymentmadeunderanyoftheclauseorclausesofthis contract.

SuchSecuredAdvanceshallalsobepayableonotheritemsofperishablenature,fragileandcombustiblewiththeapprovaloftheEngineer-in-Chargeprovidedthecontractorprovidesacomprehensiveinsurancecoverforthefullcostofsuchmaterials.

ThedecisionoftheEngineer-in-Chargeshallbefinalandbindingonthecontractorinthismatter.Nosecuredadvance,shallhowever,bepaidonhigh-riskmaterialssuchas ordinary glass, sand, petrol, diesel etc.

Securedadvance,ifpaid,shallberecoveredfromeachsucceedinginterimpaymenttotheextentmaterialshavebeenincorporatedintothe Works.

Alladvancepaymentsshallbecompletelyrecoveredbeforecompletionof80%costofwork.

21 anyotherspecialconditionsspecifictotheWorkmaybeaddedhere

PartIV-CONTRACTDATA

Sl.No.	Item	Data(tobefilledbytheTenderInvitingAuthorityasperthe subjectworkrequirements)
1	IdentificationNo.oftheContract	D4/LACADS/2026-27 dtd.14/10/26
2	NameofWork	**Nameofwork** LAC ADS 2021-22.2022-23 Sri.P K Firoz MLA – Meppilattu vayal Nellikkaparambu road construction Narikkuni pt PMC- LIMITED TENDER
3	Employer	TheExecutiveEngineer,LID&EWDivision,KozhikodeDistrict panchayath
4	TenderInvitingAuthority	TheExecutiveEngineer,LID&EWDivision,KozhikodeDistrict panchayath
5	NameofDivision	Kozhikode
6	NameofSub-Division	
6(a)	NameofSection	
7	EstimatedProbableAmountof contract	RS.1000000
8	SourceofFund	
9	LocationofWork	Seethedetailsofthisworkuploadedinetendersite
10	TypeofWork(briefdescriptionaboutthe nature of work)	SeetheNoticeInvitingTender
11	Timeofcompletionofwork(indays)	545Days
12	WorkMilestones	
13	Class/RegistrationofBidder	NA
14	Pre-bidmeetingdate,venueandtime	Seethedetailsofthisworkuploadedinetendersite
15	Bidsubmissionstartdate	14.10.26
16	Lastdateandtimeforbidsubmission	22.10.26
17	Bidsubmissionfee	Rs 2760/-
18	BidSecurity	Rs 50000/-
19	PerformanceGuarantee	5.00%ofQuo ted/AgreedPAC
20	AdditionalPerformanceGuarantee	AsperRevisedPWDManual2012andrecentGovt.Orders

21	Insurancerequirementsare	a.TheContractorshallobtaininsurancecoverforaminimumof .....*peroccurrence.		
		b.Theinsurancecovershallbetakeninitiallyforaminimumoffour occurrences, which shall be revised whenever an event involvingContractor'sliabilityandPlantandMaterialsforpayment arises,andadditionalinsurancesshallbetakensoastocover minimum four occurrences always.		
		c. 0.2% of the Contract Amount shall be deducted in the event offailuretoobtaintheinsurancebythecontractorwithin15days ofStart Date [*Thevalueshallbegenerally0.5%oftheContractValuesubjecttoa minimum of Rs. 2.00 lakh and maximumofRs.5.00lakh]		
22	FirstTierQualitycontroltest/Minimum tests to be conducted	Notapplicable		
23	DefectsLiabilityPeriod	AsperGO(MS)No.73/2013/PWDdtd.31-08-2013		
24	Priceadjustmentisapplicable/not,if applicablegivethepercentagesfor calculation	Sl.No.	Component	Percentage
		1	Labour-Pl	Notapplicable
		2	Cement-Pc	Notapplicable
		3	Bitumen-Pb	Notapplicable
		4	Steel-Ps	Notapplicable
		5	FuelandLubricants-Pf	Notapplicable
		6	Plant&Machinery	Notapplicable
		7	Othermaterials-Pm	Notapplicable
25	Liquidateddamages	@1(one)percentoftheContractpriceperweekofdelayorpartthereof		
26	WorkitemsforwhichGuaranties required	AsperAgreement		
27	Limitofsubcontracting	Notallowable		
28	Maximumextentofchangeinquantity	AspertheconditionsinPWDRevisedManual-2012		
29	ContractorsEquipmentsandToolsand Plants	AsperAgreement		
30	Whethermobilisationadvance applicable	Notapplicable		
31	Whethersecuredadvanceapplicable	Notapplicable		
32	DeductiontowardsGST	1%SGSTand1%CGST		
33	DeductiontowardsKCWWF	1%ofBillamount		
34	Recoveryrateforexcessbitumen	AspertheoriginalBillofBitumen		
35	Recoveryratefornotreturningempty drumingoodcondition	Rs237/-+GST		

PartV-TECHNICALSPECIFICATIONS

1 General

ThespecificationsandmodeofmeasurementsforBuildingworksshallbeinaccordancewithCentralPublicWorks Department(CPWD)Specifications2009VolumesIandIIandKeralaPWDManualandthatforRoadandBridgeworksshallbeinaccordancewithMoRTH /IRCspecificationswithup to date correction slipsunless otherwisespecified in thenomenclature ofindividualitemor inthe individualitemspecificationintheBillofQuantities.Theentireworkshallbecarriedoutaspertheabovespecificationsinforcewithuptodate correction slips issued up to the date of opening of tender.

Forthe itemnotcoveredunderCPWDSpecificationsmentionedabove,theworkshallbeexecutedasper latestrelevant standards/codespublishedbyB.I.S.(formerlyISI)inclusiveofallamendmentsissuedtheretoorrevisionthereof,ifany,uptothedateofopeningoften ders.

IncaseofB.I.S.(formerlyI.S.I)codes/specificationsarenotavailable,thedecisionoftheEngineerbasedonstandards prescribedbyASTM,BS,DIN,AASHTOandsimilarorganisationsoracceptablesoundengineeringpracticeandlocalusageshallbefinalandbindingonthecontractor.However,intheeventofanydiscrepancyinthedescriptionofanyitemasgiveninthebillofquantitiesorspecificationsappendedwiththetenderandthespecificationsrelatingtotherelevantitemasperCPWD/MoRTHorotherspecificationsmentionedabove, or in drawingstheformershall prevail.

TheworkshallbecarriedoutinaccordancewiththedesignanddrawingsfurnishedbytheDepartment.Thedrawingsshallhavetobeproperlyco-relatedbeforeexecutingthework.Incaseofanydiscrepancynoticedbetweenthedrawings,finaldecision,inwritingoftheEngineershallbeobtainedbythecontractor.Foritems,wheresorequired,bytherelevantclauseinPWDQualityControlManual,samplesshallbepreparedbeforestartingtheparticularitemsofworkforpriorapprovaloftheEngineerandnothingextrashallbe payable on this account.

Allmaterialstobeusedonworksshallbearl.S.certificationmarkunlessspecificallypermittedotherwiseinwriting.IncaseI.S.markedmaterialsarenotavailable(notproduced),thematerialsusedshallconformtorelevantI.S.

InsuchcasestheEngineershallsatisfyhimselfaboutthequalityofsuchmaterialsandgivehisapprovalinwriting.Onlyarticlesclassifiedas"Premium/FirstQuality"bythemanufacturersshallbeusedunlessotherwisespecified.FirsttierQualityControltestsforallmaterialsandworkshallbedone asperthepro cedureandfrequencydetailedinPWDQualityControlManual.Properproofofprocurementofmaterialsfromauthenticmanufacturersshallbeprovidedbythecontractortothesatisfactionof Engineer.Manufacturer'stestcertificateshallalsobeproducedbyContractorasrequiredintherelevantprovisionsofthePWD Quality Control Manual.ThecontractorshallcarryoutMixDesignforallRCCworksdonebythelabsapprovedbytheGovernment.ReinforcementsteelandCement shall be as per the Finance Department circular No-8/2016/Fin dated 4-2-2016.

Inrespectoftheworkofother-agenciesdeployedinthesamesitethroughaseparatecontractbytheEmployerfordoing work like electrification, air-conditioning, external services, other building work, horticulture work, etc. and any other agencies simultaneouslyexecutingotherworks,thecontractorshallaffordnecessarycoordinationandfacilitiesforthesame.The contractor shallleavesuch necessary holes, openings,etc. for laying /burying in the work pipes, cables, conduits, clamps, boxes andhooksforfanclamps,etc.asmayberequiredfortheelectric,sanitaryair-conditioning,firefighting,PAsystem,telephone system, C.C.T.V. system, etc. and nothing extra over the agreement rates shall be paid for the same.

Unlessotherwisespecifiedinthebillofquantities,theratesforallitemsofworkshallbeconsideredasinclusiveofpumpingoutorbailingoutwaterifrequiredforwhichnoextrapaymentwillbemade.Thiswillincludewaterencounteredfromanysourcesuchasrains,floods, or due to any other cause whatsoever.

Anycementslurryaddedoverbasesurface(or)forcontinuationofconcretingforbondisaddeditscostisdeemedtohaveinbuiltintheitem unlessotherwise/explicitlystatedandnothingextrashallbepayable orextracementconsideredwithconsumptiononthisaccount.

Therateforallitemsinwhichtheuseofcementisinvolvedisinclusiveofchargesforcuring.

Thecontractorshallclearthesitethoroughlyofallscaffoldingmaterialsandrubbishetc.leftoutofhisworkanddressthesitearoundthebuildingtothe satisfaction of the Engineer before the work is considered as complete.

Ratesforplasteringwork,ifany(excludingwashedgritfinishonexternalwallsurfaces)shallincludeformakinggrooves,bands,chickenwire mesh over joints etc. wherever required and nothing extra shall be paid for the same.

Theratesquotedforallbrick/concreteworkshallbedeemedtoincludemakingopeningsandmakinggoodthesewiththesamespecificationsas shown in drawings and/or as directed. No extra payment shall be made to the contractor on this account.

Ratesforallconcrete/plasterworkshallincludeformakingdripcoursemoulding,groovesetc.whereverrequiredandnoextrashallbepaid for the same.

Ratesforflooringworkshallincludeforlayingtheflooringinstrips/aspersampleorasshownindrawingswhereverrequiredandnothing extra shall be paid for the same.

Thedrawing(s)attachedwiththetenderdocumentsareforthepurposeoftenderonly,givingthetendereragenerallideaofthenatureandtheextentofworkstobeexecuted.Theratesquotedbythetenderershallbedeemedtobefortheexecutionof workstaking into accountthe"DesignAspect"oftheitemsandinaccordancewiththe"ConstructionDrawings"tobesuppliedtotheContractorduring execution of the works.

The quoted rateshall befor finished itemsandshall becompleteinallrespects includingthecostofallmaterials,labour, tools & plants, machinery etc., all taxes, duties, levies, octroi, royalty charges, statutory leviesetc.applicable from time to timeandanyotheritemrequiredbutnotmentionedhereinvolvedintheoperationsdescribedabove.TheEmployershallnotbesupplying any material, labour, plant etc. unless explicitly mentioned so.

There could be some restrictions on the working hours, movement of vehicles for transportation of materials and location of labourcamp.Thecontractor shall beboundtofollowall suchrestrictionsandadjusttheprogrammeforexecutionofwork accordingly.

The contractor shall also ensure that all work sites within the siteare properly cordonedoffby meansof barricadesand screensup toaheight of3.0mabovegroundlevel athisowncost. The contractorshalluse pre-coatedGIsheetswhich arein good condition mounted on steelprops.

StackingofmaterialsandexcavatedearthincludingitsdisposalshallbedoneasperthedirectionsoftheEngineer-in-Charge. Doublehandlingofmaterialsorexcavatedearthifrequiredshallhavetobedonebythecontractorathisowncost.

The Contractor will have to take prior approval of the Engineer-in charge for the Make of materials before procurement of the same.ItmayalsobenotedthatifanyofthemakesdoesnotcomplywithStandards,itwillnotbeallowedforuse.Noclaimwhat so ever shall be entertained on this account.

Thecontractorshallclearthesiteofallrubbish,removeallgrassandlowvegetationandremoveallbushwood,trees,stumpsoftrees,andoth er vegetation only after consultation with the Field Engineer as to which bushes and trees shall be saved.

The contractor shall carry out the survey of the site and shall establish sufficient number of grids and level marks to the satisfactionoftheEngineer-in-charge,whoshalldecideonthebasisofthisinformation,thegenerallevelsoftheconstructionworks.

Prior to commencementofconstruction,thecontractorshallinconsultationwith theEngineer-in-charge,establishseveral sitedatumbench-marks,theirnumberdependingontheextentofthesite.Thebench-marksshallbesitedandconstructedsoas to be undisturbed throughout the period of construction.

TheEngineer-inchargemighthavegotthesoilinvestigationdoneandifso,copyofthereportwillbehandedovertothe contractorfortheirscrutinyuponspecificrequestbytheContractor.TheContractorshallhoweverinspectthesiteandstudythefindingsfromthetria l pitsor boresin order to assessthe problemsinvolved in and methodsto beadopted for excavation and earthwork. The contractor shall ascertainfor himself allinformationconcerning thesub-soilconditions,groundwatertablelevelsandintensityofrainfall,floodingofthesiteandalldataconcerningexcavationandearthwork.TheEmployershall notberesponsibleforanylaterclaimso fthecontractorforanyextraworkrequiredtobedoneonaccountofthisandshallnotpayanyextraamountinthis regard.

TheContractorshallsetouttheworksusingTotalStationandduringtheprogressofthebuildingshallamendathisown cost any errors arising from inaccurate setting out. During the execution of the work contractor must cross check his work with the drawings.Thecontractorshallberesponsibleforalltheerrorsinthisconnectionandshallhavetorectifyalldefectsand/orerrors at hisown cost, failing which the Engineer-in charge serves the right to get the same rectified at the risk and cost of the contractor.

Cleaning up and handing over:- Upon completion of the work allthe areas should be cleaned. Allfloors,doors,windows, surface, etc.shall be cleaned down in amannerwhichwillrendertheworkacceptable to theEngineer-in-charge.All rubbish due to any reason, shall beremoveddailyfromthesiteandanareaofuptotenmetresontheouterboundariesofthepremiseswillbecleanedbythecontractorasapartofthecontr act. Upon completion of the Work, the contractor shall hand over to the Assistant Engineer the following:

a) Writtenguaranteeandcertificates
b) Maintenancemanuals,ifany,and
c) Keys.

Samples :- The contractor shall submit to the Engineer-in charge samples of all materials for approval and no work shall commence before such samples are duly approved. Samples of materials for concrete works, masonry units, building insulation, finishedhardware,doorandwindows,flooringmaterialsetc.andeveryotherworkrequiringsamplesasdetailedinthePWD Quality Control Manualor asrequiredbytheEngineer-inchargeshallbesuppliedto themandthesesampleswillberetainedasstandardsofmaterials and workmanship. The cost of procuring the samples shall be borne by the contractor. Throughout this specification, types of material may be specified by manufacturer's name in order to establish standard of quality, price andperformanceandnotforthepurposeoflimitingcompetition.Unlessspecificallystatedotherwise,theBiddermayassumetheprice of 'approvedequivalent'exceptthattheburdenisuponthecontractortoprovesuchequality,inwriting.

Tests :- All materials and methods of tests shall conform to the latest rules, regulation and/orspecificationsas perthe provisions laid out in the PWD QualityControl Manual andPWDQualityControl Laboratory Manual.TheEngineer-in charge will havetheoptiontohaveanyofthematerialstestedandifthetestresultsshowthatthematerialsdonotconformtothe specifications,such materialsshall be rejected.The expensestocarryout testsas per frequencyandproceduredetailedin the PWD Quality Control Manual and PWD Quality Control Laboratory Manual will be deemed to be included in the Rates quoted.

Mode of Measurements:- All measurements will be taken in accordance with Kerala PWD manual.

The rates tendered by a Bidder for the work shall include the cost of :

a) All labour and supervision thereof,all materials, tools, implements and plant of every description, ladders,cordage tackle,etc.aswellastheprovisionofsafeandsubstantialscaffoldingrequiredfortheproperexecutionoftheworkinconformity with the various items of work;

b) Supplying the requisite agency with necessary equipments, to set out the work as well as to afford facilities for such examination of the work as the Departmental Officers may at any time consider desirable, as also to count, weigh and assist in the measurement or check measurement of the work or materials;

c) Providingandmaintainingalltemporaryfences,shelters,lights,watchmenanddangersignalsandsuchother precautionsasarenecessaryfortheprotectionoftheworkormaterials,aswellastoprotectthepublicandthoseconnectedwiththeworkfromaccidents at the site of, or on account of the work;

d) Allsheds,mortarmillsandmixingplatformofeverykindrequiredfortheproperexecutionoftheworkaccordingtothe specifications;

e) Allfeesandroyaltiesofmaterialsand

f) Finallyclearingawayofallrubbish,surplusmaterials,plantetc.oncompletionoftheworkanddressingand levelling ofandrestoringthesitetoatidycondition,priortohandingovertheworktotheAssistantEngineerandalsoitsmaintenanceuntilsotakenover.

In the case of supplies of materials such as rubble, broken stones, gravel, sand etc. which may have to be measured prior to being used on the work, the Bidder must always stack or arrangethem neatly on level ground oron groundcleared and levelled by him for the purpose in such manner as may be ordered by the Engineer so that they may be easily susceptible for inspection and measurement,thecostofsuchclearing,levellingandstackingorarrangingbeingincludedintheratesforwork.Eachstackmust be straight and of uniform section throughout and of the dimensionsspecified by the Field Engineer.Materialsnotstackedor arranged in accordance with instructions issued will not be measured and paid for.

TheBiddershouldstatewhetherhehasalltheplantnecessaryforexecutionofthework.IftheopinionoftheEngineer-in charge, Bidder's own plant is neither sufficient nor suitable for the proper execution of the work, the department may supply other availableplantandrecoverhirechargesforthesame.ThedecisionoftheEngineer-inchargeinthemattershallbefinaland binding on the Contractor.

TheContractorshall bearthe running expensesinclusive ofpayofthe departmental staffattached to suchplant andcost of repairsofallGovernmentplantwhileinhispossessiononhireasalsothecostofrestoringthesameingoodconditionatthetimeofreturn,dueallowan ce being made for fair wear and tear.

AllmaterialsandplantthataretobemadeovertotheBidderbytheDepartmentshallbehandedovertohimattheSection Office Store/yard and the charges for their handling, loading andunloading andconveyance to and from for the respective work asalso forstackingthematerialsneatlyandinregularheapsonthegroundorshedstowhichthey arebroughtshallbedeemedtobeincludedintherates for the work.

UnlessotherwisespecificallyprovideforintheContract,theContractorshallathisowncostkeepallportionsoftheworkfreefrom waterwhetherduetosprings,orinclementweatherandneatandsanitaryconditionandshallalsoseethatdrainageandsewageare preventedfromenteringthe siteofworkor accumulating therein.

TheBiddershallberesponsibleforthepropertuseandbeartthecostofprotectionofmaterialsmadeovertohimbythe Departmentforuseontheworkandbearanylossformdeteriorationoffromfaultyworkmanshiporanyothercause.Thecostofmaterialsthusallow edtodeteriorateamountingasitdoestoandexcessissueoversanctionedquantities,willberecoveredatrates20percentoverthe actualcost. The orders of the Engineer-in charge in the matter shall be final binding on the Contractor.

The Contractor shall be responsible to see that the level or the other pegs, profiles, bench, marks masonry pillars or other marks set up by the Department for guidance in the execution of the work are not disturbed, removed or destroyed If the same is disturbed, it will be replaced by the Engineer at the cost of the Contractor.

Anymaterialsbroughtto the site ofwork,oranyworkdone bytheContractor butrejected bytheEngineer-in-charge as being not up to the specifications shall in the case of materials supplied be then and there removed from or broken up at the site of work, and inthe caseof work done, the dismantled orrectified at the expenseof theContractor, as may be ordered bythe Engineer-in- charge.

In all cases whether so specified in the contract or not , the work shall be executed in strict accordance with the Contractor's accepted bid andthesespecifications andwith suchfurtherdrawings andspecifications and ordersasmayfromtimetotimebeissuedby the Engineer-in charge.

PartVI-FORMSandDECLARATIONS

1.FORMOFTENDER

Nameof Work

Nameofwork: LAC ADS 2021-22.2022-23 Sri.P K Firoz MLA – Meppilattu vayal Nellikkaparambu road construction Narikkuni pt PMC- LIMITED TENDER

TheExecutiveEngineer,LID&EWDivision,KozhikodeDistrictpanchayath

I/WedoherebytendertoexecutetheworksenumeratedintheScheduleaccompanyinginaccordancewiththetermsinyourtenderNoti fication No. 0 Dtd. 05/08/23 and specifications and conditions of contract in the bidding document.

CopyoftheelectronicallysignedspecificationssignedisalsoenclosedI/Wefurtheragreetocompletethewholeworkin0Daysdaysfromdateofreceiptofordertostartwork,and/orinthecaseof piece-works, maintain the minimum rate or progress specified in the Tender Schedule.

I/Wedo/donotagreetoacceptandcarryoutsuchportionoftheworkincludedinmy/ourtenderasmaybeallottedtome /usifthewholeworkbenotgiventome/us.

InconsiderationI/WebeingregisteredasaBidderintheKeralaP.W.D/CentralPWD/LSGD/Irrigation Department/OtherCentralorStateGovernmentDepartments/StateorCentralPublicSectorUndertakingsetcandinvitedtotender,I/Weagreetokeep thetender openfor acceptanceof30 daysfromthe dateofsubmissionthereof andnottomakeanymodifications in its terms and conditions which are not acceptable to Government.

I/WeagreethatArbitrationshallnotbeameansofsettlementofanydisputesorclaimsarisingoutofthecontractrelatingtothe work.

AsumofRs50000/-isherebyremittedonlineonthee-GPwebsiteasEarnestMoney.IfI/Wefailtokeepthetenderopenasaforesaidormakeanymodificationsinthattermsandconditionsofthetender which are not acceptable to Government.

OR

If after tender is accepted, I/We fail to execute the agreement as provided in the concerned clause of tender notifications or to commencetheexecutionoftheworkasprovided intheconditions.I/Weagreethatthegovernmentshall,withoutprejudicetoanyother rightor remedy beat liberty toforfeit thesaid earnestmoney absolutely and also recover from me/us theentire lossthat maybecausedto the Government by the retenderor rearrangement of thework or otherwiseunder the provisionof the Revenue Recovery Act orotherwise.

Acc:

1. TenderSchedule(submittedwithFinancialBid):	YesRs500
2. EarnestMoney:	00/-
3. Signedcopyoffulltender/biddocuments:	(Remittedthroughonline)YesYes
4. Signedcopyofdrawings:	Indian
Nationality:	

Signature:

FullNameofBidder:

PlaceofResidenceandAddress

1. PRELIMINARYAGREEMENT

(TobeexecutedonstampperRs.200/-)

Preliminaryagreemententeredintothis.....dayof.....twothousand.....betweenTheExecutiveEngineer,LID&EWDivision,KozhikodeDistrictpanchayathforandonbehalfoftheKozhikode0(hereinaftercalled 0)of the one part and Shri.....

..... (HereenterfullnameandaddressoftheBidder)oftheotherpartfortheexecutionoftheagreementaswellasforthe executionofthework" **Nameofwork:** LAC ADS 2021-22.2022-23 Sri.P K Firoz MLA – Meppilattu vayal Nellikkaparambu road construction Narikkuni pt PMC- LIMITED TENDER **-Limitedtender**"(hereenterthenameofworkinfull)byNotificationNo0dated05/08/23

I/Weundersignedherebyoffertoconstructtheproposedworkinstrictaccordancewiththecontract/biddocumentfortheconsiderationtobecalculated in terms of the priced schedule of quantities.

I/We undertake to complete the whole of the works as per the attached schedule from the date of issue of intimation by you that our tender has been accepted and upon being permitted to enter site. I/We furtherundertake that on failure,subject to theconditionsof the contract relating to extension oftime, I/We shall payagreed `Liquidated Damages' for the period during whichtheworkshallremain incomplete.

I/WeherebydepositwithyouasBidsecurityofRs50000/-[carryingnointerest]bymeansofonlinepaymentinthee- GP web site ofKerala in favour of The ExecutiveEngineer, LID&EWDivision , Kozhikode District panchayath and I/We agree that this sum shall be forfeitedin theeventoftheEmployeracceptingmy/ourtenderandI/Wefailtotakeupthecontractwhencalledupontodosoasperclause3.6.6and7ofITBofthe bid document.

I/Wefurtheragreeforthedeductionof2.5%fromthe`InterimPayment/RABill'anduptoamaximumof2.5%ofthecontractvalue towardsthe'PerformanceSecurityDeposit',whichwillbereturnedasperthe relevantclausesintheagreement.

I/WewillfurnishthePerformanceGuaranteeBondaspertheapprovedformat,ifourbidisaccepted.BidSecuritydepositedshall be treatedassecurityfortheproperfulfilmentofthesameandshallexecuteanagreementfortheworkintheprescribedform.IfI/Wefailstodothisormaintainaspecifiedrateofprogress(asspecifiedintheMilestonedetailsofcontractdatainthebiddocument),theperformanceguarantee(bothtreasuryfixeddepositandirrevocablebankGuarantee)andPerformanceSecurityDepositifanydeductedfromtheRA Billsshallbeforfeitedto Government andfreshtendersshallbecalled fororthematterotherwisedisposedoff. Ifasaresult of suchmeasuresdue tothedefaultoftheBiddertopaytherequisitedeposit,signcontractortakepossessionoftheworkanylosstoGovernmentduetothesamewillberecoveredfrom me/usasarrearsofrevenue,butshoulditbeasavingtoGovernment.I/Weshall have noclaimwhatevertothedifference.Recoveriesonthisoranyotheraccountwillbemadefromthesumthatmaybeduetousonthisoranyorothersubsistingcontracts or under the Revenue Recovery act or otherwise the Government may decide.

I/Wefurtheragreesthat,inthecaseofbecomingthelowestbidderinthistenderandintheeventoffailureonpartofme/usto produce any ofthe original documents, or submit the performanceguarantee,orenter into agreement with the first part within the specified time limit, the first partmaytakeappropriateactionas provided inthebiddocument. Recoveries onthisoranyotheraccountwillbemadefromthesumthatmaybedueto us on this or any or other subsisting contracts or under the RevenueRecoveryact or otherwise the Government may decide.

NOWTHEREFOREINTHEPRESENCEOFWITNESSitismutuallyagreedasfollows.

The terms and conditions for the said contract having been stipulated in the saidtenderdocumentandformstowhichthe I/We haveagreedandacopyofwhichisheretobeappendedwhichformsthepartofthisagreement,itisagreedthatthetermsand

1 conditions stipulated therein shall bind the parties to this agreement except to the extend to which they are abrogated or altered by express terms and conditions herein agreed to and in which respecttheexpress provisions herein shall supersede those ofsaid tender form.

I/Weherebyagreedandundertaketoperformandfulfilalltheoperationsandobligationsconnectedwiththeexecutionofthesaid

2 contractwork"LACADS2023-24GVHSSThamarasseryclassroomconstructionThamarasserypt-PMC-Limitedtender(hereenterthename of work in full) If awarded in favour of me/us

If the Bidder doesnot come forward and to execute the original agreement afterthe saidwork isawardedandselectionnotice issuedinhisfavourorcommitsbreachofanyoftheconditionsofthecontractasstipulatedinclauseofthenoticeinvitingtenders asquoted above,within theperiodstipulatedthenthe Kozhikode0mayrearrangetheworkotherwiseorgetitdone

3 departmentallyattheriskandcostoftheBidderandthe losssosustainedwillberecoveredbytheRevenueRecoveryActasif arrearsof land revenue as assessed., quantified and fixed by an adjudicating authority authorizedbyKozhikode0 in thisbehalf, takingin to considerationtheprevailingPWDratesandaftergivingduenoticestotheBidder.Thedecisionstakenbysuch authority, or the officer, or officers shall be final and conclusive and shall be binding on the bidder.

Thebidderfurtheragreesthatanyamountfoundduetothe Kozhikode0underorbyvirtueofthisagreementshallberecoverable

4 fromtheBidderfromhisBidSecurityandhisproperties,movableandimmovable,asarrearsof landrevenueundertheprovisions of the Revenue Recovery Act for the time being in force or any other manner as the 0 may deem fit in this regard.

Thebidderfurtherassuresthatitisclearlyunderstoodthatthesettlementofclaimseitherbypartbillsorbyfinalbillswillbemadeonlyaccordingtoth

eavailability ofbudgetprovisionsandallotment offundsmade with the Divisional Officer incharge ofthe work5 undertherespectiveheadsofaccountinwhichtheworkissanctionedandarrangedandalsosubjecttotheseniorityofsuchbills. Noclaimforinterestorfordamageswhatsoevershallbemadeforthebelatedsettlementofclaimsofbills.

INWITNESSWHEREOFShri/Smt.0,The ExecutiveEngineer,LID&EW Division,KozhikodeDistrictpanchayath(Here enter nameoftheofficerofthedepartment)andonbehalf..... of the . .....0andShritheBidderhaveset theirhands onthedayandyearfirstabovewritten

SignedbySri.0,TheExecutiveEngineer,LID&EWDivision,KozhikodeDistrictpanchayathInthepresenceofwitnesses12

SignedanddeliveredbyShri ..... theBidderInthe presenceofwitnesses

1

2

3.FORMATFORINTEGRITYPACT

(Certificatetobefurnishedbythebidderwiththetenderdocumentdownloadedfrome-GPWeb-site)

CERTIFICATE

I/We .... undertakethatthetendersubmittedbyusis downloaded from e-GP Website(www.etenders.kereala.gov.in)and issameincontentandform(verbatim),andany deviation, of detected, at any stage, would entitle the Employer to reject our bidding/ offer without assigning any reason or recourse to any penal action and would be legally binding on us.

Signature(oftenderer)withseal

3.FORMATFORAFFIDAVIT

(NonJudicialStampPaper)

AFFIDAVIT

I/We ,.....
bidder/Partner/LegalAttorney/AccreditedRepresentativeofM/s.....
.....solemnlydeclare that:

I **Nameofwork:** LAC ADS 2021-22.2022-23 Sri.P K Firoz MLA – Meppilattu vayal Nellikkaparambu road construction Narikkuni pt PMC- LIMITED TENDER

1. **Limitedtender**againstTenderNoticeNo0dtd.05/08/23

2. NoneofthePartnersofourfirmisrelativeofemployeeofTheExecutiveEngineer,LID&EWDivision,KozhikodeDistrict panchayath(Name of the Employer) who is involved with the arrangement and execution of this work.

3. Allinformationfurnishedbyusinrespectoffulfilmentofeligibilitycriteriaandqualificationinformationofthis Tenderiscomplete,correct and true.

4. Alldocuments/credentialssubmittedalongwiththis Tenderaregenuine,authentic,trueandvalid.

5. I/weundertaketodeployallplantandmachinery,toolsandtackles,manandmaterialsetc.asrequiredforexecutionofthework.

6. I/We hereby declare that I/We have perused in detail and examined closely the Central Public Works Department Specifications, Revised KeralaPWDManual-2012, Kerala PWDQuality Manual and Laboratory Manual, before I/We submit the tender/ bid and I/We agree to be bound by and comply with all such specifications and requirements.

7. Ifanyinformation anddocumentsubmittedis foundto befalse/incorrect atany time,department may cancel my/our Tender and action as deemed fit may be taken against us, including termination of contract, forfeiture of all dues including Earnest Money, revoking of Bank Guarantees and banning/delisting of our firm and all partners of the firm etc.

SignatureoftheTenderer,

SealofNotary

Dated

6.REQUISITIONFORMFORE-PAYMENT

[TobeattachedwithtenderformasperG.O(P)No.06/2012/PWDdated10/01/2012]

CertifiedthatIamhavingaSavings/CurrentAccountin

NameofBank	
atNameofBranch	
withIFSCCode	
theAccountNumberis	

Iwishtoreceiveallpaymentsinthisaccountthrough NEFTandRTGSsystems,asthecasemaybe,forall paymentsrelatingtothiswork.

NameofBidder:	
AddressofBidder:	

AdhaarNo.:	
PAN:	
GSTReg.No.:	
Contact.No.:	LandLine:
	Mobile:
email:	

Signaturewithdate

Place:
Date:

EDocumentsCreatorVer.20PoweredByPradeepenThulika

OfficeoftheExecutiveEngineer,LID&EWDivision,KozzhikodeDistrictpanchayat

e-Governmentprocurement
NOTICEINVITINGTENDERS

No **Date** **05/08/23**

TheExecutiveEngineer,LID&EWDivision,KozhikodeDistrictpanchayath,invitescompetativeonlinebidsfromtheregisteredbiddersofstate P.W.D and Irrigation Department for the following work.

1	Nameofwork	**Nameofwork:** LAC ADS 2021-22.2022-23 Sri.P K Firoz MLA – Meppilattu vayal Nellikkaparambu road construction Narikkuni pt PMC- LIMITED TENDER
2	EstimateAmount	Rs . 1000000
3	Bidsecurity	Rs50000/-
4	BidsubmissionFeewithGST	Rs2760/-
5	Periodofcompletion	545
6	ClassificationofBidder	NA
7	Tenderdocuments	canbedownloadedfromthewebsitewww.etenders.kerala.gov.in
8	Onlinebidsubmissionclosingdateandtime	14.10.26
9	Lastdateandtimeofreceiptofrelevant documentasmentioned(NIT)byspeedpost	22.10.26
10	DateandtimeofopeningofonlinetenderbidDateandtimeofopeningofonlinetenderbid	24.10.26

1 Bid documents including the Bill of Quantities (BoQ) can be downloaded free of cost from the e- Government Procurement (e-GP) Websitewww.etenders.kerala.gov.in.Allbiddocumentsaretobesubmittedonlineonlyandinthedesignatedcover(s)/ envelope(s)onthee-GP website. Tenders/ bids shall be accepted only through online mode on the e-GP website and no manual submissionofthesameshallbeentertained.Latetenderswillnotbeaccepted.Abidsubmissionfeeshallberemittedonline during the time of bid submission.

2 Thereisnoneedtosubmitanyhardcopiesrelatedtothisbidtotheofficeoftenderinvitingauthority.

3 The condition that the preliminary agreement needs to be prepared in stamp paper worth Rs.200 in SBD is removed. Instead, the preliminaryagreementneedstobepreparedinaplainpaperandascannedcopyofthepreliminaryagreementdulyfilledand signed bythe bidder needsonlytobe uploaded in the e-tenders portalwhilesubmitting thebid.The conditionthattheaffidavit needstobepreparedinstamppaperandtobenotarisedisalsoremoved.Instead,theaffidavitneedstobepreparedinaplain paper and a scanned copyof the affidavitdulyfilledandsignedbythe bidderneedsonlytobeuploadedintheetendersportal while submitting the bid.

4 Thebidsshallbeopenedonlineattheofficeof TheExecutiveEngineer,LID&EWDivision,KozhikodeDistrictpanchayathon18/08/23byTheExecutiveEngineer,LID&EWDivision,KozhikodeDistrictpanchayathinthepresenceoftheBidders/theirrepresentativeswhowishtoattendattheaboveaddress.Ifthetenderopeningdatehappenstobeonaholidayornon-workingdayduetoanyother valid reason, the tender opening process will be done on the next working day at same time and place.

5 MoredetailscanbeobtainedfromtheOfficeofTheExecutiveEngineer,LID&EWDivision,KozhikodeDistrictpanchayathduring working hours.

6 BiddersshoulddownloadtheBOQ,Preliminaryagreement,NITandTenderdocumentsfrome-tenderwebsite.Inthe downloadedItem rateBOQrecordtheagreed rateitemwiseand uploadthesameback totheetender site.

7 RateofquantityofanyitemexecutedexcessofagreedquantitywillbepaidsuchthatasperttheprevailingGovernmentordersPWDRevised ManualandSBD

8 Originalbitumenbillshouldbesubmittedonthecompletionoftarringworks.Billisinsistedonlytoensurethattheb Bidderhaspurchasedbitumen.Therate of bitumen in the estimate will be paid to Bidder as per the prevailing Government orders .

9 Nodepartmentalsupplyofanymaterialsrequiredfortheworkandthe Biddershouldcollectandusethematerialsfortheworkwithhisowncost and as per the directions of site Engineer in Charge.

10 TheTenderInvitingAuthority/Employershallnotberesponsibleforanyfailure,malfunctionorbreakdownoftheelectronicsystemwhile downloadingoruploadingthedocumentsbytheBidderduringthee-procurementprocess.

11 Detailsrequiredfore-payment(Detailsofbankaccounthavingcorebankingfacilityande-mailaddressofthebidder)shallbefurnished along with the tender. Tenders not accompanied by these details will be rejected. All subsequent Government orders connected to tenders and any revision in the rates of taxes would also be applicable to this tender.

12 The,Kozhikode0reservestherighttoacceptorrejectanyoralltenderswithoutassigninganyreasonthereof.

TheExecutiveEngineer,LID&EWDivision,
Kozhikode District panchayath